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[Docket No. AO-33-A 18]

PART 932—MILK IN THE FORT WAYNE, IND., MARKETING AREA

ORDER AMENDING ORDER, AS AMENDED

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AUTHORITY: §§ 932.0 to 932.101 issued under sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c.

§ 932.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order, as amended,

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regulating the handling of milk in the Fort Wayne, Indiana, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk produced for sale in the said marketing area as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds and other economic conditions which affect market supplies of and demand for such milk, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity specified in a marketing agreement upon which a hearing has been held.

(b) *Determinations.* It is hereby determined that handlers (excluding cooperative associations of producers who are not engaged in processing, distributing or shipping milk covered by this order, as amended, and as hereby further amended, which is marketed within the Fort Wayne, Indiana, marketing area) of more than 50 percent of the milk which is marketed within the said marketing area, refused or failed to sign the proposed marketing agreement regulating the handling of milk in the said marketing area, and it is hereby further determined that:

(1) The refusal or failure of such handlers to sign said proposed marketing agreement tends to prevent the effectuation of the declared policy of the act;

(2) The issuance of this order amending the order, as amended, is the only practical means, pursuant to the declared policy of the act, of advancing the interests of producers of milk which is produced for sale in the said marketing area; and

(3) The issuance of this order amending the order, as amended, is approved or favored by at least two-thirds of the producers who, during the determined representative period (January 1952), were engaged in the production of milk for sale in the said marketing area.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof the handling of milk in the Fort Wayne, Indiana, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order, as amended, is hereby further amended as follows:

DEFINITIONS

§ 932.1 *Act.* "Act" means Public Act No. 10, 73d Congress, as amended and as reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.).

§ 932.2 *Secretary.* "Secretary" means the Secretary of Agriculture or such other officer or employee of the United States authorized to exercise the powers or to perform the duties of the said Secretary of Agriculture.

§ 932.3 *Department.* "Department" means the United States Department of Agriculture or such other Federal agency authorized to perform the price reporting functions specified in § 932.50 through § 932.53.

§ 932.4 *Market Administrator.* "Market Administrator" means the agency described in § 932.20.

§ 932.5 *Person.* "Person" means any individual, partnership, corporation, association, or any other business unit.

§ 932.6 *Fort Wayne, Indiana, marketing area.* "Fort Wayne, Indiana, marketing area," hereinafter called the "marketing area," means the territory within the corporate limits of Fort Wayne, Indiana.

§ 932.7 *Delivery period.* "Delivery period" means the calendar month or the total portion thereof during which this part is in effect.

§ 932.8 *Cooperative association.* "Cooperative association" means any cooperative marketing association of producers which the Secretary determines, after application by the association:

(a) To be qualified under the provisions of the act of Congress of February 18, 1922, as amended, known as the "Capper-Volstead Act"; and

(b) To have full authority in the sale of milk of its members and to be engaged in making collective sales or marketing milk or its products for its members.

§ 932.9 *Route.* "Route" means a delivery (including at a plant store) of Class I milk to a wholesale or retail

stop(s) other than to a milk processing or distributing plant(s).

§ 932.10 *Handler.* "Handler" means: (a) Any person with respect to all skim milk and butterfat received at (1) a pool plant operated by him, or (2) a nonpool plant operated by him during any delivery period within which a route is operated from such plant wholly or partially within the marketing area; or (b) any cooperative association not operating a pool plant with respect to (1) producer milk caused by it to be delivered to a pool plant for which milk such association is authorized to receive payment, or (2) milk certified by the Fort Wayne Board of Health for disposition within the marketing area as fluid milk which such association caused to be delivered, for its account, to a nonpool plant. Milk caused to be so delivered shall be deemed to be received by such association.

§ 932.11 *Producer.* "Producer" means any person, except a producer-handler, having certification issued by the Fort Wayne Board of Health, to produce milk for disposition within the marketing area in the form of fluid milk which is received during the delivery period (a) in a pool plant, or (b) by a cooperative association not operating a pool plant. This definition shall be deemed to include any person whose milk has been received previously in a pool plant but is caused to be delivered from a pool plant to a nonpool plant; and milk so delivered shall be deemed to have been received in such pool plant.

§ 932.12 *Pool plant.* "Pool plant" means any milk processing or distributing plant other than the plant of a producer-handler approved by the Fort Wayne Board of Health:

(a) During any delivery period within which the total combined amount of skim milk and butterfat disposed of as Class I milk on a route (or routes) operated wholly or partially in the marketing area from such plant is equal to 20 percent or more of the total volume of milk received at such plant during such delivery period from dairy farmers having certification issued by the Fort Wayne Board of Health to produce milk for disposition within the marketing area in the form of fluid milk;

(b) During any of the delivery periods of October, November, December and January within which the total combined amount of skim milk and butterfat transferred as Class I milk to a pool plant described in paragraph (a) of this section in the form of milk is equal to 20 percent or more of the total volume of milk received by such transferor during such delivery period from dairy farmers having certification issued by the Fort Wayne Board of Health to produce milk for disposition within the marketing area in the form of fluid milk; or

(c) During each of the delivery periods of February through September 1952 if during each of any two of the delivery periods of November and December 1951 and January 1952 the total combined amount of skim milk and butterfat transferred as Class I milk to a pool plant described in paragraph (a) of this section in the form of milk was equal to 50 percent or more of the total volume of milk received by such transferor during such delivery period from dairy farmers having certification issued by the Fort Wayne Board of Health to produce milk for disposition within the marketing area in the form of fluid milk; and during each of the delivery periods of February through September of any year after 1952 if during each of any three of the next preceding four consecutive delivery periods October, November, December and January the total combined amount of skim milk and butterfat transferred as Class I milk to a pool plant described in paragraph (a) of this section in the form of milk was equal to 50 percent or more of the total volume of milk received by such transferor during such delivery period from dairy farmers having certification issued by the Fort Wayne Board of Health to produce milk for disposition within the marketing area in the form of fluid milk: *Provided*, That any plant which is a pool plant pursuant to this paragraph shall become a nonpool plant during any delivery period immediately following the delivery period within which the operator of such plant notifies the market administrator in writing on or before the 10th day of his intention that such plant shall become a nonpool plant, and such a plant shall not again be a pool plant pursuant to this paragraph until the following February; and the market administrator shall notify each cooperative association which causes milk to be delivered to such plant and each producer delivering to such plant who is not a member of a cooperative association at least 10 days prior to the first day of the first delivery period during which such plant is to be a nonpool plant of the handler's intention that such plant shall become a nonpool plant.

§ 932.13 *Producer milk.* "Producer milk" means milk produced and handled under conditions set forth in § 932.11. Skim milk and butterfat transferred in the form of milk to a pool plant from a nonpool plant operated by a cooperative association to which such association causes prducer milk to be delivered pursuant to § 932.10 (b) (2) shall be considered to have been producer milk if (a) the cooperative association and the handler operating the pool plant mutually indicate to the market administrator in writing on or before the 7th day after the end of the delivery period within which such transfer occurred, their desire that such skim and butterfat be considered as producer milk, and (b) the amount of skim milk and the amount of butterfat so transferred as producer milk is no greater than the amount of skim milk or the amount of butterfat, respectively, contained in producer milk caused by such association to be delivered to such nonpool plant during the delivery period.

§ 932.14 *Other source milk.* "Other source milk" means all skim milk and butterfat other than that contained in producer milk.

§ 932.15 *Producer-handler.* "Producer-handler" means any person who produces milk but receives no milk from producers and operates a route extending into the marketing area.

§ 932.16 *Nonpool plant.* Any milk processing or distributing plant shall be a "nonpool plant" in any delivery period in which it is not a pool plant.

MARKET ADMINISTRATOR

§ 932.20 *Designation.* The agency for the administration of this part shall be a market administrator, selected by the Secretary, who shall be entitled to such compensation as may be determined by, and shall be subject to removal at the discretion of, the Secretary.

§ 932.21 *Powers.* The market administrator shall have the following powers with respect to this part:

(a) To administer its terms and provisions;

(b) To receive, investigate, and report to the Secretary complaints of violations;

(c) To make rules and regulations to effectuate its terms and provisions; and

(d) To recommend amendments to the Secretary.

§ 932.22 *Duties.* The market administrator shall perform all duties necessary to administer the terms and provisions of this part, including, but not limited to, the following:

(a) Within 30 days following the date on which he enters upon his duties, or such lesser period as may be prescribed by the Secretary, execute and deliver to the Secretary a bond, effective as of the date on which he enters upon such duties and conditioned upon the faithful performance of such duties, in an amount and with surety thereon satisfactory to the Secretary;

(b) Employ and fix the compensation of such persons as may be necessary to enable him to administer its terms and provisions;

(c) Obtain a bond in a reasonable amount and with reasonable surety thereon covering each employee who handles funds entrusted to the market administrator;

(d) Pay, out of the funds provided by § 932.86:

(1) The cost of his bond and of the bonds of his employees.

(2) His own compensation, and

(3) All other expenses, except those incurred under § 932.87, necessarily incurred by him in the maintenance and functioning of his office and in the performance of his duties;

(e) Keep such books and records as will clearly reflect the transactions provided for in this part, and, upon request by the Secretary surrender the same to such other person as the Secretary may designate;

(f) Publicly announce, unless otherwise directed by the Secretary, by posting in a conspicuous place in his office and by such other means as he deems appropriate, the name of any person who within 10 days after the day upon which he is required to perform such acts, has not made (1) reports pursuant to § 932.30 or (2) payments pursuant to §§ 932.80 through 932.89;

(g) Submit his books and records to examination by the Secretary and furnish such information and reports as may be requested by the Secretary;

(h) On or before the 12th day after the end of each delivery period report to each cooperative association which so

requests the amount and class utilization of milk caused to be delivered by such association, either directly or from producers who have authorized such association to receive payments for them, to each handler to whom the cooperative sells milk. For the purpose of this report the milk caused to be so delivered by an association shall be prorated to each class in the proportion that the total receipts of milk received from producers by such handler were used in each class;

(i) Audit all reports and payments by each handler by inspection of such handler's records and of the records of any other handler or person upon whose utilization the classification of skim milk and butterfat for such handler depends;

(j) Publicly announce, by posting in a conspicuous place in his office and by such other means as he deems appropriate, the prices determined for each delivery period as follows:

(1) On or before the 5th day after the end of such delivery period, the minimum class prices and the butterfat differential for each class, and

(2) On or before the 13th day after the end of such delivery period, the uniform price computed pursuant to § 932.71 and the butterfat differential computed pursuant to § 932.82 and

(k) Prepare and disseminate to the public such statistics and information as he deems advisable and as do not reveal confidential information.

REPORTS, RECORDS AND FACILITIES

§ 932.30 *Reports of receipts and utilization.* On or before the 7th day after the end of each delivery period each handler, except a producer-handler, shall report to the market administrator in the detail and on forms prescribed by the market administrator:

(a) The quantities of butterfat and the quantities of skim milk contained (1) in (or used in the production of) all receipts within such delivery period of producer milk, skim milk and butterfat in any form from any other handler, and other source milk, and (2) in all producer milk caused to be delivered during such delivery period to a nonpool plant for the account of such handler;

(b) The product pounds of milk products received from any source other than a handler and disposed of in the same form, except milk products covered by the definition of Class II milk disposed of in the form in which received without further processing by the handler;

(c) The utilization of all receipts required to be reported under paragraphs (a) and (b) of this section; and

(d) Such other information with respect to all such receipts and utilization as the market administrator may prescribe.

§ 932.31 *Other reports.* (a) Each producer-handler shall make reports to the market administrator at such time and in such manner as the market administrator may prescribe.

(b) On or before the 22d day after the end of each delivery period each handler who operates a pool plant shall submit to the market administrator such handler's producer payroll for the preceding delivery period, which shall show (1) the total pounds of milk received from each producer and cooperative association and the total pounds of butterfat contained in such milk, (2) the amount of payment to each producer and cooperative association, and (3) the nature and amount of any deductions and charges involved in the payments referred to in subparagraph (2) of this paragraph.

§ 932.32 *Records and facilities.* Each handler shall maintain, and make available to the market administrator or to his representative during the usual hours of business, such accounts and records of his operations and such facilities as are necessary for the market administrator to verify or to establish the correct data with respect to:

(a) The receipts and utilization, in whatever form, of all skim milk and butterfat received, including milk products received and disposed of in the same form;

(b) The weights, samples, and tests for butterfat and for other content of all skim milk and butterfat handled;

(c) Payments to producers and cooperative associations; and

(d) The pounds of skim milk and butterfat contained in or represented by all milk, skim milk, cream and each milk product on hand at the beginning and at the end of each delivery period.

§ 932.33 *Retention of records.* All books and records required to be made available to the market administrator shall be retained by the handler for a period of three years to begin at the end of the month to which such books and records pertain, except that all such books and records pertaining to transactions before August 1, 1946, shall be retained until October 1, 1949: *Provided,* That if, within such three-year period or before October 1, 1949, whichever is applicable, the market administrator notifies the handler in writing that the retention of such books and records, or of specified books and records, is necessary in connection with a proceeding under section 8c (15) (A) of the act or a court action specified in such notice, the handler shall retain such books and records, or specified books and records, until further written notification from the market administrator. In either case the market administrator shall give further written notification to the handler promptly upon the termination of the litigation or when the records are no longer necessary in connection therewith.

CLASSIFICATION

§ 932.40 *Skim milk and butterfat to be classified.* The market administrator shall classify pursuant to § 932.41 through § 932.46:

(a) All skim milk and butterfat, in any form, received within the delivery period by a handler in producer milk, in other source milk, and from another handler; and

(b) All skim milk and butterfat in producer milk caused by a handler to be delivered for his account to a nonpool plant.

§ 932.41 *Classes of utilization.* Subject to the conditions set forth in § 932.43 and § 932.44, the skim milk and butterfat described in § 932.40 shall be classified by the market administrator on the basis of the following classes:

(a) Class I milk shall be all skim milk (including reconstituted skim milk) and butterfat:

(1) Disposed of in fluid form as (i) milk, skim milk, buttermilk, flavored milk, or flavored milk drinks (except as provided in paragraph (b) (2) and (3) of this section); (ii) cream or as any mixture containing cream and milk or skim milk (not including ice cream mix disposed of pursuant to paragraph (b) (4) of this section or any product disposed of in containers or dispensers under pressure for the purpose of dispensing a whipped or aerated product); or (iii) eggnog;

(2) Used to produced concentrated milk disposed of for fluid consumption; or

(3) Not specifically accounted for as any product specified in subparagraphs (1) and (2) of this paragraph or as Class II milk.

(b) Class II milk shall be all skim milk and butterfat:

(1) Used to produce a milk product other than those specified in paragraph (a) (1) and (2) of this section;

(2) Dumped or disposed of for livestock feed as skim milk, flavored milk, flavored milk drinks, or buttermilk;

(3) Disposed of during any of the delivery periods of January through September as bulk milk, skim milk, or cream to any manufacturer of candy, soup, or bakery products who does not dispose of milk in fluid form;

(4) Disposed of as ice cream mix to a commercial processor;

(5) In actual plant shrinkage of producer milk computed pursuant to § 932.42, but not in excess of 2 percent thereof; or

(6) In actual plant shrinkage of other source milk computed pursuant to § 932.42.

§ 932.42 *Shrinkage.* The market administrator shall determine the shrinkage of skim milk and butterfat, respectively, in producer milk and in other source milk in the following manner:

(a) Compute the total shrinkage of skim milk and butterfat, respectively, for each handler; and

(b) Prorate the total shrinkage of skim milk and butterfat, respectively, computed pursuant to paragraph (a) of this section between producer milk and other source milk after deducting receipts from other handlers.

§ 932.43 *Responsibility of handlers and reclassification of milk.* (a) All skim milk and butterfat shall be Class I milk, unless the handler who first receives such skim milk or butterfat proves to the market administrator that such skim milk or butterfat should be classified otherwise.

(b) Any skim milk or butterfat classified (except that transferred to a producer-handler) in one class shall be reclassified if used or reused by such handler or by another handler in another class.

§ 932.44 *Disposition to milk plants.* Skim milk and butterfat disposed of by transfer or diversion from a pool plant to another plant shall be classified as follows:

(a) As Class I milk if disposed of to a pool plant of another handler in the form of milk, skim milk, or cream unless utilization in Class II is mutually indicated in writing to the market administrator by both handlers on or before the 7th day after the end of the delivery period within which the transaction occurred: *Provided*, That skim milk and butterfat so assigned to Class II shall be limited to the amount thereof remaining in such class at the plant of the transferee handler after the subtraction of other source milk pursuant to § 932.46 (a) (2) and (b); and any excess of such skim milk or butterfat, respectively, shall be assigned to Class I.

(b) As Class I milk if disposed of to a producer-handler in the form of milk, skim milk, or cream.

(c) Except as provided in paragraph (d) of this section, as Class I milk if disposed of to a nonpool plant not operated by the handler in the form of milk, skim milk, or cream unless (1) the handler claims Class II on the basis of a utilization mutually indicated in writing to the market administrator by both the transferring handler and receiver on or before the 20th day after the end of the delivery period within which such transfer occurred; (2) such receiver's plant or another nonpool plant to which such receiver transferred milk, skim milk, or cream had actually used during the delivery period in which such milk, skim milk, or cream was received not less than an equivalent amount of skim milk and butterfat in the use mutually indicated in writing by the transferring handler and the receiver; and (3) the receiver or the operator of any other nonpool plant in which utilization is claimed as a basis for classification maintains books and records showing the utilization of all skim milk and butterfat at his plant, which books and records are made available if requested by the market administrator for the purpose of verifying such utilization: *Provided*, That if upon inspection of such books and records the market administrator cannot verify Class II utilization, that portion of skim milk or butterfat for which such utilization cannot be verified shall be classified in Class I.

(d) As Class I milk if disposed of in the form of milk to a plant located 100 miles or more from the City Hall in Fort Wayne, Indiana, by the shortest highway distance as determined by the market administrator; and

(e) Producer milk disposed of by a handler to a nonpool plant operated by such handler shall be classified according to its utilization in such nonpool plant or pursuant to paragraphs (a), (b) and (c) (except for the reference to paragraph (d) therein) of this section if it is transferred from such nonpool plant to another plant: *Provided*, That if the use in or transfer from the nonpool plant of such handler is in conjunction with other source milk, producer milk shall be allocated first to the available quantity of Class II milk and any remaining balance of producer milk shall be allocated to Class I.

§ 932.45 *Computation of skim milk and butterfat in each class.* For each delivery period, the market administrator shall correct for mathematical and for other obvious errors the delivery period report submitted by each handler and compute the total pounds of skim milk and butterfat, respectively, in Class I milk and Class II milk for such handler.

§ 932.46 *Allocation of skim milk and butterfat classified.* (a) The pounds of skim milk remaining in each class after making the following computations shall be the pounds in such class allocated to producer milk:

(1) Subtract plant shrinkage of skim milk pursuant to § 932.41 (b) (5) from the total pounds of skim milk in Class II;

(2) Subtract from the remaining pounds of skim milk in each class, in series beginning with the lowest-priced available use, the pounds of skim milk in other source milk;

(3) Subtract from the remaining pounds of skim milk in each class the skim milk received from other handlers and assigned pursuant to § 932.44;

(4) Add to the remaining pounds of skim milk in Class II milk the pounds subtracted pursuant to subparagraph (1) of this paragraph; or if the remaining pounds of skim milk in all classes exceed the pounds of skim milk in producer milk, subtract such excess from the remaining pounds of skim milk in series beginning with the lowest-priced available use.

(b) Allocate classified butterfat to producer milk according to the method prescribed in paragraph (a) of this section for skim milk.

(c) Determine the weighted average butterfat test of the remaining Class I milk and Class II milk computed pursuant to paragraphs (a) and (b) of this section.

MINIMUM PRICES

§ 932.50 *Basic formula price to be used in determining class prices.* The basic formula price per hundredweight of milk to be used in determining the class prices provided by this section shall be the highest of the prices per hundredweight for milk of 4.0 percent butterfat content determined by the market administrator pursuant to paragraphs (a), (b) and (c) of this section, computed to the nearest tenth of a cent.

(a) The average of the basic (or field) prices per hundredweight reported to have been paid, or to be paid, for milk of 4.0 percent butterfat content received from farmers during the delivery period at the following plants or places for which prices have been reported to the market administrator or to the Department:

Present operator	*Location*
Defiance Milk Products Co.	Defiance, Ohio.
Pet Milk Co.	Angola, Ind.
Pet Milk Co.	Garrett, Ind.
Kraft-Phenix Cheese Corp.	Kendallville, Ind.

(b) The price per hundredweight computed as follows:

(1) Multiply by six the average daily wholesale price per pound of 92-score butter in the Chicago market as reported by the Department during the delivery period;

(2) Add an amount computed as follows: From the simple average of the daily prices paid per pound, using the midpoint of any price range as one price, for Wisconsin state brand Cheddars in cars or truckloads, f. o. b. Wisconsin assembling points as reported by the United States Department of Agriculture for the trading days during the delivery period, subtract 1.3 cents, and multiply by 2.4; and

(3) Divide by seven, add 30 percent thereof, and then multiply by 4.0.

(c) The price per hundredweight computed by adding together the plus values pursuant to subparagraphs (1) and (2) of this paragraph:

(1) From the average daily wholesale price per pound of 92-score butter in the Chicago market, as reported by the Department during the delivery period, subtract three cents, add 20 percent thereof, and then multiply by 4.0; and

(2) From the arithmetical average of the carlot prices per pound for nonfat dry milk solids (not including that specifically designated animal feed) spray and roller process, f. o. b. manufacturing plants in the Chicago area as published by the Department during the delivery period, deduct 5.5 cents, multiply by 8.5 and then multiply by 0.96, except that if such agency does not publish such prices f. o. b. manufacturing plants, there shall be used for the purpose of this computation the arithmetical average of the carlot prices thereof, delivered at Chicago, Illinois, as published weekly by such agency during the delivery period; and in the latter event the figure "7.5" shall be substituted for "5.5" in the above formula.

§ 932.51 *Class I milk prices.* Subject to the provisions of § 932.54 and § 932.55 the minimum price per hundredweight, on a 4.0 percent butterfat content basis, to be paid by each handler for producer milk received and classified as Class I milk shall be the basic formula price computed pursuant to § 932.50 adjusted as follows:

(a) Add (1) $0.60 during each of the delivery periods of April, May and June; (2) $1.15 during each of the delivery periods of October, November and December; and (3) $1.00 during each of the other delivery periods.

(b) Add or subtract a "supply-demand adjustment" computed as follows:

(1) Divide the total gross volume of Class I milk in the first and second delivery period preceding by the total volume of producer milk for the same delivery periods multiply the result by 100, and round to the nearest whole number. The result shall be known as the "Class I utilization percentage."

(2) Compute a "net utilization percentage" by subtracting from the Class I utilization percentage as computed in subparagraph (1) of this paragraph the

"standard utilization percentage" shown below:

Delivery period for which the class price is being computed:	*Standard utilization percentage*
January	86
February	82
March	78
April	73
May	68
June	60
July	54
August	56
September	61
October	70
November	81
December	87

(3) Determine the amount of the supply-demand adjustment as follows:

If net utilization percentage is—	Supply-demand adjustment for specified delivery periods is—		
	Jan., Feb., Mar., Aug., and Sept.	Apr., May, June, and July	Oct., Nov., and Dec.
	Cents	*Cents*	*Cents*
+12 or over	+38	+25	+50
+9 or +10	+28	+19	+38
+6 or +7	+20	+13	+26
+3 or +4	+10	+7	+14
+1 or −1	0	0	0
−3 or −4	−10	−14	−7
−6 or −7	−20	−26	−13
−9 or −10	−28	−38	−19
−12 or −13	−38	−50	−25
−15 or −16	−38	−50	−31
−18 or −19	−38	−50	−37
−21 or −22	−38	−50	−43
−24 or under	−38	−50	−50

When the net utilization percentage does not fall within a tabulated bracket, the adjustment shall be determined by the adjacent bracket which is the same or nearest to the bracket used in the previous month.

§ 932.52 *Class II milk prices.* Subject to the provisions of § 932.54 and § 932.55 the minimum price per hundredweight on a 4.0 percent butterfat content basis to be paid by each handler for producer milk received and classified as Class II milk shall be the basic formula price.

§ 932.53 *Butterfat differentials to handlers.* If for any handler, the weighted average butterfat test of his classified producer milk is more or less than 4.0 percent, there shall be added to or subtracted from, as the case may be, the price for such class, for each one-tenth of one percent that such weighted average butterfat test is above or below 4.0 percent, a butterfat differential (computed to the nearest tenth of a cent) calculated by the market administrator for such class as follows:

(a) *Class I milk.* Multiply by 1.3 the average daily wholesale price per pound of 92-score butter in the Chicago market as reported by the Department during the delivery period and divide the result by 10.

(b) *Class II milk.* Multiply by 1.15 the average daily wholesale price per pound of 92-score butter in the Chicago market as reported by the Department during the delivery period and divide the result by 10.

§ 932.54 *Emergency price provisions.* Whenever the provisions of this part require the market administrator to use a specific price (or prices) for milk or any milk product for the purpose of determining class prices or for any other purpose, the market administrator shall add to the specified price the amount of any subsidy or other similar payment being made by any Federal agency in connection with the milk, or product, associated with the price specified: *Provided,* That if for any reason the price specified is not reported or published as indicated, the market administrator shall use the applicable maximum uniform price established by regulations of any Federal agency plus the amount of any subsidy or other similar payment: *Provided further,* That if the specified price is not reported or published and there is no applicable maximum uniform price, or if the specified price is not reported or published and the Secretary determines that the market price is below the applicable maximum uniform price, the market administrator shall use a price determined by the Secretary to be equivalent to or comparable with the price specified.

APPLICATION OF PROVISIONS

§ 932.60 *Producer-handlers.* Sections 932.40 through 932.46, 932.50 through 932.54, 932.70 through 932.72, and 932.80 through 932.89 shall not apply to a producer-handler.

§ 932.61 *Exempt milk.* Milk received by a handler the handling of which the Secretary determines to be subject to the pricing and payment provisions of any other Federal milk marketing agreement or order issued pursuant to the act for any fluid milk marketing area shall not be subject to the pricing and payment provisions of this part.

§ 932.62 *Milk caused to be delivered by cooperative associations.* A cooperative association shall be deemed to be a handler pursuant to § 932.10 (b) (1), with respect to producer milk caused by it to be delivered to a pool plant, only for the purpose of making such payments to the market administrator as are required of such association pursuant to the last proviso of § 932.84 (a).

DETERMINATION OF UNIFORM PRICE

§ 932.70 *Computation of value of milk.* The value of producer milk received during each delivery period by each handler shall be a sum of money computed by the market administrator by multiplying the pounds of such milk in each class for the delivery period, by the applicable class prices, and adding together the resulting amounts: *Provided,* That if a handler, after subtracting other source milk and receipts from other handlers, has disposed of skim milk or butterfat in excess of the skim milk or butterfat which, on the basis of his report for the delivery period pursuant to § 932.30, has been credited to producers as having been received from them, there shall be added an amount computed by multiplying the pounds in each class as subtracted pursuant to § 932.46 (a) (4) and (b) by the applicable class prices.

§ 932.71 *Computation of uniform price.* For each delivery period, the market administrator shall compute the "uniform price" per hundredweight for milk, on the basis of 4.0 percent butterfat content, received from producers as follows:

(a) Combine into one total the values computed pursuant to § 932.70, for all handlers who made the reports prescribed by § 932.30 except those in default of the payments prescribed in § 932.84 for the preceding delivery period, the amounts computed pursuant to the first proviso contained in § 932.84 (a), and the amounts computed pursuant to § 932.84 (b).

(b) Add an amount representing the cash balance on hand in the producer-settlement fund, less the total amount of contingent obligations to handlers pursuant to § 932.85;

(c) Subtract, if the weighted average butterfat test of producer milk represented by the values included under paragraph (a) of this section is greater than 4.0 percent, or add, if such butterfat test is less than 4.0 percent, an amount computed by: Multiplying the amount by which its weighted average butterfat test varies from 4.0 percent by the butterfat differential computed pursuant to § 932.82, and multiplying the resulting figure by the total hundredweight of such milk;

(d) Divide the resulting amount by the total hundredweight of producer milk represented by the values included in paragraph (a) of this section; and

(e) Subtract not less than 4 cents nor more than 5 cents (adjusting to the nearest one-tenth cent) from the amount per hundredweight computed under paragraph (d) of this section.

§ 932.72 *Notification of handlers.* On or before the 11th day after the end of each delivery period, the market administrator shall mail to each handler at his last known address, a statement showing (a) the amount and value of his milk in each class and the total thereof; (b) the applicable minimum class prices and uniform price; (c) the amount due such handler or the amount to be paid by such handler, as the case may be, pursuant to § 932.84 and § 932.85; and (d) the amount to be paid by each handler pursuant to §§ 932.80 (a) and (b), 932.86 and 932.87.

PAYMENTS

§ 932.80 *Time and method of final payment.* Each handler shall make payments, after deducting the amount of the payments made pursuant to § 932.81, as follows:

(a) On or before the 17th day after the end of each delivery period, to each producer, except producers for whom payment is received from the handler by a cooperative association pursuant to paragraph (b) of this section, at not less than the uniform price for such delivery period pursuant to § 932.71 adjusted by the producer butterfat differential pursuant to § 932.82, for all milk received from such producer during such delivery period: *Provided,* That if by such date such handler has not received full payment for such delivery period pursuant to § 932.85, he may reduce such payments uniformly per hundredweight for all producers by an amount not in excess of the per hundredweight reduction in payment from the market administrator; however, the handler shall make

such balance of payment to those producers to whom it is due on or before the date for making payments pursuant to this paragraph next following that on which such balance of payment is received from the market administrator.

(b) On or before the 15th day after the end of each delivery period, to a cooperative association with respect to producer milk caused by it to be delivered to such handler during such delivery period, not less than the value of such milk computed at the minimum class prices. For the purpose of determining the classification of milk caused to be so delivered by a cooperative association to a handler, such milk shall be ratably apportioned among the receiving handler's total Class I milk and Class II milk as determined pursuant to § 932.46.

§ 932.81 *Partial payments.* (a) On or before the last day of each delivery period, each handler shall make payment, except as set forth in paragraph (b) of this section, to each producer, for the milk received from such producer by such handler during the first 15 days of such delivery period, at not less than the uniform price for the preceding delivery period.

(b) On or before the day immediately preceding the last day of each delivery period, each handler shall make payment to a cooperative association, for milk caused to be delivered from producers' farms to such handler by such association during the first 15 days of such delivery period, at not less than the uniform price of the preceding delivery period.

§ 932.82 *Producer butterfat differential.* In making payments pursuant to § 932.80 (a) there shall be added to, or subtracted from, the uniform price for milk of 4.0 percent butterfat content, for each one-tenth of one percent of butterfat content in such producer milk above or below 4.0 percent, as the case may be, an amount computed by multiplying the average daily wholesale price per pound of 92-score butter at Chicago, as reported by the Department for the delivery period, by 1.15, dividing by 10, and rounding to the nearest tenth of a cent.

§ 932.83 *Producer-settlement fund.* The market administrator shall establish and maintain a separate fund known as the "producer-settlement fund" into which he shall deposit all payments made by handlers pursuant to § 932.84 and out of which he shall make all payments to handlers pursuant to § 932.85.

§ 932.84 *Payments to the producer-settlement fund.* On or before the 15th day after the end of each delivery period, handlers shall pay to the market administrator as follows:

(a) Handlers who operate pool plants shall pay the amount by which the utilization value of producer milk received by such handler during such delivery period is greater than the value of such milk computed at the uniform price pursuant to § 932.71 adjusted by the butterfat differential provided by § 932.82: *Provided*, That handlers who operate pool plants and who receive during such delivery period other source milk which is classified as Class I shall pay an amount equal to the difference between the value of such milk computed at the Class I price and butterfat differential and the value of such milk computed at the Class II price and butterfat differential: *And provided further*, That with respect to milk for which payment is made by a handler to a cooperative association pursuant to § 932.80 (b), the association, in turn, shall pay to the market administrator on or before the 16th day after the end of the delivery period, the amount by which the utilization value of such milk is greater than its value computed at the uniform price pursuant to § 932.71 adjusted by the butterfat differential provided by § 932.82.

(b) Handlers who operate nonpool plants from which milk received during such delivery period was disposed of as Class I milk on a route (or routes) operated wholly or partially within the marketing area from such plant shall pay an amount equal to the difference between the value of such milk computed at the Class I price and butterfat differential and the value of such milk computed at the Class II price and butterfat differential.

§ 932.85 *Payments out of the producer-settlement fund.* On or before the 17th day after the end of each delivery period, the market administrator shall pay to each handler the amount by which the utilization value of producer milk received by such handler during such delivery period is less than the value of such milk computed at the uniform price pursuant to § 932.71 adjusted by the butterfat differential provided by § 932.82, less any unpaid obligations of such handler to the market administrator pursuant to § 932.84, § 932.86, § 932.87, and § 932.88: *Provided*, That with respect to milk for which payment is made by a handler to a cooperative association pursuant to § 932.80 (b), the market administrator shall pay, on or before the 17th day after the end of each delivery period, to such association the amount by which the utilization value of such milk is less than its value computed at the uniform price pursuant to § 932.71 adjusted by the butterfat differential provided by § 932.82: *And provided further*, That if the balance in the producer-settlement fund is insufficient to make all payments pursuant to this paragraph, the market administrator shall reduce uniformly such payments and shall complete such payments as soon as the necessary funds are available.

§ 932.86 *Expense of administration.* As his pro rata share of the expense incurred pursuant to § 932.22 (d) each handler shall pay the market administrator, on or before the 15th day after the end of each delivery period, 4 cents per hundredweight, or such lesser amount as the Secretary from time to time may prescribe with respect to all receipts within the delivery period of (a) producer milk (including such handler's own production), and (b) other source milk classified as Class I milk pursuant to § 932.41 (a) (1) and (2).

§ 932.87 *Marketing services.* (a) Except as set forth in paragraph (b) of this section, each handler, in making payments to producers pursuant to § 932.80 (a), shall make a deduction of 4 cents per hundredweight of milk, or such lesser deduction as the Secretary from time to time may prescribe, with respect to the following:

(1) All milk received from producers at a plant not operated by a cooperative association; and

(2) All milk received at a plant operated by a cooperative association from producers who are not members of such association.

Such deductions shall be paid by the handler to the market administrator on or before the 15th day after the end of each delivery period. Such moneys shall be expended by the market administrator for verification of weights, samples, and tests of milk received from such producers and in providing for market information to such producers; such services to be performed in whole or in part by the market administrator or by an agent engaged by and responsible to him.

(b) In the case of each producer (1) who is a member of, or who has given written authorization for the rendering of marketing services and the taking of deduction therefor to a cooperative association, (2) whose milk is received at a plant not operated by such association, and (3) for whom the Secretary determines that such association is performing the services described in paragraph (a) of this section, each handler shall deduct, in lieu of the deduction specified under paragraph (a) of this section, from the payments made pursuant to § 932.80 (a) the amount per hundredweight on milk authorized by such producer and shall pay over, on or before the 15th day after the end of such delivery period, such deduction to the association entitled to receive it under this paragraph.

§ 932.88 *Adjustments of accounts.* (a) Whenever audit by the market administrator of any handler's reports, books, records, or accounts discloses errors resulting in moneys due (1) the market administrator from such handler, (2) such handler from the market administrator, or (3) any producer or cooperative association from such handler, the market administrator shall promptly notify such handler of any such amount due; and payment thereof shall be made on or before the next date for making payment set forth in the provision under which such error occurred following the 5th day after such notice.

(b) Any unpaid obligation of a handler or of the market administrator pursuant to §§ 932.80 through 932.87 or to paragraph (a) of this section shall bear interest at the rate of one-half of one percent per month, such interest to accrue on the 5th day of the calendar month next following the due date of such obligation and on the first day of each calendar month thereafter until such obligation is paid.

§ 932.89 *Termination of obligations.* The provisions of this section shall apply to any obligation under this part for the payment of money irrespective of when such obligation arose, except an obliga-

tion involved in an action instituted before August 1, 1949, under section 8c (15) (A) of the act or before a court.

(a) The obligation of any handler to pay money required to be paid under the terms of this part shall, except as provided in paragraphs (b) and (c) of this section, terminate two years after the last day of the calendar month during which the market administrator receives the handler's utilization report on the milk involved in such obligation, unless within such two-year period the market administrator notifies the handler in writing that such money is due and payable. Service of such notice shall be complete upon mailing to the handler's last known address, and it shall contain but need not be limited to, the following information:

(1) The amount of the obligation;

(2) The month(s) during which the milk, with respect to which the obligation exists, was received or handled; and

(3) If the obligation is payable to one or more producers or to an association of producers, the name of such producer(s) or association of producers, or if the obligation is payable to the market administrator, the account for which it is to be paid.

(b) If a handler fails or refuses with respect to any obligation under this part, to make available to the market administrator or his representatives all books and records required by this part to be made available, the market administrator may, within the two-year period provided for in paragraph (a) of this section, notify the handler in writing of such failure or refusal. If the market administrator so notifies a handler, the said two-year period with respect to such obligation shall not begin to run until the first day of the calendar month following the month during which all such books and records pertaining to such obligation are made available to the market administrator or his representatives.

(c) Notwithstanding the provisions of paragraphs (a) and (b) of this section, a handler's obligation under this part to pay money shall not be terminated with respect to any transaction involving fraud or willful concealment of a fact, material to the obligation, on the part of the handler against whom the obligation is sought to be imposed.

(d) Any obligation on the part of the market administrator to pay a handler any money which such handler claims to be due him under the terms of this part shall terminate two years after the end of the calendar month during which the milk involved in the claim was received if an underpayment is claimed, or two years after the end of the calendar month during which the payment (including deduction or set-off by the market administrator) was made by the handler if a refund on such payment is claimed, unless such handler, within the applicable period of time, files, pursuant to section 8c (15) (A) of the act, a petition claiming such money.

EFFECTIVE TIME, SUSPENSION, OR TERMINATION

§ 932.90 *Effective time.* The provisions of this part, or of any amendment to this part, shall become effective at such time as the Secretary may declare and shall continue in force until suspended or terminated.

§ 932.91 *Suspension or termination.* The Secretary shall, whenever he finds that this part, or any provision thereof, obstructs or does not tend to effectuate the declared policy of the act, terminate or suspend the operation of this part or any such provision thereof.

§ 932.92 *Continuing obligations.* If, upon the suspension or termination of any or all provisions of this part, there are any obligations thereunder the final accrual or ascertainment of which requires further acts by any person (including the market administrator), such further acts shall be performed notwithstanding such suspension or termination.

§ 932.93 *Liquidation.* Upon the suspension or termination of the provisions of this part, except this section, the market administrator, or such other liquidating agent as the Secretary may designate, shall, if so directed by the Secretary, liquidate the business of the market administrator's office, dispose of all property in his possession or control, including accounts receivable, and execute and deliver all assignments or other instruments necessary or appropriate to effectuate any such disposition. If a liquidating agent is so designated, all assets, books, and records of the market administrator shall be transferred promptly to such liquidating agent. If, upon such liquidation, the funds on hand exceed the amounts required to pay outstanding obligations of the office of the market administrator and to pay necessary expenses of liquidation and distribution, such excess shall be distributed to contributing handlers and producers in an equitable manner.

MISCELLANEOUS PROVISIONS

§ 932.100 *Agents.* The Secretary may, by designation in writing, name any officer or employee of the United States to act as his agent or representative in connection with any of the provisions of this part.

§ 932.101 *Separability of provisions.* If any provision of this part, or its application to any person or circumstances, is held invalid, the application of such provision, and of the remaining provisions of this part, to other persons or circumstances shall not be affected thereby.

Issued at Washington, D. C., this 27th day of May 1952 to be effective on and after July 1, 1952.

[SEAL] C. J. McCORMICK,
Acting Secretary of Agriculture.

[F. R. Doc. 52-5997; Filed, May 29, 1952; 8:53 a. m.]

[Lemon Reg. 437]

PART 953—LEMONS GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF SHIPMENTS

§ 953.544 *Lemon Regulation 437—(a) Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 53, as amended (7 CFR Part 953; 14 F. R. 3612), regulating the handling of lemons grown in the State of California or in the State of Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and upon the basis of the recommendation and information submitted by the Lemon Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of the quantity of such lemons which may be handled, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective as hereinafter set forth. Shipments of lemons, grown in the State of California or in the State of Arizona, are currently subject to regulation pursuant to said amended marketing agreement and order; the recommendation and supporting information for regulation during the period specified herein was promptly submitted to the Department after an open meeting of the Lemon Administrative Committee on May 28, 1952; such meeting was held, after giving due notice thereof to consider recommendations for regulation, and interested persons were afforded an opportunity to submit their views at this meeting; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such lemons; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period hereinafter specified; and compliance with this section will not require any special preparation on the part of persons subject thereto which cannot be completed by the effective time thereof.

(b) *Order.* (1) The quantity of lemons grown in the State of California or in the State of Arizona which may be handled during the period beginning at 12:01 a. m., P. s. t., June 1, 1952, and ending at 12:01 a. m., P. s. t., June 8, 1952, is hereby fixed as follows:

(i) District 1: Unlimited movement;

(ii) District 2: 450 carloads;

(iii) District 3: Unlimited movement.

(2) The prorate base of each handler who has made application therefor, as provided in the said amended marketing agreement and order, is hereby fixed in accordance with the prorate base

schedule which is set forth below and made a part hereof by this reference.

(3) As used in this section, "handled," "handler," "carloads," "prorate base," "District 1," "District 2" and "District 3," shall have the same meaning as when used in the said amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup., 608c)

Done at Washington, D. C., this 29th day of May 1952.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Branch, Production and Marketing Administration.

PRORATE BASE SCHEDULE

DISTRICT NO. 2

Storage Date: May 25, 1952

[12:01 a. m. June 1, 1952, to 12:01 a. m. June 15, 1952]

Handler	Prorate base (percent)
Total	100.000
American Fruit Growers, Inc., Corona	.470
American Fruit Growers, Inc., Fullerton	.765
American Fruit Growers, Inc., Upland	.438
Eadington Fruit Co.	.366
Ventura Coastal Lemon Co.	1.665
Ventura Pacific Co.	2.430
Glendora Lemon Growers Association	1.461
La Verne Lemon Association	.716
La Habra Citrus Association	1.701
Yorba Linda Citrus Association	.807
Escondido Lemon Association	3.726
Alta Loma Heights Citrus Association	.635
Etiwanda Citrus Fruit Association	.355
Mountain View Fruit Association	.274
Old Baldy Citrus Association	.775
San Dimas Lemon Association	1.245
Upland Lemon Growers Association	5.532
Central Lemon Association	1.343
Irvine Citrus Association, The	1.263
Placentia Mutual Orange Association	1.037
Corona Citrus Association	.628
Corona Foothill Lemon Co.	2.781
Jameson Co.	.894
Arlington Heights Citrus Co.	1.543
College Heights Orange & Lemon Association	2.949
Chula Vista Citrus Association, The	1.319
Escondido Cooperative Citrus Association	.267
Fallbrook Citrus Association	2.480
Lemon Grove Citrus Association	.451
Carpinteria Lemon Association	2.651
Carpinteria Mutual Citrus Association	2.484
Goleta Lemon Association	3.154
Johnson Fruit Co.	4.257
Hazeltine Packing Co.	.689
North Whittier Heights Citrus Association	.801
San Fernando Heights Lemon Association	1.058
Sierra Madre-Lamanda Citrus Association	.663
Briggs Lemon Association	2.245
Culbertson Lemon Association	1.565
Fillmore Lemon Association	1.111
Oxnard Citrus Association	5.001
Rancho Sespe	1.046
Santa Clara Lemon Association	3.148
Santa Paula Citrus Fruit Association	2.730
Saticoy Lemon Association	3.025
Seaboard Lemon Association	3.958
Somis Lemon Association	3.343

PRORATE BASE SCHEDULE—Continued

DISTRICT NO. 2—continued

Handler	Prorate base (percent)
Ventura Citrus Association	0.946
Ventura County Citrus Association	.260
Limoneira Co.	3.179
Teague-McKevett Association	.746
East Whittier Citrus Association	.913
Leffingwell Rancho Lemon Association	1.049
Murphy Ranch Co.	2.360
Chula Vista Mutual Lemon Association	.685
Index Mutual Association	.435
La Verne Cooperative Citrus Association	2.911
Orange Belt Fruit Distributors	.697
Ventura County Orange & Lemon Association	1.950
Whittier Mutual Orange & Lemon Association	.163
Allen, Floyd L.	.000
Evans Brothers Packing Co.	.000
Huarte, Joseph D.	.000
Latimer, Harold	.028
MacDonald Fruit Co.	.000
Paramount Citrus Association, Inc.	.232
Torn Ranch	.001
Valdora, Albert	.000

[F. R. Doc. 52-6075; Filed, May 29, 1952; 11:25 a. m.]

TITLE 8—ALIENS AND NATIONALITY

Chapter I—Immigration and Naturalization Service, Department of Justice

Subchapter B—Immigration Regulations

PART 108—RECORDING OF ARRIVALS, DEPARTURES, AND REGISTRATIONS

PART 166—ALIENS' BORDER CROSSING IDENTIFICATION CARDS

DESIGNATION OF ALIEN REGISTRATION RECEIPT CARD AS RESIDENT ALIEN'S BORDER CROSSING IDENTIFICATION CARD

MAY 5, 1952.

The following amendments to Chapter I, Title 8 of the Code of Federal Regulations, are hereby prescribed:

1. Section 108.8 is amended to read as follows:

§ 108.8 *Immigrants; surrender of cards at time of departure.* If an alien in possession of Form I–151 or any other form of alien registration receipt card, or in possession of an immigrant identification card, certificate of registry, or certificate of lawful entry—issued to him—departs permanently from the United States, he shall surrender such cards and certificates to an immigration officer at the time of departure and the cards and certificates shall be forwarded to the Central Office with Form I–407. If the holder of a resident alien's border crossing identification card—issued to him—departs permanently from the United States, he shall at the time of departure surrender such card to an immigration officer for cancellation and destruction in accordance with the provisions of § 166.3 of this chapter.

2. Section 166.1 is amended to read as follows:

§ 166.1 *Resident alien's border crossing identification card; designation of Form I–151; application.* Any alien registration receipt card issued on Form I–151 on or after September 10, 1946, shall constitute a resident alien's border crossing card. Any alien lawfully admitted to the United States for permanent residence who is not in possession of a Form I–151 issued on or after September 10, 1946, may apply for a Form I–151 in accordance with the provisions of § 170.9 of this chapter.

3. Section 166.2 is amended to read as follows:

§ 166.2 *Resident alien's border crossing identification card; use.* The rightful holder of an alien registration receipt card on Form I–151 may present that form in lieu of an immigration visa or reentry permit when applying for admission at any land or water port of entry or international airport in the continental United States, Alaska, or Hawaii, as a returning legal resident after an absence from the United States of not more than six months: *Provided*, That during such absence he shall not have visited any foreign territory other than Canada or Mexico. The presentation of Form I–151 shall not relieve the holder from establishing that he is not subject to exclusion from the United States under the applicable provisions of the immigration laws or regulations.

CROSS REFERENCE: For permits to enter and passports, see Part 175 of this chapter.

4. Section 166.3 is amended to read as follows:

§ 166.3 *Resident alien's border crossing identification card; extension of revalidation of Form I–187; validity; cancellation.* (a) A resident alien's border crossing identification card issued on Form I–187 shall not be revalidated if the alien is in possession of Form I–151 but shall be surrendered to an immigrant inspector and returned to the office of issuance for cancellation and destruction.

(b) An alien in possession of an alien's border crossing identification card issued on Form I–187 who does not have in his possession a Form I–151, may apply to any immigration and naturalization field office in the continental United States, Alaska, or Hawaii for revalidation of such card either before or after its expiration. Such card may be revalidated by an immigrant inspector for an additional period or periods not exceeding six months each but no such revalidation shall extend beyond June 30, 1954. An expired card may be revalidated if the rightful holder applies for admission to the United States at a port of entry or for preexamination at a United States immigration station in Canada on or before June 30, 1954, is found to be admissible, satisfactorily establishes that he has not abandoned his residence in the United States and that he has not been absent from the United States for more than sixty days. Each additional period of validity shall commence on the date of revalidation. No card issued before November 14, 1941, shall be revalidated notwithstanding any revalidation thereof which may have been granted.

(c) Any canceled resident alien's border crossing identification card issued before November 14, 1941, which comes

to the attention of an officer of the Service shall be obtained from the holder and returned to the original issuing office for destruction. Any valid or expired resident alien's border crossing identification card which was issued on or after November 14, 1941, and which is found in the possession of an alien who is making improper use of the card, shall be obtained from the holder and returned to the original issuing office for cancellation and destruction, together with a report of the reasons therefor.

5. Section 166.4, *Resident alien's border crossing identification card; use,* is revoked.

6. Section 166.5, *Resident alien's border crossing identification card; extension or revalidation,* is revoked.

7. Section 166.6, *Resident alien's border crossing identification card; cancellation,* is revoked.

8. Section 166.12 is amended to read as follows:

§ 166.12 *Nonresident alien's border crossing identification card; application; photographs.* Application for a nonresident alien's border crossing identification card shall be made upon Form I–190 at a United States immigration and naturalization field office located at any land or water port of entry or international airport in the continental United States or Alaska or at any United States immigration station located in Canada. The applicant shall appear in person and shall execute his application under oath or affirmation before an immigrant inspector. The applicant shall furnish a photograph prepared in accordance with Part 364 of this chapter. If, because of unusual circumstances, it would be a hardship for the applicant to obtain such a photograph, the immigrant inspector considering the application may, in his discretion, waive the furnishing of the photograph.

9. Section 166.14 is amended to read as follows:

§ 166.14 *Nonresident alien's border crossing identification card; use.* The rightful holder of a nonresident alien's border crossing identification card issued pursuant to § 166.13, or by a United States diplomatic or consular officer may present such card in lieu of a consular visa, if that document be required, when arriving direct from Canada or Mexico and applying for admission to the United States at any land or water port of entry or international airport in the continental United States or Alaska. The presentation of a nonresident alien's border crossing identification card shall not otherwise relieve the holder from establishing that he is not subject to exclusion from the United States under the applicable provisions of the immigration laws or regulations.

This order shall become effective on the date of its publication in the FEDERAL REGISTER. Compliance with the provisions of section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1003) relative to notice of proposed rule making and delayed effective date is unnecessary in this instance because the rules prescribed by the order, insofar as they do not relate to matters of agency management, relieve restrictions and are clearly advantageous to persons affected thereby.

(Sec. 23, 39 Stat. 892, sec. 24, 43 Stat. 166, sec. 37, 54 Stat. 675; 8 U. S. C. 102, 222, 458)

ARGYLE R. MACKEY,
Commissioner,
Immigration and Naturalization.

Approved: May 21, 1952.

PHILIP B. PERLMAN,
Acting Attorney General.

[F. R. Doc. 52–5980; Filed, May 29, 1952; 8:52 a. m.]

Subchapter D—Nationality Regulations

PART 349—RETENTION OF FOREIGN POLITICAL STATUS: GUAM

DECLARATION TO RETAIN FOREIGN ALLEGIANCE

MAY 7, 1952.

The following part is added to Chapter I, Title 8 of the Code of Federal Regulations:

Sec.
349.1 Persons eligible.
349.2 Preliminary application form; filing; examination.
349.3 Declaration form; execution; filing.
349.4 Loss of United States nationality.

AUTHORITY: §§ 349.1 to 349.4 issued under secs. 37, 327, 54 Stat. 675, 1150; 8 U. S. C. 458, 727. Interpret or apply sec. 4, 64 Stat. 384; 8 U. S. C. 606.

§ 349.1 *Persons eligible.* A citizen of the United States of the class described in section 206 (a) (1), 206 (a) (2), or 206 (b) of the Nationality Act of 1940, as amended (sec. 4, Pub. Law 630, 81st Cong.; 8 U. S. C. 606), who is also a citizen or national of a country other than the United States, and who desires to retain his status as a citizen or national of such other country shall, prior to August 1, 1952, make a declaration under oath of such desire in accordance with the provisions of this part.

§ 349.2 *Preliminary application form; filing; examination.* A person described in § 349.1 shall execute preliminary application Form N–307 in accordance with the instructions contained therein and submit it to the district director, Immigration and Naturalization Service, Honolulu, Hawaii. The applicant shall be notified in writing when to appear before a representative of the Service at a place convenient to the applicant, for examination as to his eligibility to make the declaration and assistance in filing the declaration.

§ 349.3 *Declaration form; execution; filing.* The declaration to retain foreign allegiance shall be made and executed by the applicant under oath on Form N–308, in triplicate, before a representative of the Service. The declaration shall be filed by such representative with the district director, Immigration and Naturalization Service, Honolulu, Hawaii. No charge shall be made for the filing of Form N–308. The district director shall retain the original Form N–308 and forward the duplicate to the Commissioner, and the triplicate to the Department of State.

§ 349.4 *Loss of United States nationality.* From and after making and executing Form N–308, as provided in § 349.3, the applicant shall cease to be a national of the United States.

This order shall become effective on the date of its publication in the FEDERAL REGISTER. Compliance with the provisions of section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1003) relative to notice of proposed rule making and delayed effective date is unnecessary in this instance because the regulations prescribed by the order merely provide administrative means whereby a right granted by statute may be exercised.

ARGYLE R. MACKEY,
Commissioner,
Immigration and Naturalization.

Approved: May 21, 1952.

PHILIP B. PERLMAN,
Acting Attorney General.

[F. R. Doc. 52–5979; Filed, May 29, 1952; 8:52 a. m.]

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign and Domestic Commerce, Department of Commerce

Subchapter A—Office of Business Economics

PART 302—ANNUAL REPORTING OF REVENUES FOR CARRYING IMPORTS TO, AND EXPENDITURES IN, THE UNITED STATES OF SHIPPING AND AIR TRANSPORT OPERATORS OF FOREIGN NATIONALITY

Notice of proposed rule making in this matter was published in the FEDERAL REGISTER on March 7, 1952 (17 F. R. 2020). All views and recommendations relative to the proposed regulation have been considered, and certain ones adopted, to accept consolidated reports in certain cases.

Pursuant to Executive Order 10033 of February 8, 1949 (14 F. R. 561), the National Advisory Council on International Monetary and Financial Problems has determined that the information required under this regulation is essential in order that the United States Government may compile current statistics on the balance of payments for the use of the United States Government and to be submitted to the International Monetary Fund in accordance with their requests submitted under section 8 of the Bretton Woods Agreements Act (59 Stat. 515, 22 U. S. C. 286f).

In accordance with sections 2 (b) and 2 (c) of Executive Order 10033, the Director of the Bureau of the Budget has designated the Commerce Department as the Federal executive agency to collect balance of payments data and I, as Secretary of Commerce, have assigned this responsibility to the Office of Business Economics, Department of Commerce.

Insofar as the Administrative Procedure Act may apply to this reporting of revenues and expenditures, I find that

because of the nature of such reporting and the fact that by the terms of the rules themselves action is postponed for 30 days, it is impracticable and no good purpose will be served in issuing these rules under the effective date limitation of section 4 (c) of the Administrative Procedure Act, and such rules are, therefore, effective forthwith.

Dated: May 28, 1952.

CHARLES SAWYER,
Secretary of Commerce.

Sec.
302.1 Who must report.
302.2 Forms to be used.
302.3 Information to be furnished.
302.4 Time and place of filing reports.

AUTHORITY: §§ 302.1 to 302.4 issued under R. S. 161, sec. 8, 59 Stat. 515; 5 U. S. C. 22, 22 U. S. C. 286f. E. O. 10033, Feb. 8, 1949, 14 F. R. 561; 3 CFR, 1949 Supp.

§ 302.1 *Who must report.* (a) (1) A report is required from or on behalf of every foreign individual or organization incorporated, licensed or otherwise granted permission in countries other than the United States to operate vessels or aircraft if engaged in carrying goods or passengers to or from the United States. Agents or operating agents must respond where acting for foreign operators, unless the operator has his own office in the United States to which the agent is accountable or unless the operator elects to report directly from his home office.

(2) The Department of Commerce may in lieu of individual reports required under this part, accept consolidated reports from foreign governments covering the operations of their national shipping concerns when, in its discretion, such consolidated reports would provide the information required by this part. Where such reports are accepted, the individual reports from operators or their agents will not be required.

(b) The foreign operator, for purposes of this part, means the owner, managing or operating owner, chartered owner, or subchartered owner who enters into and carries out any form of transportation contract with the shippers of merchandise or with passengers.

(c) If foreign-owned vessels or aircraft are chartered to other foreign operators, the owner should report his expenses in the United States, if any, and the operator should report the freight or charter revenue earned from the shippers of merchandise and his expenses in the United States.

(d) If foreign-owned vessels or aircraft are chartered to a United States operator, the owner should report his expenses in the United States, if any.

(e) Reports submitted by agents should include all disbursements accounted for directly by them to the foreign company at its foreign office; if subagents report through a principal agent in the same or another location, the principal agent should file a consolidated report on behalf of the foreign company.

§ 302.2 *Forms to be used.* Vessel operators shall report on Form BE-29,[1] Aircraft operators shall report on Form BE-36.[1]

§ 302.3 *Information to be furnished.* The information required for balance-of-payments purposes consists of the earnings of foreign operators from the carriage of imports into the United States and their total expenses incurred in the United States on both passenger and freight operations, including overhead. Voluntary replies to questions 5, 6, 7 and 8 on Form BE-29 (vessel operators) regarding earnings on exports and movements in accounts due to or payable from home offices of foreign branches in the United States are requested but are not required by law.

§ 302.4 *Time and place of filing reports.* Reports shall be filed annually on or before March 31 of each year to cover operations of the preceding calendar year, except that a report covering operations for 1951 shall be filed on or before June 30, 1952. Reports shall be filed with the Department of Commerce, Office of Business Economics, Balance of Payments Division, Washington 25, D. C.

NOTE: The reporting requirements of this regulation have been approved by the Budget Bureau in accordance with the Federal Reports Act of 1942.

[F. R. Doc. 52-6033; Filed, May 29, 1952; 9:33 a. m.]

Subchapter C—Office of International Trade

[5th Gen. Rev. of Export Regs., Amdt. 108 [2]]

PART 371—GENERAL LICENSES

PART 372—PROVISIONS FOR INDIVIDUAL AND OTHER VALIDATED LICENSES

PART 373—LICENSING POLICIES AND RELATED SPECIAL PROVISIONS

PART 382—DENIAL OR SUSPENSION OF EXPORT PRIVILEGES

MISCELLANEOUS AMENDMENTS

1. Section 371.2 *General provisions*, paragraph (c) *Applicability* is amended by adding thereto a new subparagraph (3) and related note to read as follows:

(3) *Exportations to foreign vessels in foreign ports.* Except as provided in the Note below, commodities may not be exported under the provisions of any general license to a foreign vessel located in a foreign port unless such general license is applicable to both the country in which such port is located and to the country under whose laws such vessel is registered. These regulations are set forth in Parts 370 through 399 of this subchapter.

NOTE: The exportation of commodities under the provisions of General Licenses SHIP STORES, § 371.13 (a), or REGISTERED SHIP STORES, § 371.13 (b), is not affected by this provision.

2. Section 371.13 *Ship and plane stores; supplies and equipment; crew's effects* is amended in the following particulars:

a. Paragraph (e) *Exports to vessels located at foreign ports* is hereby deleted.

b. The note following paragraph (e) remains unchanged.

3. The note following § 372.5 *Ship stores, plane stores, supplies, and equipment* is amended to read as follows:

NOTE: See § 371.13 (b) of this subchapter on exports to vessels located at foreign ports.

4. Section 373.7 *Special provisions for machinery and parts*, paragraph (c) *Pumps, compressors, blowers, exhausters, fans and parts*, subparagraph (1) (iii) is amended by deleting the second sentence, so as to read as follows:

(iii) Whether fabricated of or lined with any of the corrosion-resistant materials as defined in the "General Notes to Appendix A" (Part 399 of this subchapter).

5. Part 373, *Licensing Policies and Related Special Provisions*, is amended by adding thereto a new § 373.39 to read as follows:

§ 373.39 *Special provisions for tobacco and tobacco products destined to Hong Kong*—(a) *Licensing of exports for consumption in Hong Kong.* Applications for licenses to ship tobacco and tobacco products of United States origin for sale, and consumption in Hong Kong (the local duty-paid Hong Kong market) will be considered each quarter in total quantities not to exceed one-fourth of the total amount of such commodities sold for consumption in Hong Kong during the calendar year 1951. The amount licensed to any individual applicant generally will be based upon the proportion of that applicant's participation in the sales for consumption in Hong Kong during the combined calendar years 1949 and 1950. In addition, a small portion of the quota will be reserved for exporters who did not participate in sales for consumption in Hong Kong during the established period.

(b) *Licensing of exports for transshipment or reexportation through Hong Kong to other destinations*—(1) *Resale from stock in Hong Kong warehouses.* Applications for licenses to export tobacco and tobacco products of United States origin to Hong Kong for storage in warehouses, resale, and reexportation to one or more authorized destinations other than the Hong Kong consumers market will be considered in quantities not to exceed the minimum inventory requirements of the Hong Kong consignee, provided the following is shown on the application or an attachment to it:

[1] Filed as part of the original document.
[2] This amendment was published in Current Export Bulletin No. 668, dated May 22, 1952.

(i) The business operations of the Hong Kong consignee of the commodities for storage, resale, and reexportation cannot be reasonably and adequately served except through such warehousing, resale, and reexportation practices.

(ii) The minimum inventory requirement and the current inventory of each commodity to be exported, together with a statement that such inventory will not exceed minimum requirements after receipt of the commodities covered by the application.

(iii) The tobacco and tobacco products licensed for shipment under this paragraph will be stored in bonded warehouses by the consignee named on the license application pending resale and reexportation.

NOTE: Licenses issued under § 373.39 (b) (1) will contain the following statement: "These commodities licensed by the United States for exportation to Hong Kong for distribution or resale to destinations other than Hong Kong, Macao, or Subgroup A countries only. Distribution or resale in Hong Kong or transshipment except as specifically provided by United States law is prohibited."

(2) *Transshipments through Hong Kong.* A validated license is not required to transship tobacco and tobacco products exported from the United States under General License GRO on a through bill of lading to a destination other than a Subgroup A country or Macao when such commodities remain at all times in the custody of the originating or on-forwarding carrier.[1] For all other transshipments of tobacco and tobacco products through Hong Kong to a specific ultimate consignee in a specific ultimate destination (such as shipments unloaded at Hong Kong in the custody of an agent other than the carrier), validated export licenses are required. Applications for such licenses will be considered in accordance with criteria otherwise applicable to the particular exportation if it were being exported to such specific consignee and destination directly from the United States. The name and address of the ultimate consignee and the Hong Kong intermediate consignee must be stated on the application for export license, Form IT-419.

6. Section 373.51 *Supplement 1: Time schedules for submission of applications for licenses to export certain Positive List commodities* is amended by adding thereto the following entries and related submission dates for the Third and Fourth Quarters, 1952.

Commodity	Submission Dates	
	Third quarter 1952	Fourth quarter 1952
Controlled materials: Secondary tinplate products.	June 2-June 30, 1952.	
Specification production plate.		June 16-July 18, 1952.

[1] See note following § 384.5 of this subchapter.

7. Section 382.51 *Table of compliance orders currently in effect denying export privileges,* paragraph (b) *Table of compliance orders* is amended in the following particulars:

a. The following orders are added:

Name and address	Effective date of order	Expiration date of order	Export privileges affected	FEDERAL REGISTER citation
Bialick, William E., 136 Liberty St., New York, N. Y.	3-7-52	9-7-52	Validated licenses, all commodities, any destination; also exports to Canada.	17 F. R. 2137, 3-12-52.
Billk, John, Jr., International Trade Mart, 124 Camp St., New Orleans, La.	2-13-52	Until further notice.	No participation all commodities, general or validated licenses, as carrier, forwarder, exporter, or otherwise.	17 F. R. 1633, 2-18-52.
Croton Trading Co., 136 Liberty St., New York, N. Y.	3-7-52	9-7-52	Validated licenses, all commodities, any destination; also exports to Canada.	17 F. R. 2137, 3-12-52.
Croton Trading Co., Inc., 136 Liberty St., New York, N. Y.	3-7-52	9-7-52	do	17 F. R. 2137, 3-12-52.
Duales Steamship Co., International Trade Mart, 124 Camp St., New Orleans, La.	2-13-52	Until further notice.	No participation all commodities, general or validated licenses, as carrier, forwarder, exporter, or otherwise.	17 F. R. 1633, 2-18-52.
Dudek, Marion, International Trade Mart, 124 Camp St., New Orleans, La.	2-13-52	do	do	17 F. R. 1633, 2-18-52.
Dunlap, Archibald S., 342 West 71st St., New York, N. Y.	4-7-52	Duration	General and validated licenses, all commodities, any destination.	17 F. R. 3241, 4-12-51.
International Marketers, Ltd., 56 George St., London, W. 1, England.	3-25-52	1-31-53	do	17 F. R. 2792, 3-29-52.
Marton Distributors, Inc., 1266 47th St., Brooklyn 19, N. Y.	3-25-52	12-25-52	General and validated licenses, all commodities, any destination; also exports to Canada.	17 F. R. 2793, 3-29-52.
Marton, Irving, 1266 47th St., Brooklyn 19, N. Y.	3-25-52	12-25-52	do	17 F. R. 2793, 3-29-52.
Marton, Olga H., 1266 47th St., Brooklyn 19, N. Y.	3-25-52	12-25-52	do	17 F. R. 2793, 3-29-52.
Nederlands Transport Bureau, Veerhaven 15, Rotterdam, Holland.	9-24-51	Duration	General and validated licenses, all commodities, any destination (company same as Van Uden's N. V. Transport-Bureau, which see).	16 F. R. 10088, 10-3-51.
Netherlands Transport Bureau, Veerhaven 15, Rotterdam, Holland.	9-24-51	do	do	16 F. R. 10088, 10-3-51.
Nyegaard, Albert, Charlottenlund, Denmark.	3-31-52	3-31-53	General and validated licenses, all commodities, any destination; also exports to Canada.	17 F. R. 2937, 4-4-52.
Polak, Arnost, 56 George St., London, W. 1, England.	3-25-52	1-31-53	General and validated licenses, all commodities, any destination.	17 F. R. 2792, 3-29-52.
Satis, S. A., Melide, Switzerland.	9-24-51	Duration	General and validated licenses, all commodities, any destination (company related to Satis, A. G., Zurich, which see).	16 F. R. 10088, 10-3-51.
Schwarz, Ivan Otto, 56 George St., London, W. 1, England.	3-25-52	1-31-53	General and validated licenses, all commodities, any destination.	17 F. R. 2792, 3-29-52.
Siegel Chemical Export Corp., 1 Hanson Pl., Brooklyn, N. Y.	1-18-52	7-18-52	General and validated licenses, Positive List commodities, and validated licenses, non-Positive List commodities, to any destination for which validated licenses may be required (company related to Robert Siegel, which see).	17 F. R. 670, 1-22-52.
Siegel International, Inc., 1 Hanson Pl., Brooklyn, N. Y.	1-18-52	7-18-52	General and validated licenses, Positive List commodities, and validated licenses, non-Positive List commodities to any destination for which validated licenses may be required (company related to Robert Siegel, which see).	17 F. R. 670, 1-22-52.
von Tscharner, Albert, Rothkreuz, Switzerland.	9-24-51	Duration	General and validated licenses, all commodities, any destination (subject related to Satis, A. G., which see).	16 F. R. 10088, 10-3-51.
Wiederkehr, Dr. Alphonse, Talstrasse, 16, Zurich, Switzerland.	3-25-52	8-30-53 or duration, whichever is shorter.	General and validated licenses, all commodities, any destination; also exports to Canada.	17 F. R. 2000, 4-3-52.

b. The following corrected entries are substituted for the corresponding entries presently shown:

Name and address	Effective date of order	Expiration date of order	Export privileges affected	FEDERAL REGISTER citation
Kolisch, Leopold L., Veerhaven 15, Rotterdam, Holland.	9-24-51	Duration	General and validated licenses, all commodities, any destination.	16 F. R. 10088, 10-3-51.

This amendment (except Part 4) shall become effective as of May 22, 1952. Part 4 thereof shall become effective as of May 29, 1952.

(Sec. 3, 63 Stat. 7; 65 Stat. 43; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR 1948 Supp.)

LORING K. MACY,
Director,
Office of International Trade.

[F. R. Doc. 52-5942; Filed, May 29, 1952; 8:45 a. m.]

[5th Gen. Rev. of Export Regs., Amdt. 107]

PART 373—LICENSING POLICIES AND RELATED SPECIAL PROVISIONS

CONFIRMATION OF COUNTRY OF ULTIMATE DESTINATION AND VERIFICATION OF ACTUAL DELIVERY

Section 373.34 *Confirmation of country of ultimate destination and verification of actual delivery* is amended in the following particulars:

Paragraph (c) *Submission of import certificates* is amended as follows:

a. The first unnumbered paragraph is amended to read as follows:

Except as shown in Note 4 below, the applicant must attach to his license application, covering proposed exportations described in paragraph (a) of this section, the original copy of the import certificate, issued or certified by the government of the importing country, to the ultimate consignee and covering commodities described by the export license application.

b. The Note following paragraph (c) is amended by adding thereto the following:

4. Substitution for import certificate. For an interim period only, the Office of International Trade will continue to accept an ultimate consignee statement in lieu of an import certificate provided only that all of the following conditions are complied with:

(i) The ultimate consignee has attempted to obtain an import certificate, but has been unable to obtain such import certificate.

(ii) The applicant enters the following certification in item 9 of Form IT-419, Application for Export License: "The applicant has been advised by the ultimate consignee named herein that the said consignee has attempted to obtain an import certificate covering commodities specified in this application, but was unable to obtain such import certificate".

(iii) The ultimate consignee statement is submitted pursuant to all of the requirements shown in § 372.3 (d) of this subchapter.

(Sec. 3, 63 Stat. 7; 65 Stat. 43; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR 1948 Supp.)

This amendment shall become effective as of May 29, 1952.

LORING K. MACY,
Director,
Office of International Trade.

[F. R. Doc. 52-6046; Filed, May 29, 1952; 8:56 a. m.]

[5th Gen. Rev. of Export Regs., Amdt. P. L. 88 [1]]

PART 399—POSITIVE LIST OF COMMODITIES AND RELATED MATTERS

MISCELLANEOUS AMENDMENTS

Section 399.1 *Appendix A—Positive List of Commodities* is amended in the following particulars:

The following revisions are made in commodity descriptions:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
[2] 770990	Parts, n. e. c., specially fabricated for pumps classified under Schedule B Nos. 770000 through 770950, and 770980, irrespective of delivery pressures, operating temperatures and materials used in their fabrication (formerly 736990).[2]	----------	CONS	100	RO

[1] Parts for centrifugal pumps fabricated of, or lined with, stainless steel are excepted from the provisions of General In-Transit License GIT. See § 371.9 (c) of this subchapter.

[2] The above entry is substituted for the second entry presently on the Positive List under Schedule B No. 770990. The effect of this revision is to require a validated license for exportation of parts for all pumps classified under Schedule B Nos. 770990 through 770950, and 770980, whether or not the pumps for which the parts were fabricated are included on the Positive List.

Shipments of any commodities removed from general license to Country Group R or Country Group O destinations as a result of changes set forth above in this amendment which were on dock, on lighter, laden aboard an exporting carrier, or in transit to a port of exit pursuant to actual orders for export prior to 12:01 a. m., May 29, 1952, may be exported under the previous general license provisions up to and including June 21, 1952. Any such shipment not laden aboard the exporting carrier on or before June 21, 1952, requires a validated license for export.

(Sec. 3, 63 Stat. 7; 65 Stat. 43; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR 1948 Supp.)

This amendment shall become effective as of 12:01 a. m., May 29, 1952.

LORING K. MACY,
Director,
Office of International Trade.

[F. R. Doc. 52-5941; Filed, May 29, 1952; 8:45 a. m.]

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 657—LEAF TOBACCO INDUSTRY IN PUERTO RICO

MINIMUM WAGE ORDER

Pursuant to the Administrative Procedure Act (60 Stat. 237; 5 U. S. C., Sup., 1001) notice was published in the FEDERAL REGISTER on May 7, 1952 (17 F. R. 4219) of my decision to approve the minimum wage recommendations of Special Industry Committee No. 11 for Puerto Rico for the Leaf Tobacco Industry in Puerto Rico, and the wage order which I proposed to issue to carry such recommendations into effect was published therewith. Interested parties were given an opportunity to submit exceptions to such action within 15 days of the date of publication of the notice.

[1] This amendment was published in Current Export Bulletin No. 688, dated May 22, 1952.

No exceptions have been received within the 15-day period.

Accordingly, pursuant to authority under the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201), the said decision is hereby affirmed and made final, and the said wage order is hereby issued, to become effective June 30, 1952.

Sec.
657.1 Approval of recommendations of industry committee.
657.2 Wage rates.
657.3 Notices of order.
657.4 Definitions of the leaf tobacco industry in Puerto Rico and its divisions.

AUTHORITY: §§ 657.1 to 657.4 issued under sec. 8, 63 Stat. 915; 29 U. S. C. 208. Interpret or apply sec. 5, 63 Stat. 911; 29 U. S. C. 205.

§ 657.1 *Approval of recommendations of industry committee.* The Committee's recommendations are hereby approved.

§ 657.2 *Wage rates.* (a) Wages at a rate of not less than 31 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, as amended, by every employer to each of his employees in the general division of the leaf tobacco industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce.

(b) (1) Wages at a rate of not less than 36 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, as amended, by every employer to each of his employees in the machine processing division of the leaf tobacco industry in Puerto Rico who is engaged in feeding, operating or tending machines which shred, chop, thresh, or stem leaf tobacco, and in operations immediately incidental thereto, and who is engaged in commerce or in the production of goods for commerce.

(2) Wages at a rate of not less than 31 cents an hour shall be paid under section 6 of the Fair Labor Standards Act, as amended, by every employer to each of his employees in the machine processing division of the leaf tobacco industry in Puerto Rico who is engaged in operations other than feeding, operating and tending of machines which shred, chop, thresh, or stem leaf tobacco, or in operations immediately incidental thereto, and who is engaged in commerce or in the production of goods for commerce.

§ 657.3 *Notices of order.* Every employer employing any employees so engaged in commerce or in the production of goods for commerce in the leaf tobacco industry in Puerto Rico shall post and keep posted in a conspicuous place in each department of his establishment where such employees are working such notices of this order as shall be prescribed from time to time by the Wage and Hour Division of the United States Department of Labor, and shall give such other notice as the Division may prescribe.

§ 657.4 *Definition of the leaf tobacco industry and its divisions.* (a) The leaf tobacco industry in Puerto Rico, to which this part shall apply is hereby defined as follows: The processing of leaf tobacco including, but not by way of limitation, the grading, fermenting,

stemming, chopping, packing, storing, drying and handling of tobacco prior to use in the manufacture of cigars or other finished tobacco products: *Provided, however,* That this definition shall not include the stemming of cigar wrappers or binders by a cigar manufacturer.

(b) The separable divisions of the industry, as defined in paragraph (a) of this section, to which this part and its several provisions shall apply, are hereby defined as follows:

(1) *General division.* This division shall include all activities in the leaf tobacco industry other than activities included within the definition of the machine processing division as defined in subparagraph (2) of this paragraph.

(2) *Machine processing division.* This division shall include the shredding, chopping, threshing, or stemming of leaf tobacco by machine and all preceding and subsequent processing operations on such tobacco when performed in the establishment where the machine shredding, chopping, threshing, or stemming operations occur.

Signed at Washington, D. C., this 27th day of May, 1952.

WM. R. MCCOMB,
Administrator,
Wage and Hour Division.

[F. R. Doc. 52-5975; Filed, May 29, 1952; 8:51 a. m.]

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter I—Office of Defense Mobilization

[Defense Mobilization Order No. 17]

DMO 17—CREATING A COMMITTEE ON STABILIZATION POLICY

By virtue of the authority vested in me by Executive Order No. 10193, and in order to assist the Director of Defense Mobilization to facilitate the coordination and effectiveness of Federal policies and programs relating to defense mobilization, *It is hereby ordered:*

1. There is established in the Office of Defense Mobilization the ODM interagency Committee on Stabilization Policy which shall consist of the Economic Stabilization Administrator as Chairman and a representative from each of the following departments or agencies:

a. Department of Defense.
b. Department of the Treasury.
c. Department of Commerce.
d. Department of Agriculture.
e. Department of Labor.
f. Defense Production Administration.
g. Federal Reserve Board.
h. Housing and Home Finance Agency.
i. Council of Economic Advisers.
j. National Security Resources Board.
k. Office of Price Stabilization.
l. Wage Stabilization Board.
m. When items of stabilization policy affecting additional agencies arise, such agencies will be asked to participate on an ad hoc basis in the deliberations of this Committee affecting their interests.

2. The Committee on Stabilization Policy shall:

a. Advise the Director of Defense Mobilization on the steps which need to be taken to carry out the Director's responsibility to direct, control, and coordinate the stabilization program with the other mobilization activities of the Executive Branch of the Government.

b. Review and make recommendations to the Director of Defense Mobilization on proposed legislation, Executive Orders, and proposed ODM administrative orders and regulations relating to stabilization.

3. This order shall take effect on May 30, 1952.

OFFICE OF DEFENSE MOBILIZATION,
JOHN R. STEELMAN,
Acting Director.

[F. R. Doc. 52-6039; Filed, May 28, 1952; 4:18 p. m.]

[Defense Mobilization Order No. 18]

DMO 18—ESTABLISHING CENTRAL INVENTORY AND PROVIDING FOR EFFECTIVE UTILIZATION OF IDLE GOVERNMENT-OWNED PRODUCTION EQUIPMENT AND MACHINE TOOLS

In order to promote the national defense, it is necessary to make the most effective use of government-owned production equipment and machine tools.

The following agencies are in possession of such equipment and tools, or have the right of repossession in the interest of national defense:

Department of Defense.
Department of the Army.
Department of the Navy.
Department of the Air Force.
General Services Administration.
Defense Materials Procurement Agency.
Atomic Energy Commission.
Federal Security Agency.
Maritime Administration.

It is, therefore, ordered with the concurrence of the agencies concerned that:

1. A central inventory record of idle government-owned production equipment and machine tools, for those classes listed in Supplement A or as may from time to time be determined by National Production Authority to be in short supply, be established and currently maintained in the National Production Authority; the National Production Authority will allocate such equipment and tools as may be more effectively utilized in accordance with the relative urgencies of defense needs and will exercise the functions of recording, directing on-site inspection, and directing the issuance of shipping instructions;

2. The agencies concerned will furnish the information necessary (see Supplement B for minimum descriptive requirements) to establish and currently maintain such central inventory in the National Production Authority; provide for the expeditious shipment of such equipment and tools in accordance with allocations made by the National Production Authority and shipping instructions issued pursuant thereto; and arrange for such transfer, lease, sale, or other disposition as may be necessary in the best interest of the government and in conformity with property accountability requirements.

3. Procedures implementing this order will be established by the National Production Authority and agencies concerned in consultation with each other. For the purpose of uniformity, such procedures will conform as nearly as practicable with Department of Defense Directive 350.04-9, "Utilization of Idle Production Equipment."

This order shall take effect on May 30, 1952.

OFFICE OF DEFENSE MOBILIZATION,
JOHN R. STEELMAN,
Acting Director.

SUPPLEMENT A TO DEFENSE MOBILIZATION ORDER NO. 18

CLASSES OF PRODUCTION EQUIPMENT AND MACHINE TOOLS CURRENTLY IN SHORT SUPPLY

Standard Commodity Classification Code:	*Description*
3411 through 341999	Machine tools.
3441 through 34490	Secondary metal forming and cutting machines.
34510 through 34519	Electric arc welding machines.
34520 through 3452129 345220 through 34529	Electric resistance welding machines.
345330 through 345339	Gas (flame) cutting machines—excluding hand torches.
357211 through 357219	Metal heat treating furnaces—box type.
357221 through 3572249	Metal heat treating furnaces—bath type.
357231 through 357239	Metal heat treating furnaces—basket type.
357241 through 3572439	Metal heat treating furnaces—bell type.
357261 through 357269	Metal heat treating furnaces—pit type.
357271 through 357279	Metal heat treating furnaces—pot type.
3572841 through 3572849	Induction heating devices.
54160000	Transformers, power, uninstalled, 501 Kva and above, 50 and 60 cycle only.
5561 through 556159	Powered trucks, industrial.
5563 through 5563994	Tractors, industrial.
5564 through 556420162	Trailers for industrial tractors.
563908	Profilometers.
563914	Magnetic particle inspection machines.
5651 through 56519	Hardness testing machines.
5653 through 56539	Pressure testing machines.
5656 through 565699	Balancing machines.
56572 through 565729	Gear measuring and testing machines.
56573 through 565739	Hob, worm and cutter measuring machines.
565742	Surface finish measuring machines.

SUPPLEMENT B TO DEFENSE MOBILIZATION ORDER NO. 18

MINIMUM INFORMATION TO BE FURNISHED IN REPORTING IDLE GOVERNMENT-OWNED PRODUCTION EQUIPMENT AND MACHINE TOOLS

(a) Standard Commercial Description.
(b) Standard Commodity Classification Code.
(c) Government Tag Number.
(d) Location.
(e) Condition.
(f) Owning Government Agency.
(g) Manufacturer's Name.
(h) Serial Number.
(i) Opinion as to whether special, single purpose or general purpose.

[F. R. Doc. 52-6024; Filed, May 28, 1952; 1:09 p. m.]

Chapter III—Office of Price Stabilization, Economic Stabilization Agency

[Ceiling Price Regulation 7, Amdt. 19]

CPR 7—RETAIL CEILING PRICES FOR CERTAIN CONSUMER GOODS

CHANGE OF PLACES FOR FILING FOR CHAINS

Pursuant to the Defense Production Act of 1950 (64 Stat. 812), Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this Amendment 19 to Ceiling Price Regulation 7 (16 F. R. 1872) is hereby issued.

STATEMENT OF CONSIDERATIONS

Until now, CPR 7 has required that pricing charts covering two or more chain outlets which priced uniformly and centrally be filed with the Distribution Price Branch, Office of Price Stabilization, Washington 25, D. C.

Since, at this time, field offices of the OPS are better equipped than they were when the regulation was first issued to administer CPR 7 with respect to many chain store situations, the regulation is being amended in order to permit decentralization to field offices of the OPS. This move will facilitate the operation of chains under the regulation since, for the most part, each chain will now have its chart filed in the OPS office geographically closest to it.

This amendment provides that a chain having all of its outlets and its principal office located within the jurisdiction of one OPS District will have its CPR 7 Pricing Chart on file in the OPS District Office for that district and will use that office as its OPS office for the filing of reports or applications wherever the regulation refers to "your OPS office." In those instances where all the outlets and principal office of a chain are located within two or more OPS Districts, but within one OPS Region, the chart of that chain will be on file in the OPS District Office having jurisdiction over the area in which the chain's principal office is located. If the outlets and principal office of a chain are located within two or more OPS Regions, the company's OPS office is the Wholesale and Central Pricing Branch, Washington 25, D. C.

In view of the fact that this amendment in no way affects the substance of the regulation, the Director has not found it practicable nor necessary to consult with industry representatives.

AMENDATORY PROVISIONS

Ceiling Price Regulation 7 is amended in the following respects:

1. Footnote 2 to section 11 is amended to read as follows:

[2] Your OPS office is the office having jurisdiction over the area in which your place of business is located. If you are a chain which under this regulation is a single seller and if your principal office and all of your outlets for all your groups or zones taken together, or, if you are a person who sells through salesmen making sales at uniform prices and your principal office and all of your branch offices taken together (1) are located within an OPS district, your OPS office is the district office of the OPS for that district; (2) are located in more than one OPS district within an OPS region, your OPS office is the district office of the OPS having jurisdiction over the area in which your principal office is located; or (3) are located in more than one OPS region, your OPS office is the Wholesale and Central Pricing Branch, Office of Price Stabilization, Washington 25, D. C. If you are a single seller as to any category, each unit (or in a departmentalized establishment each department) covered by the single seller chart shall use as its OPS office for all its categories the OPS office in which you are required to file the single seller chart under the foregoing rules.

If you are a mail order establishment, your OPS office is the Wholesale and Central Pricing Branch, Office of Price Stabilization, Washington 25, D. C. If you are a consignor, an order issued pursuant to section 5 (b) of Supplementary Regulation 1 to CPR 7 may provide that for specific purposes your OPS office is the Wholesale and Central Pricing Branch, Office of Price Stabilization, Washington 25, D. C.

2. Section 39a is amended by substituting the phrase "its OPS office" for the phrase "the Distribution Price Branch, Consumers Soft Goods Division, Office of Price Stabilization, Washington 25, D. C."

3. Section 39c is amended by substituting the phrase "his OPS office" for the phrase "the Distribution Price Branch, Consumer Soft Goods Division, Washington 25, D. C."

4. Section 39d (c) is amended by deleting the word "District" from the phrase "OPS District Office" in the first sentence.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective on the 3d day of June 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6052; Filed, May 29, 1952; 10:47 a. m.]

[Ceiling Price Regulation 93, Interpretation 2]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 2—CONSTRUCTION AND INSTALLATION SERVICES COVERED—PUBLIC AMPLIFYING SYSTEMS (SECTION 2 (a) (1))

The installation of public amplifying systems in churches and other buildings is subject to the applicable provisions of CPR 93, where any part of the system (including wiring) becomes an integral part of the church or building.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6060; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 7, Amdt. 11 to Supplementary Regulation 1]

CPR 7—RETAIL CEILING PRICES FOR CERTAIN CONSUMER GOODS

SR 1—SPECIAL PRICING METHODS FOR CERTAIN CHAIN STORES, MAIL ORDER ESTABLISHMENTS, DEPARTMENTALIZED ESTABLISHMENTS, CONSIGNORS AND CONSIGNEE OUTLETS

REDESIGNATING OPS OFFICES FOR FILING OF DOCUMENTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), and Economic Stabilization General Order No. 2 (16 F. R. 738), this Amendment 11 to Supplementary Regulation 1 to Ceiling Price Regulation 7 (16 F. R. 1895) is hereby issued.

STATEMENT OF CONSIDERATIONS

By an accompanying amendment to Ceiling Price Regulation 7, that regulation is being amended to permit certain chains to use as their OPS offices, field offices of the OPS. Certain sections of this Supplementary Regulation contained references which would not have conformed with the intention of permitting such decentralization and, therefore, those references have been amended.

In view of the fact that this amendment in no way affects the substance of the regulation, the Director has not found it practicable nor necessary to consult with industry representatives.

AMENDATORY PROVISIONS

Supplementary Regulation 1 to Ceiling Price Regulation 7 is amended in the following respects:

1. Section 4 (a) is amended by substituting the phrase "its OPS office" for the phrase "the Distribution Price Branch, Office of Price Stabilization, Economic Stabilization Agency, Washington 25, D. C."

2. Section 4(c) is amended to read as follows:

(c) *Filing.* Each group of retail outlets which is a single seller under the regulation, in all cases where Ceiling Price Regulation 7 requires the filing of any chart, report, or other document, shall file with its OPS office, as to all categories its prices as a single seller under the regulation.

3. Section 7(c) is amended to read as follows:

(c) *Filing of master chart.* After the master chart has been prepared the combining sellers must file a copy of the

master chart with the Wholesale and Central Pricing Branch, Office of Price Stabilization, Washington 25, D. C. The chart must also list the names and addresses of all the sellers included in the combining group. At the same time as the master chart is filed, the combining sellers must notify each OPS office with which the charts of the several combining sellers were filed that a master chart is being filed, and, if not all of the categories are included in the master chart, must list specifically which categories are included in the master chart. A copy of each of these notices to the appropriate OPS offices must accompany the filing of the chart.

4. Section 8 (b) is amended by deleting the word "District" from the phrase "OPS District Office" in the first sentence.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective on the 3d day of June, 1952.

NOTE: The record keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6063; Filed, May 29, 1952; 10:48 a. m.]

[Ceiling Price Regulation 22, Amdt. 3 to Supplementary Regulation 17]

CPR 22—MANUFACTURERS' GENERAL CEILING PRICE REGULATION

SR 17—ADJUSTMENTS UNDER SECTION 402 (d) (4) OF THE DEFENSE PRODUCTION ACT OF 1950, AS AMENDED

MISCELLANEOUS AMENDMENTS

Pursuant to the Defense Production Act of 1950, as amended (Pub. Law 774, 81st Cong., Pub. Law 96, 82nd Cong.), Executive Order 10161 (15 F. R. 6105), as amended (16 F. R. 11257), and Economic Stabilization Agency General Order No. 2, as amended (16 F. R. 738, 11626), this Amendment 3 to Supplementary Regulation 17 to Ceiling Price Regulation 22 is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment to Supplementary Regulation 17 makes several changes which are designed to aid manufacturers in calculating their adjustment under this regulation. When Supplementary Regulation 17 was written, it was recognized that the overhead adjustment should be based on a comparison of the overhead expenses in the period just prior to June 24, 1950 and a comparable period in 1951. There are, however, some manufacturers who are entitled to an adjustment under this regulation because they were in business before June 24, 1950, but who cannot use the proposed 1950 overhead period because they were not in business on January 1, 1950. This amendment permits those manufacturers who started in business prior to March 31, 1950 to use as their 1950 overhead period the first six months they were in business. If they did not start in business until after March 31, 1950, they are to use as their 1950 overhead period the first three months they were in business during the year 1950. In either event, their 1951 overhead period must cover the same months as those used for their 1950 overhead period. Use of either of these overhead periods may enable the manufacturer to reflect increases in overhead expenses which occurred after July 26, 1951, but in the judgment of the Director, that is necessary to afford such manufacturers a fair means of determining an overhead adjustment. Although the comparison will be more representative if the periods cover six months of operations, the manufacturer who was not in business on March 31, 1950 will use just three months so as to minimize the extent to which the adjustment will reflect increases occurring after July 26, 1951.

Other manufacturers have found it difficult to determine an overhead adjustment because they did not keep their records on a calendar month basis, and because their accounting periods did not end between June 16 and July 31. These dates were selected so that the accounting period used would approximate the first six calendar months of the year; however, that purpose could be accomplished if the accounting period ended between June 1 and July 31. Accordingly, section 11 (b) is being amended to allow use of an accounting period which ends between June 1 and July 31 if the records are not kept on a calendar month basis.

In view of the wide coverage of this amendment and the urgency of the situation, special circumstances have made it impracticable to consult with industry representatives, including trade association representatives, of all the industries affected. However, in the preparation of this amendment, consultation was held with individual industry representatives and consideration was given to their recommendations.

AMENDATORY PROVISIONS

Supplementary Regulation 17 to Ceiling Price Regulation 22 is amended in the following respects:

1. Section 11 (b) is amended by substituting the date June 1 for the date June 16, so that this paragraph will read as follows:

(b) The term "1951 overhead period" means January 1, 1951 through June 30, 1951. If your accounting records are not kept on a calendar month basis, you may substitute for the first six months of the year as your "1950 overhead period" and your "1951 overhead period," any accounting period of 24 or 26 weeks or six months ended not earlier than June 1 and not later than July 31. You must use the same accounting period in 1950 as you do in 1951.

2. A new section 11a is added to read as follows:

SEC. 11a. *Overhead periods for manufacturers not in business on January 1, 1950.* If you were not in business on January 1, 1950, but you were in business on June 30, 1950, you will use this section to determine your 1950 and 1951 overhead periods.

(a) If you were in business on March 31, 1950, you must use as your "1950 overhead period" the first six months you were in business. If your accounting records are not kept on a calendar month basis, you may substitute for the first six months you were in business, your first completed accounting period of 24 or 26 weeks.

(b) If you were not in business on March 31, 1950, you must use as your "1950 overhead period" the first three months you were in business. If your accounting records are not kept on a calendar month basis, you may substitute for the first three months you were in business, your first completed accounting period of 12 or 13 weeks.

(c) You must use as your "1951 overhead period" the same calendar period as you used for your "1950 overhead period".

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective June 3, 1952.

NOTE: The record keeping and reporting requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6055; Filed, May 29, 1952; 10:48 a. m.]

[Ceiling Price Regulation 93, Interpretation 3]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 3—SALE OF APPLIANCES AS PART OF BUILDING CONTRACT (SECTION 3 (b))

Section 3(b) provides that separate installed sales of appliances are not covered by CPR 93. However, where installed sales of appliances constitute an incidental part of a building contract, which contract is covered by CPR 93, the installed sales of appliances are subject to CPR 93.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6061; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 16, Amdt. 14]

CPR 16—CEILING PRICES OF CERTAIN FOODS SOLD AT RETAIL IN GROUP 1 AND GROUP 2 STORES

INCREASES IN CERTAIN MARKUPS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order

10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this Amendment 14 to Ceiling Price Regulation 16 is hereby issued.

STATEMENT OF CONSIDERATIONS

This statement of considerations covers Amendment 14 to Ceiling Price Regulation 15 and Amendment 14 to CPR 16.

CPR's 15 and 16 were issued on March 28, 1951, and became effective on May 14, 1951. Both regulations prescribe standard markups to be used by food retailers in fixing their ceiling prices for dry groceries and certain perishables. The markups prescribed are the same as those used by OPA (except in the case of retailers under CPR 15 who received an upward adjustment) because no better information was available as to markups which would precisely meet the requirements of the Defense Production Act.

OPS announced when it issued the regulations that it would conduct a survey of markups used by food distributors in the pre-Korean period and then re-examine the markups in CPR's 15 and 16 in the light of the survey results. This survey, one of the most complex ever attempted by a government agency, is now under way. As soon as the collection of data is completed, they will be tabulated and analyzed. However, even with the most expeditious handling of the survey and of the necessary tabulations, the OPS will probably not be able to re-examine the markups in CPR's 15 and 16 before some months have elapsed.

The status of earnings. The nation's food retailers have for some time contended that their earnings were severely affected by these regulations. Accordingly, at the end of October 1951, OPS undertook a survey designed to gather data which would show how the 1951 earnings of all food wholesalers and retailers had been affected from the viewpoint of the "generally fair and equitable" requirements of the statute. Although this survey was presented and explained to the food wholesale and retail Industry Advisory Committees, the number of usable returns received was entirely too small for a statistically adequate sample.

Early in February 1952, after additional consultation with industry representatives, including trade association representatives, and also with OPS consultants, another earnings survey covering Groups 3 and 4 stores was begun. The data for Groups 3 and 4 stores show a decrease in earnings requiring an adjustment of markups.

The standard which OPS has used in determining whether Groups 3 and 4 food retailers' earnings have been reduced below what is "generally fair and equitable" is the so-called Johnston Standard, or the industry earnings standard. This was set forth in a letter dated April 21, 1951, from Mr. Eric Johnston, then Administrator of the Economic Stabilization Agency, to Mr. Michael V. DiSalle, then Director of the Office of Price Stabilization, as follows:

(1) The level of price ceilings for an industry shall normally be considered "generally fair and equitable" under the Defense Production Act if the dollar profits of the industry amount to 85 percent of the average for the industry's best three years during the period of 1946–1949, inclusive. The profits should be figured before federal income and excess profits taxes and after normal depreciation only, with adjustments made for any change in net worth.

The Director has temporarily decided to treat Groups 3 and 4 stores as an industry for the purposes of applying the industry earnings standard.

How the increase is effectuated. In determining the amount by which the overall markup for dry groceries should be adjusted in view of the fact that 1951 earnings appear to have been below the Johnston Standard, the Director has taken into account the following factors: (1) The proportion of the total sales of Groups 3 and 4 stores accounted for by dry groceries; (2) the fact that certain commodities like fruits and vegetables are not under price control; and (3) the fact that the ceiling prices of certain other items sold by Groups 3 and 4 stores which are governed by the GCPR and other regulations cannot practicably be adjusted. The mechanics of effectuating the increase are as follows: (1) Certain of the groups of commodities listed in Table A of CPR 15 have been split into two groups with a higher markup provided for one of the groups; and (2) certain of the groups of commodities listed in Tables A and B have been given higher markups. Similar but not quite as extensive changes have been made in CPR 16.

In computing the individual category adjustments the Director has taken account of a number of factors. Thus, it was recognized that in some or all of the categories for which adjustments are being made, some of the individual items will not bring the authorized ceiling prices. In determining the extent to which the adjusted markups will probably be realized, the Director has used rates of effectiveness estimated by OPS consultants and industry representatives. At the same time, however, recognition has been given to the real possibility, in view of unsettled international conditions, that there may be a sudden tightening of retail food prices in the future. Any significant change in international conditions could result in a greater rate of effectiveness than is now estimated. In addition, full account has been taken of distribution rates for each category. That is, consideration has been given, on the basis of estimates by OPS consultants, to the proportion of total dry grocery sales which each category represents. Finally, in connection with the amendment to CPR 16, the objective has been to so adjust the markups for Groups 1 and 2 stores as to prevent serious price distortions and to preserve reasonable relations between the markups for all four classes of retailers.

It is plain from their nature that all of these considerations raise questions of judgment and that the judgments have had to be made on the basis of estimates. None of the factors which have had to be taken into account permit of precise mathematical evaluation. The Director therefore recognizes some of the judgments he has made may not be borne out by future events, resulting in either inadequate or over-generous correction of the earnings deficit. This is, however, balanced by the interim nature of the adjustments and the probability that the risks are confined to a relatively short period. After the completion of the food margin survey previously referred to, the Office of Price Stabilization will re-examine the whole situation in the light of pre-Korean markups as revealed by that survey, the current earnings picture of food retailers under these amendments, and all other available information, and make such adjustments, downward or upward, as will be warranted.

OPS realizes that these amendments will result in an increase in price for some dry grocery items bearing on the cost of living. Therefore, it has issued these amendments only upon the basis of data which make a clear and unequivocal showing that the Groups 3 and 4 food retailers have suffered such a decline in their net earnings before taxes that it would not be fair and equitable to require them to continue under CPR 15 without this amendment.

It is the judgment of the Director that the markups prescribed by these amendments meet the requirements of section 402 (k) of the Defense Production Act of 1950, as amended. Subject to correction by the food margin survey, the best information as to markups in the pre-Korean period continues to be the OPA markups. Even if it should turn out to be true, as some have contended, that the OPA markups had become outdated prior to May 24, 1950, they represent the only data of this kind collected on a scientific basis. On the basis of all information available to him, including the advice of industry representatives, the Director has concluded that, at the very least, the margins established by this amendment satisfy the requirements of section 402 (k).

A minor amendatory provision included in these amendments changes sections 16 (b) of CPRs 15 and 16. Section 16 (b) in each regulation provides that whenever an amendment changes either a commodity definition in Table A by transferring a food product from one commodity group to another or a markup set for a group of retailers, the ceiling prices for the affected items must be refigured by the effective date of the amendment. In refiguring the retailer must use as "net cost" the "net cost" used in figuring the existing ceiling prices. This section is now made to apply to items in Table B (perishables).

FINDINGS OF THE DIRECTOR

In the formulation of this amendment the Director of Price Stabilization has consulted with the Industry Advisory Committees and industry representatives, including trade association representatives, and has given full consideration to their recommendations. In his judgment the provisions of this regulation are generally fair and equitable, are necessary to effectuate the purpose of Title IV of the Defense Production Act of 1950, as amended, and comply with all the applicable standards of that act.

AMENDATORY PROVISIONS

1. Section 16 (b) is amended to read as follows:

(b) Whenever an amendment changes either a commodity definition in Tables A or B by transferring a food product from one commodity group to another or the markup for your group of retailers, you must, by the opening of business on the effective date of such amendment refigure your ceiling prices for the items affected by such amendment. However, in doing so, you must use as your "net cost" the same "net cost" you used in figuring the ceiling prices you had on the effective date of the amendment.

2. Section 32 (a) is amended to read as follows:

(a) *Table A: Markups over "net cost" allowed to Groups 1 and 2 retailers for dry groceries covered by this regulation by commodities.*

TABLE A—MARKUPS OVER "NET COST" ALLOWED TO GROUP 1 AND GROUP 2 RETAILERS FOR DRY GROCERIES COVERED BY THIS REGULATION BY COMMODITIES

Food commodities	Allowed markups over net cost independent retailers with annual volumes	
	Group 1, under $75,000	Group 2, $75,000 or more but less than $375,000
	Percent	*Percent*
1. Baby foods	25	23
2. Cereals, breakfast	24	22
3. Cocoa, chocolate and cereal drink preparations	29	29
4. Coffee	17	17
4a. Coffee concentrates	19	19
5. Cookies, toast and crumbs	30	30
5a. Crackers	25	25
6. Corn meal, hominy and flour mixes	29	29
7. Dog and cat foods	27	27
8. Fish, processed	29	29
8a. Salmon and tuna, processed	27	27
9. Flour	27	27
10. Frozen foods	30	30
10a. Frozen juices	27	27
11. Fruits, berries and fruit juices (canned) except fruit cocktail, pineapple, peaches and pears	31	31
12. Fruit cocktail, pineapple, peaches and pears (canned) except juices	25	23
13. Fruits, dried and dehydrated	27	25
14. Gelatin and pudding mixtures	28	25
15. Jams, jellies, preserves and honey	36	36
15a. Peanut butter	32	32
16. Lard, pure	20	18
17. Macaroni and spaghetti products	32	32
18. Mayonnaise and salad dressing	24	24
19. Meat, canned	25	25
19a. Luncheon meats	21	21
20. Milk, canned	20	20
21. Oils, cooking and salad	28	28
22. Oleomargarine	20	18
23. Pickles and relishes	36	36
24. Rice	28	28
25. Shortening, hydrogenated	9	9
26. Shortening, other	18	18
27. Soups, canned	27	26
28. Soups, dehydrated	34	34
29. Spices	46	46
30. Syrups	28	28
31. Tea	26	26
32. Vegetables and vegetable juices (canned) except corn, green beans, peas, tomatoes and tomato juice	32	32
33. Corn, green beans, peas, tomatoes and tomato juice (canned)	25	23
34. Vegetables, dried and dehydrated	36	36
35. Vinegar	39	37
36. Miscellaneous foods	40	40

3. In section 32 (b), (c) and (d) amend items (4), (5), (8), (10), (15), and (19) to read as follows:

(4) "Coffee" means roasted coffee, whole or ground, decaffeinated coffee, and any mixtures of coffee with other products for beverage purposes. Excluded from this definition are all "coffee concentrates," including "frozen coffee concentrates."	(4) "Coffee." Excluded is: Green coffee in containers of the customary unit and weight in which they are imported into the United States.	(4) "Coffee." Excluded is: Imported coffee if imported in consumer size containers (2 pounds or less).
(4a) "Coffee Concentrates" includes but is not limited to instant and soluble coffee concentrates whether or not mixed with other ingredients. Not included in this definition is frozen coffee concentrate.	(4a) "Coffee Concentrates." Excluded are: None.	(4a) "Coffee Concentrates." Excluded are: Imported coffee concentrates, if imported in consumer size containers.
(5) "Cookies, Toast and Crumbs" includes, but is not limited to biscuits, Christmas cookies, fig bars or cookies, pretzels, rye crackers, zwieback, melba toast, bread crumbs, cracker crumbs, cookies, matzo, matzo meal and related matzo products. Not included in this definition are any items which are bought by you in bulk and sold loose, or any "crackers" as defined below.	(5) "Cookies, Toast and Crumbs." Excluded are: Any bakery product which you manufacture except "crackers," Passover matzo, Passover matzo meal and related Passover products, any item which is purchased in consumer sizes in tin or glass containers, baked goods, fresh, such as bread, pies, cakes, rolls, doughnuts, coffee cakes, candies (except cookies, toast and crumbs), and rice crackers.	(5) "Cookies, Toast and Crumbs." Excluded are: Imported cookies and toast, if imported in consumer size containers.
(5a) "Crackers" includes all types of soda, sprayed, butter and graham crackers. Not included in this definition are any items which are bought by you in bulk and sold loose.	(5a) "Crackers." Excluded are: Any cracker product which you manufacture, and any cracker item which is purchased in consumer sizes in tin or glass containers.	(5a) "Crackers." Excluded are: Imported crackers, if imported in consumer size containers.
(8) "Fish, Processed" includes canned fish, canned seafood, and salted or otherwise processed fish, such as fish cakes. Not included in this definition are frozen food products in which fish or seafood are combined with other ingredients, clams, crabmeat, lobster, oysters, salmon and tuna.	(8) "Fish, Processed." Excluded are: Frozen fish and seafood, canned clams, and kippered, marinated, dried or smoked fish and seafood (except sardines).	(8) "Fish, Processed." Excluded are: Fresh fish and seafood, canned clam juice, fish and seafood pates, pastes and purees, sauce containing fish and seafood, fish roe, caviar, fish and seafood hors d'oeuvres; imported "fish, processed" if imported in consumer size containers, except crabmeat.
(8a) "Salmon and Tuna, Processed."	(8a) "Salmon and Tuna, Processed." Excluded are: Frozen, kippered, marinated, dried or smoked salmon or tuna.	(8a) "Salmon and Tuna, Processed." Excluded are: None.
(10) "Frozen Foods" (except juices, meat and poultry) means packaged quick-frozen or cold-packed foods sold from refrigerated cabinets or lockers, including but not limited to berries, fruits, vegetables, and mixtures, (except any of the foregoing in containers of a capacity of more than 50 pounds), mushrooms, dog and cat foods, applesauce, chinese foods, gravies, macaroni and spaghetti products, pork and beans, soups, frozen coffee concentrates, concentrated frozen fresh milk, frozen pies and pastries, and food products in which fish or seafood, meat, or poultry are combined with other ingredients. Not included in this definition are all frozen berry, fruit, and vegetable juices, and juice mixtures.	(10) "Frozen Foods." Excluded are: Frozen fruits, berries, vegetables, and mixtures in containers of a capacity of more than 50 pounds, frozen fish and seafood, frozen meat, poultry, ice cream, sherbet and frozen confections.	(10) "Frozen Foods." Excluded are: Frozen hollandaise sauce.
(10a) "Frozen Juices" includes frozen berry, fruit, and vegetable juices, and juice mixtures.	(10a) "Frozen Juices." Excluded are: Frozen juices and mixtures in containers of a capacity of more than 50 pounds.	(10a) "Frozen Juices." Excluded are: None.
(15) "Jams, jellies, preserves and honey" includes but is not limited to, tomato preserves, marmalade, fruit preserves, fruit butters, honey butter and all extracted honey (including combinations of extracted and comb honey) packaged in containers of a capacity of 15 lbs. or less. Not included in this definition are cranberry jelly or sauce and peanut butter.	(15) "Jams, jellies, preserves and honey." Excluded are: Honey packed with blossom and comb honey.	(15) "Jams, jellies, preserves and honey." Excluded are: Wine jellies, preserved kumquats, melons and fruit rind. Also excluded are imported jams, jellies, preserves and honey if imported in consumer size containers.
(15a) "Peanut Butter" includes all smooth or crunch type nut butters.	(15a) "Peanut Butter." Excluded are: None.	(15a) "Peanut Butter." Excluded are: None.
(19) "Meat, Canned" includes but is not limited to, canned or glass chicken products, canned or glass turkey products, chicken and noodles, meat gravy, meat ravioli, pickled meats, chili con carne, meat stews, meat spreads, and spaghetti and meat balls. Not included in this definition are pigs feet, scrapple, tamales, tripe, veal loaf, mincemeat, frozen food products in which meat, chicken or turkey are combined with other ingredients, frozen meat gravies, frozen meat stews and pies, any meat or meat product which is in a pliable plastic or similar type of container, and luncheon meats.	(19) "Meat, Canned." Excluded are: Canned breast of chicken, chicken friesasses, whole or half chicken, chicken-a-la-king, "Smithfield" ham and "Smithfield" ham products and any canned meat which is removed from the can by the retailer and sold sliced in smaller amounts.	(19) "Meat, Canned." Excluded are: Canned smoked tongue, liver, hearts, gizzards, cocktail frankfurters, canned wild game, meat or poultry pates, canned turtle meat, imported canned meat if imported in consumer sizes of 2 pounds or less, except beef and beef products, pate de foie gras and rattlesnake meat.
(19a) "Luncheon Meats, Canned" includes, but is not limited to, spiced ham, pressed ham, chopped ham, spiced pork and spiced beef and pork. Not included in this definition are pigs feet, scrapple, tamales, tripe, veal loaf, mincemeat, frozen food products in which meat, chicken or turkey are combined with other ingredients, frozen meat gravies, frozen meat stews and pies, any meat or meat product which is in a pliable plastic or similar type of container and any "canned meat" as defined above.	(19a) "Luncheon Meats, Canned." Excluded are: Any canned meat which is removed from the can by the retailer and sold sliced in smaller amounts.	(19a) "Luncheon Meats, Canned." Excluded are: Imported luncheon meats if imported in consumer sizes of 2 pounds or less except beef products.

4. Section 33, paragraph (a) Table B is amended to read as follows:

(a) *Table of markups for "perishables" (Table B)—Table B: Markups over "net costs" allowed to Group 1 and Group 2 retailers for "perishables" covered by this regulation by commodities.*

TABLE B—MARKUPS OVER "NET COSTS" ALLOWED TO GROUP 1 AND GROUP 2 RETAILERS FOR PERISHABLES COVERED BY THIS REGULATION BY COMMODITIES

Food commodities	Allowed markups over net cost independent retailers with annual volumes		"Selling unit" in which ceiling price must be calculated
	Group 1, under $75,000	Group 2, $75,000 or more but less than $375,000	
	Percent	*Percent*	
(1) Dairy Products:			
Butter	10	10	1 pound.
Cheese	29	29	1 pound or 1 package.
(2) Ducks processed, sold as purchased	30	30	1 pound.
(3) Fresh vegetables:			
Potatoes, white	35	32	5 pounds.
Potatoes, white [1]	23	21	1 package.

[1] Purchased and sold in consumer size containers; purchased ungraded and unsacked but sold graded in consumer size containers.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective June 2, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 28, 1952.

[F. R. Doc. 52-6043; Filed, May 28, 1952; 4:38 p. m.]

[General Ceiling Price Regulation, Supplementary Regulation 102]

GCPR, SR 102—CEILING PRICES FOR PRESERVATIVELY TREATED DOUGLAS FIR, WESTERN HEMLOCK, AND ALL SPECIES OF TRUE FIR LUMBER

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency Order No. 2, this Supplementary Regulation 102 to the General Ceiling Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

This supplementary regulation establishes new ceiling prices for producers of preservatively treated Douglas Fir, West Coast Hemlock, and all species of True Fir lumber items. Ceiling prices of these items, in their untreated form, are established by the provisions of Ceiling Price Regulation 128.

In 1950, production of preservatively treated lumber from Douglas Fir stock was 98.6 million board feet and from Hemlock stock 260 thousand board feet. More than 70 percent of these totals were produced by 22 plants located west of the 100th meridian, while the remainder was produced by about 100 plants located east of this line. Treated lumber is used in the construction of bridges, docks, shipyard installations, ships, and other construction in which wood is exposed to unfavorable weather conditions or insect attack.

Selling prices for treated lumber are normally determined by adding to the cost of untreated lumber the following: cost of preservatives, labor costs, overhead and other costs, and margin. The issuance of CPR 128 establishing uniform dollars-and-cents ceiling prices for untreated lumber items resulted in destroying, in certain instances, the relationship of the cost of untreated lumber items to the ceiling prices of the treated items as established by the GCPR. This supplementary regulation is an interim one, designed to remove the inequities resulting from this situation.

This regulation provides that each producer must recalculate his f. o. b. ceiling price for a treated lumber item by adding to, or subtracting from, his ceiling price for the treated items established under the GCPR the difference between the highest price at which he contracted to purchase the item in its untreated form during the period January 25, 1951, through February 24, 1951, and his current purchase cost of the identical item but not in excess of the ceiling price established for that item by CPR 128. By thus freezing the gross margin between the treated and untreated lumber, or in other words, the preserving charge, those who sell treated lumber are placed in substantially the same position as those who supply preservative treating on a toll or service charge basis.

For sales on a delivered basis, transportation charges at the prevailing common carrier freight rates at the time of the shipment may be added to the ceiling price arrived at by the above computation.

Provision is made also to enable a producer who cannot determine his ceiling price for a treated item under this supplementary regulation to apply to the OPS for the establishment of a ceiling price.

FINDINGS OF THE DIRECTOR OF PRICE STABILIZATION

In the judgment of the Director of Price Stabilization, the provisions of this Supplementary Regulation to the General Ceiling Price Regulation are generally fair and equitable and are necessary to effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended.

In the formulation of this supplementary regulation, the Director of Price Stabilization has consulted with industry representatives, including trade association representatives, to the extent practicable, and consideration has been given to their recommendations.

So far as practicable, the Director of Price Stabilization gave due consideration to the national effort to achieve maximum production in furtherance of the objectives of the Defense Production Act of 1950, as amended; to prices prevailing during the period from May 24 to June 1950, inclusive; to prices prevailing January 25 to February 24, 1951, inclusive; to prices prevailing just before the issuance of this supplementary regulation.

REGULATORY PROVISIONS

Sec.
1. What this supplementary regulation does.
2. F. O. B. ceiling prices.
3. Delivered sales.
4. Definitions.
5. Incorporation of GCPR provisions.

AUTHORITY: Sections 1 to 5 issued under sec. 704, 64 Stat., 816, Pub. Law 96, 82d Cong., 50 U. S. C., App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, Pub Law 96, 82d Cong., 50 U. S. C., App. Sup. 2101-2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR, 1950 Supp.

SEC. 1. *What this supplementary regulation does.* This supplementary regulation establishes ceiling prices for producers' sales of preservatively treated Douglas Fir, West Coast Hemlock, and all species of True Fir lumber items the ceiling prices for which, when untreated, are established by Ceiling Price Regulation 128.

SEC. 2. *F. O. B. ceiling prices.* (a) You determine your f. o. b. ceiling prices for preservatively treated lumber items by taking your General Ceiling Price Regulation f. o. b. ceiling price to each class of purchaser for each treated lumber item and adjusting it, upwards or downwards, to reflect the dollars-and-cents difference between the highest price at which you contracted to purchase the item in its untreated form during the period January 25, 1951, through February 24, 1951, and your current purchase cost, but not in excess of the ceiling price established by CPR 128, for the identical untreated lumber item.

EXAMPLE: Your GCPR f. o. b. ceiling price for a treated lumber item is $125.00 per M'BM, your highest contract purchase price of the item in its untreated form in the base period was $80.00 per M'BM, and your current purchase cost is $82.00 per M'BM, which is the ceiling price under CPR 128, for the identical untreated item. Your f. o. b. ceiling price for the treated lumber item is now $127.00 per M'BM.

If you did not contract to purchase an item in its untreated form during the period January 25, 1951, through February 24, 1951, then you shall adjust your GCPR f. o. b. ceiling price for that item to reflect the dollars-and-cents difference between the highest price at which you contracted to purchase the untreated item of the same class and grade and the nearest thickness, width, and length, and your current purchase cost, but not in excess of the ceiling price established by CPR 128, for that untreated lumber item.

NOTE: If your current purchase cost or the CPR 128 ceiling price for an untreated item is lower than your contract purchase price for the same untreated item or the untreated item of the same class and grade and the nearest thickness, width, and length, you must adjust your ceiling price for the treated item to reflect such decrease.

EXAMPLE: Your January 25, 1951, to February 24, 1951 contract purchase price for a particular item was $96.00 per M'BM and your current purchase cost is $92.00, which is less than the CPR 128 ceiling for that item of $94.00. You will subtract $4.00 per M'BM from your GCPR f. o. b. price for that treated item. If, subsequently, you make a purchase of the same item at the CPR 128 ceiling of $94.00 per M'BM, your ceiling price under this regulation for that lumber when treated will be your GCPR price less $2.00.

(b) *Application for establishment of a ceiling price.* If you cannot ascertain your ceiling price for a treated item under paragraph (a) of this section, you must apply by registered mail, return receipt requested, to the Office of Price Stabilization, Forest Products Division, Washington 25, D. C., for the establishment of a ceiling price. Your application must set forth the following:

(1) As complete a description as possible of the item.

(2) A statement explaining why you are unable to determine a ceiling price under paragraph (a) of this section.

(3) The ceiling price of your most closely competitive seller to a purchaser of the same class for the same item. ("Your most closely competitive seller" is the seller of treated items subject to this regulation with whom you are in most direct competition even though he may perform a different function with respect to the items he is selling.)

(4) Your proposed ceiling price.

(5) A statement explaining why you believe your proposed ceiling price is in line with the level of ceiling prices established by this regulation.

If you cannot determine a ceiling price under paragraph (a) of this section and file an application for the establishment of your ceiling price, you may not sell the item in question until the Director of Price Stabilization establishes a ceiling price for you. If the Director of Price Stabilization does not notify you to the contrary or request further information from you within 30 days after the date on the return receipt of your application, or within 20 days after the receipt of requested further information, your proposed ceiling price shall be deemed to have been approved, subject to nonretroactive disapproval or modification at a later date.

SEC. 3. *Delivered sales*—(a) *Ceiling prices.* When you sell your treated lumber on a delivered basis, the delivered ceiling prices are the f. o. b. ceiling prices as established by section 2, plus an addition for transportation. The transportation addition is computed by multiplying the appropriate established weight by the applicable common carrier freight rate in effect at the time of shipment. Paragraph (b) of this section provides a method by which you may determine the established weight of treated lumber items.

(b) *Established weights.* (1) The established rough green and surfaced green weights set forth in CPR 128 for untreated lumber are increased by 50 pounds per M'BM for each pound retention per cubic foot of creosote, creosote mixture, or oil preservative.

(2) For salt treatment 900 pounds per M'BM are added to the rough green and surfaced green established weights set forth in CPR 128, except that when items are kiln dried after salt treatment the established weights set forth in CPR 128 are increased by only 225 pounds.

(3) For grade H fire retardant treatment (5 to 6 pound retention), when shipped wet from the retort, 1,500 pounds per M'BM are added to the rough green and surfaced green established weights set forth in CPR 128, except that when items are kiln or air-dried after treatment the established weights set forth in CPR 128 are increased by only 800 pounds per M'BM.

(4) For grade M fire retardant treatment (2½ to 3 pounds retention), when shipped wet from the retort, 1,200 pounds per M'BM are added to the rough green and surfaced green established weights set forth in CPR 128, except that when items are kiln or air-dried after treatment the established weights set forth in CPR 128 are increased by only 600 pounds per M'BM.

SEC. 4. *Definitions.*—(a) *Preservative treatment.* Preservative treatment may be accomplished by two different processes:

(1) *Pressure treatment.* This process is the impregnation of sawn lumber items with creosote, creosote mixture, oil preservatives, water borne salt preservatives, or fire retardant chemicals in a closed retort by vacuum process, in accordance with Federal Government or American Wood Preservers' Association specifications in effect at the time of issuance of this regulation.

(2) *Non-pressure treatment.* This process is the immersion of sawn lumber items in creosote, creosote mixture, oil preservatives or water borne salt preservatives in an open tank or vessel, alternating with hot and cold solutions, for a given length of time.

SEC. 5. *Incorporation of GCPR provisions.* Except as herein specifically modified, all provisions of the General Ceiling Price Regulation remain in effect.

Effective date. This supplementary regulation to the General Ceiling Price Regulation shall become effective May 31, 1952.

NOTE: The reporting requirements of this supplementary regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

EDWARD F. PHELPS, JR.,
Acting Director of Price Stabilization.

MAY 28, 1952.

[F. R. Doc. 52-6044; Filed, May 28, 1952; 4:39 p. m.]

[Ceiling Price Regulation 15, Amdt. 14]

CPR 15—CEILING PRICES OF CERTAIN FOODS SOLD AT RETAIL IN GROUP 3 AND GROUP 4 STORES

INCREASES IN CERTAIN MARKUPS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this Amendment 14 to Ceiling Price Regulation 15 is hereby issued.

STATEMENT OF CONSIDERATIONS

This statement of considerations covers Amendment 14 to Ceiling Price Regulation 15 and Amendment 14 to CPR 16.

CPR's 15 and 16 were issued on March 28, 1951, and became effective on May 14, 1951. Both regulations prescribe standard markups to be used by food retailers in fixing their ceiling prices for dry groceries and certain perishables. The markups prescribed are the same as those used by OPA (except in the case of retailers under CPR 15 who received an upward adjustment) because no better information was available as to markups which would precisely meet the requirements of the Defense Production Act.

OPS announced when it issued the regulations that it would conduct a survey of markups used by food distributors in the pre-Korean period and then reexamine the markups in CPR's 15 and 16 in the light of the survey results. This survey, one of the most complex ever attempted by a government agency, is now under way. As soon as the collection of data is completed, they will be tabulated and analyzed. However, even with the most expeditious handling of the survey and of the necessary tabulations, the OPS will probably not be able to re-examine the markups in CPR's 15 and 16 before some months have elapsed.

The status of earnings. The nation's food retailers have for some time contended that their earnings were severely affected by these regulations. Accordingly, at the end of October 1951, OPS undertook a survey designed to gather data which would show how the 1951 earnings of all food wholesalers and retailers had been affected from the viewpoint of the "generally fair and equitable" requirement of the statutes. Although this survey was presented and explained to the food wholesale and retail Industry Advisory Committees, the number of usable returns received was entirely too small for a statistically adequate sample.

Early in February 1952, after additional consultation with industry representatives, including trade association representatives, and also with OPS consultants, another earnings survey covering Groups 3 and 4 stores was begun. The data for Groups 3 and 4 stores show a decrease in earnings requiring an adjustment of markups.

The standard which OPS has used in determining whether Groups 3 and 4 food retailers' earnings have been reduced below what is "generally fair and equitable" is the so-called Johnston Standard, or the industry earnings standard. This was set forth in a letter dated April 21, 1951, from Mr. Eric Johnston, then Administrator of the Economic Stabilization Agency, to Mr. Michael V. DiSalle, then Director of the Office of Price Stabilization, as follows:

(1) The level of price ceilings for an industry shall normally be considered "generally fair and equitable" under the Defense

Production Act if the dollar profits of the industry amount to 85 percent of the average for the industry's best three years during the period of 1946–1949, inclusive. The profits should be figured before federal income and excess profits taxes and after normal depreciation only, with adjustments made for any change in net worth.

The Director has temporarily decided to treat Groups 3 and 4 stores as an industry for the purposes of applying the industry earnings standard.

How the increase is effectuated. In determining the amount by which the overall markup for dry groceries should be adjusted in view of the fact that 1951 earnings appear to have been below the Johnston Standard, the Director has taken into account the following factors: (1) The proportion of the total sales of Groups 3 and 4 stores accounted for by dry groceries; (2) the fact that certain commodities like fruits and vegetables are not under price control; and (3) the fact that the ceiling prices of certain other items sold by Groups 3 and 4 stores which are governed by the GCPR and other regulations cannot practicably be adjusted. The mechanics of effectuating the increase are as follows: (1) Certain of the groups of commodities listed in Table A of CPR 15 have been split into two groups with a higher markup provided for one of the groups; and (2) certain of the groups of commodities listed in Tables A and B have been given higher markups. Similar but not quite as extensive changes have been made in CPR 16.

In computing the individual category adjustments the Director has taken account of a number of factors. Thus, it was recognized that in some or all of the categories for which adjustments are being made, some of the individual items will not bring the authorized ceiling prices. In determining the extent to which the adjusted markups will probably be realized, the Director has used rates of effectiveness estimated by OPS consultants and industry representatives. At the same time, however, recognition has been given to the real possibility, in view of unsettled international conditions, that there may be a sudden tightening of retail food prices in the future. Any significant change in international conditions could result in a greater rate of effectiveness than is now estimated. In addition, full account has been taken of distribution rates for each category. That is, consideration has been given, on the basis of estimates by OPS consultants, to the proportion of total dry grocery sales which each category represents. Finally, in connection with the amendment to CPR 16, the objective has been to so adjust the markups for Groups 1 and 2 stores as to prevent serious price distortions and to preserve reasonable relations between the markups for all four classes of retailers.

It is plain from their nature that all of these considerations raise questions of judgment and that the judgments have had to be made on the basis of estimates. None of the factors which have had to be taken into account permit of precise mathematical evaluation. The Director therefore recognizes some of the judgments he has made may not be borne out by futur. events, resulting in either inadequate or over-generous correction of the earnings deficit. This is, however, balanced by the interim nature of the adjustments and the probability that the risks are confined to a relatively short period. After the completion of the food margin survey previously referred to, the Office of Price Stabilization will re-examine the whole situation in the light of pre-Korean markups as revealed by that survey, the current earnings picture of food retailers under these amendments, and all other available information, and make such adjustments, downward or upward, as will be warranted.

OPS realizes that these amendments will result in an increase in price for some dry grocery items bearing on the cost of living. Therefore, it has issued these amendments only upon the basis of data which make a clear and unequivocal showing that the Groups 3 and 4 food retailers have suffered such a decline in their net earnings before taxes that it would not be fair and equitable to require them to continue under CPR 15 without this amendment.

It is the judgment of the Director that the markups prescribed by these amendments meet the requirements of section 402 (k) of the Defense Production Act of 1950, as amended. Subject to correction by the food margin survey, the best information as to markups in the pre-Korean period continues to be the OPA markups. Even if it should turn out to be true, as some have contended, that the OPA markups had become outdated prior to May 24, 1950, they represent the only data of this kind collected on a scientific basis. On the basis of all information available to him, including the advice of industry representatives, the Director has concluded that, at the very least, the margins established by this amendment satisfy the requirements of section 402 (k).

A minor amendatory provision included in these amendments changes sections 16 (b) of CPRs 15 and 16. Section 16 (b) in each regulation provides that whenever an amendment changes either a commodity definition in Table A by transferring a food product from one commodity group to another or a markup set for a group of retailers, the ceiling prices for the affected items must be refigured by the effective date of the amendment. In refiguring the retailer must use as "net cost" the "net cost" used in figuring the existing ceiling prices. This section is now made to apply to items in Table B (perishables).

FINDINGS OF THE DIRECTOR

In the formulation of this amendment the Director of Price Stabilization has consulted with the Industry Advisory Committees and industry representatives, including trade association representatives, and has given full consideration to their recommendations. In his judgment the provisions of this regulation are generally fair and equitable, are necessary to effectuate the purpose of Title IV of the Defense Production Act of 1950, as amended, and comply with all the applicable standards of that act.

AMENDATORY PROVISIONS

1. Section 16 (b) is amended to read as follows:

(b) Whenever an amendment changes either a commodity definition in Tables A or B by transferring a food product from one commodity group to another or the markup for your group of retailers, you must, by the opening of business on the effective date of such amendment, refigure your ceiling prices for the items affected by such amendment. However, in doing so, you must use as your "net cost" the same "net cost" you used in figuring the ceiling prices you had on the effective date of the amendment.

2. Section 37 (a) is amended to read as follows:

(a) *Table A—Markups over "net cost" allowed to Groups 3 and 4 retailers for dry groceries covered by this regulation by commodities.*

TABLE A—MARKUPS OVER "NET COST" ALLOWED TO GROUP 3 AND GROUP 4 RETAILERS FOR DRY GROCERIES COVERED BY THIS REGULATION BY COMMODITIES

Food Commodities	Allowed markups over net cost	
	Group 3, retailer other than independent with annual volume under $375,000	Group 4, any retailer with annual volume of $375,000 or more
	Percent	*Percent*
1. Baby foods	18	16
2. Cereals, breakfast	20	18
3. Cocoa, chocolate and cereal drink preparations	22	21
4. Coffee	12	11
4a. Coffee concentrates	16	15
5. Cookies, toast and crumbs	30	30
5a. Crackers	25	25
6. Corn meal, hominy and flour mixes	25	21
7. Dog and cat foods	24	24
8. Fish, processed	25	25
8a. Salmon and tuna, processed	21	21
9. Flour, packaged (5-pound containers or less)	23	17
9a. Flour	20	14
10. Frozen foods	30	30
10a. Frozen juices	27	27
11. Fruits, berries and fruit juices (canned) except fruit cocktail, pineapple, peaches, pears, and citrus juices	30	30
12. Fruit cocktail, pineapple, peaches, pears and citrus juices (canned)	23	21
13. Fruits, dried and dehydrated	25	25
14. Gelatin and pudding mixtures	23	18
15. Jams, jellies, preserves, and honey	35	35
15a. Peanut butter	31	31
16. Lard, pure	17	15
17. Macaroni and spaghetti products	27	26
18. Mayonnaise and salad dressing	22	22
19. Meat, canned	23	22
19a. Luncheon meats	19	18
20. Milk, canned	10	9
21. Oils, cooking and salad	24	16
22. Oleomargarine	18	18
23. Pickles and relishes	35	35
24. Rice	24	20
25. Shortening, hydrogenated	9	9
26. Shortening, other	17	13
27. Soups, canned	19	19
28. Soups, dehydrated	31	27
29. Spices	46	46
30. Syrups	24	21
31. Tea	25	25
32. Vegetables and vegetable juices (canned) except corn, green beans, peas, tomatoes and tomato juice	30	30
33. Corn, green beans, peas, tomatoes and tomato juice (canned)	23	21
34. Vegetables, dried and dehydrated	34	29
35. Vinegar	34	33
36. Miscellaneous foods	35	35

3. In section 37 (b), (c) and (d) amend items (4), (5), (8), (9), (10), (15), and (19) to read as follows:

(4) "Coffee" means roasted coffee, whole or ground, decaffeinated coffee, an any mixtures of coffee with other products for beverage purposes. Excluded from this definition are all "coffee concentrates," including "frozen coffee concentrates."	(4) "Coffee." Excluded is: Green coffee in containers of the customary unit and weight in which they are imported into the United States.	(4) "Coffee." Excluded is: Imported coffee if imported in consumer size containers (2 lbs. or less).
(4a) "Coffee Concentrates" includes but is not limited to instant and soluble coffee concentrates whether or not mixed with other ingredients. Not included in this definition is frozen coffee concentrate.	(4a) "Coffee Concentrates." Excluded are: None.	(4a) "Coffee Concentrates." Excluded are: Imported coffee concentrates, if imported in consumer size containers.
(5) "Cookies, Toast and Crumbs" includes, but is not limited to biscuits, Christmas cookies, fig bars or cookies, pretzels, rye crackers, zwelback, melba toast, bread crumbs, cracker crumbs, cookies, matzo, matzo meal and related matzo products. Not included in this definition are any items which are bought by you in bulk and sold loose, or any "crackers" as defined below.	(5) "Cookies, Toast and Crumbs." Excluded are: Any bakery product which you manufacture except "crackers," Passover matzo, Passover matzo meal and related Passover products, any item which is purchased in consumer sizes in tin or glass containers, baked goods, fresh, such as bread, pies, cakes, rolls, doughnuts, coffee cakes, candies (except cookies, toast and crumbs), and rice crackers.	(5) "Cookies, Toast and Crumbs." Excluded are: Imported cookies and toast, if imported in consumer size containers.
(5a) "Crackers" includes all types of soda, sprayed, butter and graham crackers. Not included in this definition are any items which are bought by you in bulk and sold loose.	(5a) "Crackers." Excluded are: Any cracker product which you manufacture, and any cracker item which is purchased in consumer sizes in tin or glass containers.	(5a) "Crackers." Excluded are: Imported crackers, if imported in consumer size containers.
(8) "Fish, Processed" includes canned fish, canned seafood, and salted or otherwise processed fish, such as fish cakes. Not included in this definition are frozen food products in which fish or seafood are combined with other ingredients, clams, crabmeat, lobster, oysters, salmon and tuna.	(8) "Fish, Processed." Excluded are: Frozen fish and seafood, canned clams, and kippered, marinated, dried or smoked fish and seafood (except sardines).	(8) "Fish, Processed." Excluded are: Fresh fish and seafood, canned clam juice, fish and seafood pates, pastes and purees, sauce containing fish and seafood, fish roe, caviar, fish and seafood hors d'oeuvres; imported "fish, processed" if imported in consumer size containers, except crabmeat.
(8a) "Salmon and Tuna, Processed."	(8a) "Salmon and Tuna, Processed." Excluded are: Frozen, kippered, marinated, dried or smoked salmon or tuna.	(8a) "Salmon and Tuna, Processed." Excluded are: None.
(9) "Flour, Packaged" means packaged flour (in containers of 5 pounds or less) milled from wheat, semolina, farina, buckwheat, corn, rice, and potatoes, including but not limited to, all-purpose family flour, self-rising flour, cake flour and enriched flour. Not included in this definition are all flour mixes.	(9) "Flour, Packaged." Excluded are: None.	(9) "Flour, Packaged." Excluded are: None.
(9a) "Flour, Other" means all flour in containers of more than 5 pounds milled from wheat, semolina, farina, buckwheat, corn, rice, and potatoes, including but not limited to, all-purpose family flour, self-rising flour, cake flour and enriched flour. Not included in this definition are all flour mixes.	(9a) "Flour, Other." Excluded are: None.	(9a) "Flour, Other." Excluded are: None.
(10) "Frozen Foods" (except juices, meat and poultry) means packaged quick-frozen or cold-packed foods sold from refrigerated cabinets or lockers, including but not limited to berries, fruits, vegetables, and mixtures, (except any of the foregoing in containers of a capacity of more than 50 pounds), mushrooms, dog and cat foods, applesauce, chinese foods, gravies, macaroni and spaghetti products, pork and beans, soups, frozen coffee concentrates, concentrated frozen fresh milk, frozen pies and pastries, and food products in which fish or seafood, meat, or poultry are combined with other ingredients. Not included in this definition are all frozen berry, fruit, and vegetable juices, and juice mixtures.	(10) "Frozen Foods." Excluded are: Frozen fruits, berries, vegetables, and mixtures in containers of a capacity of more than 50 lbs., frozen fish and seafood, frozen meat, poultry, ice cream, sherbet and frozen confections.	(10) "Frozen Foods." Excluded are: Frozen hollandaise sauce.
(10a) "Frozen Juices" includes frozen berry, fruit, and vegetable juices, and juice mixtures.	(10a) "Frozen Juices." Excluded are: Frozen juices and mixtures in containers of a capacity of more than 50 pounds.	(10a) "Frozen Juices." Excluded are: None.
(15) "Jams, jellies, preserves and honey" includes but is not limited to, tomato preserves, marmalade, fruit preserves, fruit butters, honey butter and all extracted honey (including combinations of extracted and comb honey) packaged in containers of a capacity of 15 pounds or less. Not included in this definition are cranberry jelly or sauce and peanut butter.	(15) "Jams, jellies, preserves and honey." Excluded are: Honey packed with blossom and comb honey.	(15) "Jams, jellies, preserves and honey." Excluded are: Wine jellies, preserved kumquats, melons and fruit rind. Also excluded are imported jams, jellies, preserves and honey if imported in consumer size containers.
(15a) "Peanut Butter" includes all smooth or crunch type nut butters.	(15a) "Peanut Butter". Excluded are: None.	(15a) "Peanut Butter." Excluded are: None.
(19) "Meat, Canned" includes but is not limited to, canned or glass chicken products, canned or glass turkey products, chicken and noodles, meat gravy, meat ravioli, pickled meats, chili con carne, meat stews, meat spreads, and spaghetti and meat balls. Not included in this definition are pigs feet, scrapple, tamales, tripe, veal loaf, mincemeat, frozen food products in which meat, chicken or turkey are combined with other ingredients, frozen meat gravies, frozen meat stews and pies, any meat or meat product which is in a pliable plastic or similar type of container, and luncheon meats.	(19) "Meat, Canned." Excluded are: Canned breast of chicken, chicken fricassee, whole or half chicken, chicken-a-la-king, "Smithfield" ham and "Smithfield" ham products and any canned meat which is removed from the can by the retailer and sold sliced in smaller amounts.	(19) "Meat, Canned." Excluded are: Canned smoked tongue, liver, hearts, gizzards, cocktail frankfurters, canned wild game, meat or poultry pates, canned turtle meat, imported canned meat if imported in consumer sizes of 2 pounds or less, except beef and beef products, pate de foie gras and rattlesnake meat.
(19a) "Luncheon Meats, Canned" includes, but is not limited to, spiced ham, pressed ham, chopped ham, spiced pork and spiced beef and pork. Not included in this definition are pigs feet, scrapple, tamales, tripe, veal loaf, mincemeat, frozen food products in which meat, chicken or turkey are combined with other ingredients, frozen meat gravies, frozen meat stews and pies, any meat or meat product which is in a pliable plastic or similar type of container and any "canned meat" as defined above.	(19a) "Luncheon Meats, Canned." Excluded are: Any canned meat which is removed from the can by the retailer and sold sliced in smaller amounts.	(19a) "Luncheon Meats, Canned." Excluded are: Imported luncheon meats if imported in consumer sizes of 2 pounds or less, except beef products.

4. Section 38, paragraph (a), Table B is amended to read as follows:

(a) *Table of mark-ups for "perishables" (Table B)—Table B: Mark-ups over "net cost" allowed to Group 3 and Group 4 retailers for "perishables" covered by this regulation by commodities.*

TABLE B—MARKUPS OVER "NET COST" ALLOWED TO GROUP 3 AND GROUP 4 RETAILERS FOR PERISHABLES COVERED BY THIS REGULATION BY COMMODITIES

Food commodities	Allowed markups over net cost		Selling unit in which selling price must be calculated
	Group 3, retailer other than independent with annual volume under $375,000	Group 4, any retailer with annual volume of $375,000 or more	
	Percent	*Percent*	
(1) Dairy products:			
Butter	10	10	1 pound.
Cheese	27	25	1 pound or 1 package.
(2) Ducks processed, sold as purchased	28	28	1 pound.
(3) Fresh vegetables:			
Potatoes, white	32	30	5 pounds.
Potatoes, white [1]	21	30	1 package.

[1] Purchased and sold in consumer size containers; purchased ungraded and unsacked but sold graded in consumer size containers.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective June 2, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 28, 1952.

[F. R. Doc. 52-6042; Filed, May 28, 1952; 4:38 p. m.]

[Ceiling Price Regulation 93, Interpretation 1]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 1—CONSTRUCTION SERVICES COVERED BY REGULATION—MINOR PLUMBING AND ELECTRICAL SERVICES (SECTION 2)

Minor plumbing and electrical services, such as cleaning a drain or repairing a leaky faucet or a defective electrical switch, would be considered "the repair of an existing building," under section 2 (a) (1) and would be governed by CPR 93. However, services consisting of the installation, maintenance and repair of "appliances," would be excluded from CPR 93 by section 3 (b).

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6059; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 4]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 4—CONSTRUCTION AND INSTALLATION SERVICES COVERED—SEPARATE STATEMENT OF CHARGES FOR SERVICES (SECTION 2 (a) (3) AND SECTION 3 (c))

Some manufacturers of fabricated materials and equipment sell such equipment and also sell installation or erection services. Their bills or invoices sometimes state charges for commodities separately from the installation or erection services; sometimes they treat the transactions as combination sales and state lump sum charges which are not broken down to show separate prices for materials and installation or erection services.

Where a manufacturer sells commodities and makes a separate charge for installation or erection services, section 2 (a) (3) provides that the ceiling prices for the installation or erection services alone are determined under CPR 93. In such instances, under section 3 (c), ceiling prices for the commodities, as distinguished from installation or erection services, are established pursuant to the GCPR or the applicable manufacturers' regulation.

The foregoing situation is to be distinguished from the situation where the manufacturer sells commodities and services without a separate statement of charges for each. In the latter situation, the entire transaction is priced under CPR 93.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6062; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 5]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 5—WRECKING AS A SEPARATE TRANSACTION (SECTION 3 (f))

Section 3 (f) provides that services involving wrecking "as a separate transaction" are not covered by CPR 93. Such services remain subject to other applicable regulations. Wrecking would only be a "separate transaction," as stated in section 3 (f), and therefore not subject to CPR 93, if it is not performed as a part of a construction contract. Where the wrecking is part of a general construction contract, even though the wrecker himself is to have nothing to do with that construction, the transaction is not separate and the wrecker would be subject to the provisions of CPR 93.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6063; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 7]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 7—FILING UNDER CPR 34 BY A SELLER NOW SUBJECT TO CPR 93 (GENERAL)

Filing under CPR 34 is not a prerequisite to the establishment and use of ceiling prices under CPR 93. As of the effective date of CPR 93, November 20, 1951, CPR 34 was superseded as to construction services covered by CPR 93. Therefore, a seller of construction services under CPR 93 need not comply with the filing requirements of CPR 34 before he can apply the provisions of CPR 93. However, this will not affect the seller's status in respect to past transactions when he was under CPR 34.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6065; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 6]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 6—STANDARD FLOOR COVERING (SECTION 3 (g))

Section 3 (g) states that CPR 93 does not cover, among other things, "the installed sales of standard floor coverings such as linoleum." The services involved in this exception are those related to the installation of floor coverings such as rugs, linoleum rugs, carpets, or carpeting. The distinction between a floor covering which is subject to the regulation and a "standard floor covering" which is excepted from CPR 93 is as follows: If the covering is so installed so that it becomes a part of the permanent floor, or is so affixed to the permanent floor or sub-floor that it cannot be easily removed without damage, it is subject to CPR 93. On the other hand, if the floor covering is laid and can be removed without changing the basic character of the floor, it is excepted from CPR 93. Thus, for example, the installation of asphalt tile flooring or hardwood flooring would be subject to CPR 93. Similarly, installing linoleum floors which are cemented to the underflooring is also subject to CPR 93. On the other hand, services in connection with the laying of linoleum rugs which are not affixed to the building would be excepted from CPR 93.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6064; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 8]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 8—COMMISSION SELLING (GENERAL)

Certain roofing and siding contractors quote their salesmen a price for roofing, for example, $20.00 per square, and permit each salesman to keep any difference between this amount and the price the salesman charges the householder as the salesman's commission.

If the sale is made in the name of, and for the account of, the contractor, and the contractor is responsible for performance and billing, the salesman is regarded as an employee or agent of the contractor. The price such a salesman quotes becomes the price of his principal, and the contractor's markups over costs are limited by CPR 93 to the contractor's established base period practice. However, in computing his costs, the contractor may properly reflect the salesman's commission as a selling cost, as provided by CPR 93.

If the salesman operates as a seller of construction services in his own name and for his own account, and makes himself responsible for performance, he is considered a prime contractor under CPR 93. Therefore his markups over costs are limited under CPR 93 by his established base period practice. His costs would include his subcontractor's charges, which would be the roofing contractor's price to him.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6066; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 9]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 9—SEPARATE APPLICATION OF PROFIT AND OVERHEAD PERCENTAGE MARKUPS, OR USE OF COMBINED PERCENTAGE MARKUP FOR OVERHEAD AND PROFIT (GENERAL)

Sections 12, 15, 21 (b) and (d), and 22 (a) embody a pricing formula consisting of current direct costs, plus base period percentage markup for overhead, plus base period percentage markup for profit diminished by 10 percent.

Sellers who are subject to these provisions may apply percentage markups for overhead and for profit separately, or they may use total or combined markup percentages which include overhead and profit.

For example, a contractor has, during the base period, consistently applied his percentage markups for overhead and profit in the following manner:

Job costs	$1,000.00
15 percent for overhead	150.00
	1,150.00
10 percent for profit	115.00
Total charge	$1,265.00

He has filed a "revised" total markup of 25.35 percent under CPR 93. This complies with CPR 93. The revised total markup is properly computed under CPR 93 as follows:

$\frac{\$115 \text{ profit}}{\$1,000 \text{ job cost}} = 0.115$ or 11.5 percent of job costs for profit.

11.5 x .9 = 10.35 percent of job costs as diminished profit markup.

10.35 (diminished percentage markup for profit) + 15 (undiminished base period percentage markup for overhead) = 25.35 percent, as the revised total markup under CPR 93.

$1,000 x .2535 = $253.50 profit and overhead, plus 1,000.00 job costs

= $1,253.50, ceiling price under CPR 93.

That the ceiling price arrived at by use of the revised total markup is the same as that which is arrived at by use of the method followed by the contractor (separate application of profit and overhead markups), is shown as follows:

Job costs	$1,000.00
15 percent base period overhead markup	150.00
	1,150.00
9 percent diminished profit markup	$103.50
Ceiling Price under CPR 93	$1,253.50

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6067; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 10]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 10—LISTING OF MATERIALS IN PART 2 OF FORM 101 (SECTION 32)

Where a seller had a CPR 93 base period practice of applying markups to materials costs, he must supply information in Part 2 of Form 101 regarding his base period materials costs and his percentage markups over such costs.

In determining his markups on varying categories of materials, many sellers used the prices shown in catalogues, price guides, or price services as their costs. Although CPR 93 has not specifically authorized the use of such publications, in some cases it may be practical, however, for a seller to refer to a catalogue, price guide, or price service to determine his materials costs in lieu of a separate listing of all the materials in Part 2 of Form 101. However, this must conform to the seller's base period practice.

The instructions accompanying Form 101 require that the seller list "each type of category having a different percentage markup." If, during the CPR 93 base period, a seller varied his markups for different categories of materials, and the same catalogues, price guides or price services then and now used by him broke down the materials into the same categories, OPS instructions would be satisfied by the seller's reference to that publication for the breakdown of categories.

The percentage markups which the seller reports for each category must reflect his actual base period practice and, further, must correctly reflect the reduction in profit percentage as required by CPR 93. To the extent that it meets, for any seller, the foregoing criteria, the use of a catalogue, price guide, or price service as a reference by that seller may be approved.

Some sellers during the CPR 93 base period customarily used overhead and profit percentages based upon selling prices rather than upon costs. Such sellers may, in Part 2 of Form 101, use markups in terms of percentages to sales rather than percentages to costs if such markups are identified as being formulated on that basis.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6068; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 11]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 11—FILING REQUIREMENTS UNDER CPR 93 (SECTION 32)

Filing on Form 101 is required only from those sellers who sell construction services on an hourly rate basis or on a time and materials basis and who determine ceiling prices under one or more of the subparagraphs of section 21.

Form 102 need be filed only by a seller who, due to an increased labor cost incurred subsequent to his original filing on Form 101, finds it necessary to increase an hourly rate which he had previously reported on Form 101.

Filing on Form 103 is required only from those who sell construction services on an installed sale basis subject to section 22 (c).

Form 104 need be filed only by one who, due to an increased commodity cost incurred subsequent to his original filing on Form 103, finds it necessary to increase a ceiling price which he had previously reported on Form 103.

Those who sell construction services on a lump-sum or cost-plus contract basis and who are subject to the provisions of sections 12, 13, 14, 15, or those who sell on an installed sale basis, subject to section 22 (a) or 22 (b), need not file a report in connection with those services. However, these sellers must comply with the special record keeping requirements of section 31 (b), as well as with the general record keeping requirements of section 31 (a).

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6069; Filed, May 29, 1952; 4:00 p. m.]

[Ceiling Price Regulation 93, Interpretation 12]

CPR 93—CONSTRUCTION AND RELATED SERVICES AND SALES OF INSTALLED MATERIALS

INT. 12—"EXTRA WORK" CONNECTED WITH A LUMP-SUM CONTRACT (SECTION 12)

If a lump-sum contract is entered into, and, later, there is extra work on the same job, which is to be billed on an

hourly basis, section 21 is applicable to such extra work, and information relating to such extra work must be reported on OPS Public Form No. 101, as required by section 32 of CPR 93.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

HERBERT N. MALETZ,
Chief Counsel,
Office of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6070; Filed, May 29, 1952; 4:00 p. m.]

[General Ceiling Price Regulation, Amdt. 8 to Supplementary Regulation 13]

GCPR, SR 13—COKE, COAL, CHEMICALS AND COKE OVEN GAS

ELIMINATION OF EXPIRATION DATE

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this Amendment to Supplementary Regulation 13 to the General Ceiling Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment eliminates the expiration date of SR 13 which would otherwise expire on May 31, 1952. It now appears that because of various economic factors affecting the industry, and the need for further data and information, it is not practicable to issue a tailored regulation prior to the present expiration date of May 31, 1952. Therefore, the expiration date is eliminated.

Prior to the issuance of this amendment there has been consultation with industry representatives, including trade association representatives, to the extent practicable, and consideration has been given to their recommendations.

AMENDATORY PROVISIONS

Supplementary Regulation 13 to the GCPR is amended by deleting the following paragraph:

Expiration date. This supplementary regulation to the General Ceiling Price Regulation shall expire at midnight May 31, 1952.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective May 29, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6058; Filed, May 29, 1952; 10:49 a. m.]

[General Ceiling Price Regulation, Supplementary Regulation 63, Area Milk Price Regulation 25]

GCPR, SR 63—AREA MILK PRICE ADJUSTMENTS

AMPR 25—MILK PRODUCTS FOR FLUID CONSUMPTION IN THE FAIRFIELD COUNTY, CONNECTICUT, MILK MARKETING AREA

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), Economic Stabilization Agency General Order No. 2 (16 F. R. 738) and Supplementary Regulation 63 to the General Ceiling Price Regulation (16 F. R. 9559), Delegation of Authority No. 41 (16 F. R. 12679) and Region I Redelegation of Authority No. 22 (17 F. R. 260), this Area Milk Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

The General Ceiling Price Regulation issued on January 26, 1951, pointed out that the general freeze which it imposed on prices at all levels of production and distribution was an emergency measure made imperative by the urgency of bringing the inflationary spiral to a halt. On September 24, 1951, Supplementary Regulation 63 became effective permitting adjustments of ceiling prices for fluid milk products in individual marketing areas upon petition or upon the initiative of the appropriate District or Regional Director. Pursuant to this authority, as delegated and redelegated, this area milk price regulation is being issued adjusting ceiling prices for the Fairfield County, Connecticut, Milk Marketing Area on sales of milk and cream within that area by processors and distributors. Sales of cottage, pot and bakers' cheese, and sales by retail stores are not covered by this regulation. Milk products and sales not covered by this regulation remain subject to the provisions of the General Ceiling Price Regulation.

The marketing area was determined after considering all relevant factors such as places where milk is processed and utilized, places where milk in the area originates, the prevailing wage rates in the area, and historic differences in retail pricing between this area and the rest of the state. Moreover, sellers covered by this regulation proposed this area to the Hartford District Office.

The area milk price regulation provides uniform adjustments of ceiling prices determined under section 3 of the General Ceiling Price Regulation. Under this method each seller applies a uniform set of adjustments to the highest prices he charged for his basic units of milk and cream during the period December 19, 1950, to January 25, 1951.

The uniform adjustments and the resulting ceiling prices give effect to increases in cost of direct labor, containers, and raw materials between the pre-Korean period and a current period, and to changes in selling prices between the pre-Korean and GCPR base periods.

Current raw material prices upon which the uniform adjustments are predicated are specified in section 5, and were applicable to April, 1952. As future increases and decreases in these prices take place equivalent upward adjustments in ceilings will be permitted and equivalent downward adjustments must be made.

Increases in the cost of milk from the pre-Korean period to the current period, and future milk cost changes, upon which adjustments under this regulation are based, reflect changes in the minimum producer Class I price as established by the Connecticut Milk Administrator for Connecticut Milk Market Area No. I. Some milk for Fairfield County is purchased outside of Connecticut under other price plans. However, because the proportion of this outside milk is small, and its effect on the uniform adjustments contained in this regulation unsubstantial, the official Connecticut prices have been used as the sole measure of milk cost changes.

Calculations were based on data submitted by a representative number of distributors. The regulation is a result of petitions received from 14 distributors in the area, representing approximately 70% of the volume of milk sold in the area. Among those petitioning were large, medium, and small dealers. Spot checks were made to determine the accuracy of cost, sales, and volume figures contained in the petitions.

Every effort has been made to conform this regulation to existing business practices, cost practices or methods, or means or aids to distribution. Insofar as any provisions of this regulation may operate to compel changes in the business practices, cost practices or methods, or means or aids to distribution, such provisions are found by the Director of the Hartford District Office of the Office of Price Stabilization to be necessary to prevent circumvention or evasion of this regulation.

In the judgment of the Director of the Hartford District Office of the Office of Price Stabilization, the provisions of this area milk price regulation are generally fair and equitable and are necessary to effectuate the purpose of Title IV of the Defense Production Act of 1950, as amended.

The Director of the Hartford District Office of the Office of Price Stabilization gave due consideration to the national effort to achieve maximum production in furtherance of the objectives of the Defense Production Act of 1950, as amended; and to all relevant factors of general applicability.

The Director has consulted the industry to the extent practicable and has given due consideration to its recommendations.

REGULATORY PROVISIONS

Sec.

1. What this area milk price regulation does.
2. Where this area milk price regulation applies.
3. Sellers and sales covered by this regulation.
4. Basic ceiling price adjustments.
5. Adjustments for raw material cost changes.
6. Rounding of fractions.
7. Sellers who cannot price under other sections.
8. Reports.
9. Transfers of business or stock in trade.
10. Records.
11. Evasion.
12. Charges lower than ceiling prices.
13. Sales slips and receipts.
14. Power of Director.
15. Prohibitions.
16. Penalties.
17. Definitions.

AUTHORITY: Sections 1 to 22 issued under section 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended; 50 U. S. C. App. Sup. 2101-2110. E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR 1950 Supp.

SECTION 1. *What this area milk price regulation does.* This area milk price regulation, issued pursuant to Supplementary Regulation 63 to the General Ceiling Price Regulation, provides uniform adjustments of ceiling prices determined under section 3 of the General Ceiling Price Regulation for sales of fluid milk products in the Fairfield County, Connecticut, Milk Marketing Area. These adjustments are applied to the highest prices at which you sold fluid milk product items to a particular class of purchaser during the period December 19, 1950, through January 25, 1951. This regulation provides for further ceiling price adjustments in accordance with future variations in the costs of raw milk and cream.

SEC. 2. *Where this area milk price regulation applies.* The provisions of this regulation apply to the Fairfield County, Connecticut, Milk Marketing Area, which consists of the entire area within the boundary of that county.

SEC. 3. *Sellers and sales covered by this regulation.* This regulation covers retail and wholesale sales of milk and cream in the Fairfield County, Connecticut, Milk Marketing Area by milk processors and distributors. This regulation covers all such sales to a purchaser located inside the area unless the products are resold outside the area. It does not cover any sales to a purchaser located outside the area unless the products are resold inside the area.

SEC. 4. *Basic ceiling price adjustments.* Your ceiling price for a retail or wholesale sale of a fluid milk product to a particular class of purchaser shall be the highest price you charged such purchaser for the item during the period December 19, 1950, through January 25, 1951, adjusted by a uniform adjustment in accordance with the applicable provisions of this section.

(a) *Listed container sizes.* Uniform adjustments for all milk and cream items packaged in listed container sizes shall be as shown in the following tables:

Product	Container size	Uniform adjustment
Milk	Quart	$0.015
Cream	All sizes	(1)

[1] No adjustment.

(b) *Unlisted container sizes.* The uniform adjustment for each milk item which is packaged in a container of a size other than one quart shall be an amount which is in the same relationship to the uniform adjustment applicable to one-quart containers as the unlisted size is to one quart. Examples of adjustments for unlisted container sizes are included under section 5.

SEC. 5. *Adjustments for raw material cost changes.* Your ceiling prices as established by section 4 shall be adjusted to reflect future changes in raw material costs of milk and cream in accordance with the provisions of this section. However, such adjustments are also subject to the "rounding" provisions of section 6.

(a) *Specified prices.* Ceiling prices determined pursuant to section 4 are predicated upon the following specified prices for April 1952;

Minimum producer's Class I milk price per hundredweight, as announced by the Connecticut Milk Administrator for Connecticut Milk Market Area No. I	$6.48
Weighted average price per 40-quart can of 40 percent bottling quality cream, f. o. b. Boston, as announced by the Federal Milk Market Administrator	30.314

(b) *Changes from specified prices—basic sizes.* If the most recently announced price of a product specified in section 5 (a) is higher than the specified price, you may increase your ceiling prices for applicable items of fluid milk products packaged in basic container sizes by an equivalent rate per unit. If the most recently announced price is lower than the specified price you must decrease your ceiling prices for such items by the equivalent rate per unit. For milk and extra light cream, the basic container size shall be one quart. For all other fluid milk products the basic container size shall be ½-pint.

Example No. 1. You are a processor or distributor of milk in quart containers. The price of $6.48 per hundredweight specified for Class I milk in section 5 (a) is later increased to $6.92 per hundredweight. Subtract $6.48 from $6.92 and divide the difference of $0.44 by 46.5 (the number of quarts in 100 pounds of milk). The equivalent rate of increase per quart of milk is therefore 0.946 cent per quart.

Example No. 2. You are a processor or distributor of heavy, medium, and light cream in half-pint containers and of extra light cream in quart containers. The price of $30.314 per can for 40-quart can of 40% cream specified in section 5 (a) is later decreased to $27.314. Subtract $27.314 from $30.314, and divide the result of $3.00 by the particular divisor shown below for each of these items, to obtain the indicated adjustment. In each case, the divisor represents the number of ½-pints (quarts in the case of extra light cream) which would contain the same quantity of butterfat as a 40-quart can of 40 percent cream. It is to be assumed that the respective grades of cream contain the indicated percentages of butterfat.

Item	Divisor	Adjustment (in cents)
½-pint heavy cream (40 percent)	160	1.875
½-pint medium cream (30 percent)	213½	1.406
½-pint light cream (20 percent)	320	.9375
Quart extra light cream (12 percent)	133½	2.25

(c) *Changes from specified prices—other sizes.* Adjustments of ceiling prices of fluid milk products packaged in container sizes other than the basic container sizes, and due to changes from specified prices, shall be calculated as follows. First, calculate the adjustment for the basic container size, in accordance with section 5 (b). Then, apply the "rounding" provisions of section 6 (a) for the basic container size. The adjustment for each item packaged in another-sized container shall be in the same relationship to the "rounded" adjustment as the other size is to the basic size.

Example. You are a processor or distributor of milk in ½-pint and 8-quart containers, of light cream in quarts, and medium cream in pints. The price changes referred to in Examples No. 1 and No. 2 in section 5 (b) take place. The further calculations are:

Item	Rounded adjustment for basic container size (cents)	Adjustment for other size (cents)
Milk	1.0 per quart	0.25 per ½ pint. 8.0 per 8-quart can.
Light cream (quart)	1.0 per ½ pint.	4.0 per quart.
Medium cream (pint)	1.5 per ½ pint.	3.0 per pint.

SEC. 6. *Rounding of fractions.* (a) If, in computing an adjusted ceiling price pursuant to section 5, you arrive at a unit price which involves a fraction of a cent, you may increase and you must decrease it to the nearest ½-cent per quart of milk or extra light cream, and per ½-pint of all other grades of cream, in accordance with the following table:

Increase or decrease from specified price (in cents):	*Increase or decrease in ceiling price (in cents)*
0.0–0.250	0
0.251–0.750	½
0.751 and over	1

(b) Fractions of a cent remaining after you have computed your ceiling price for the total number of units of any milk product sold in a particular transaction, or during a customary billing period, after rounding of fractions in unit prices as provided in section 6 (a), shall be dropped if less than one-half cent and may be increased to the next higher cent if one-half cent or more.

SEC. 7. *Sellers who cannot price under other sections.* If you are unable to establish a ceiling price for the sale of an item covered by this regulation either because you did not sell that item during the period December 19, 1950 through January 25, 1951, or for any other reason, you may, in writing, apply to the Hartford District Office of the Office of Price Stabilization for a determination of a ceiling price for the sale of the item or of the method you shall use for computing a ceiling price for the item. The application shall contain an explanation of why you are unable to determine the ceiling price, the reason you believe the proposed price is in line with the level of ceiling prices otherwise established by this regulation, and the raw material cost price upon which it is based. You may not sell the item until the Director of the Hartford District Office of the Office of Price Stabilization notifies you by Letter Order of your ceiling price or method of computing your ceiling price. After such determination of your ceiling price you shall compute your adjustments comparable to those provided in section 5 from the price specified in the Letter Order of the Director of the Hartford District Office of the Office of Price Stabilization.

SEC. 8. *Reports.* (a) Within five days after the effective date of this regulation, you shall deposit in the mail a registered letter to the Director of the Hartford District Office of the Office of Price Sta-

bilization, Hartford, Connecticut, notifying the Director of your ceiling prices, as determined by you under section 4 of this regulation, for each item of fluid milk products. This report shall be on OPS Public Form 124 which may be obtained from that office.

(b) Within 5 days after the date of an official announcement indicating that the price of a product specified in section 5 (a) is less than the specified price, you shall deposit in the mail a registered letter to the Director of the Hartford District Office of the Office of Price Stabilization, Hartford, Connecticut, giving the following information:

(1) Your ceiling price, as determined under section 4 of this regulation for each item of fluid milk products;

(2) The adjusted ceiling price for each item of fluid milk products determined under section 5 of this regulation.

(c) Upward adjustments in your ceiling prices, pursuant to section 5 of this regulation, may not be made before you deposit in the mail a registered letter to the Director of the Hartford District Office of the Office of Price Stabilization, Hartford, Connecticut, giving the information listed in paragraph (b) of this section.

SEC. 9. *Transfers of business or stock in trade.* If the business, assets or stock in trade of a processor or distributor is sold or otherwise transferred after the effective date of this regulation, and the transferee carries on the business, or continues to deal in fluid milk products, in an establishment separate from any other establishment previously owned or operated by him, the ceiling prices of the transferee shall be the same as those to which his transferor would have been subject under this regulation if no such sale or transfer had taken place, and the transferee's obligation to keep records sufficient to verify such prices shall be the same. The transferor shall either preserve and make available, or turn over to the transferee, all records of transactions prior to the sale or transfer which are necessary to enable the transferee to comply with the record provisions of this regulation.

SEC. 10. *Records.* (a) With respect to fluid milk products covered by this regulation, the provisions of section 16 of the General Ceiling Price Regulation are hereby continued in effect, insofar as they apply to the preparation and preservation of "base period records" and such "current records" as were required to be made with reference to sales between January 26, 1951, and the effective date of this regulation.

(b) You shall prepare and preserve for the life of the Defense Production Act of 1950, as amended, and for two years thereafter, and keep available for examination by the Office of Price Stabilization all records showing, with respect to fluid milk products covered by this regulation, prices and material and labor costs in the period January 1, 1950, to June 30, 1950, inclusive; records, showing cost, prices, and sales for the other applicable periods and dates referred to in Supplementary Regulation 63 to the General Ceiling Price Regulation, and records necessary to determine whether you have computed your ceiling prices correctly. The records to be preserved under this paragraph must include appropriate work sheets. The work sheets may be in any convenient form so long as they include all data and calculations required to determine your ceiling prices.

(c) You must prepare and keep available for examination by the Office of Price Stabilization for a period of two years, records of the kind which you customarily keep showing the prices which you charge for fluid milk products covered by this regulation.

SEC. 11. *Evasion.* Any practice which results in obtaining directly or indirectly a higher price than is permitted by this regulation is a violation of this regulation. Such practices include, but are not limited to, devices making use of commissions, services, cross sales, transportation arrangements, premiums, discounts, special privilege, tie-in agreement, and trade understandings.

SEC. 12. *Charges lower than ceiling prices.* Lower prices than those established under this regulation may be charged, demanded, paid or offered.

SEC. 13. *Sales slips and receipts.* If you have customarily given a purchaser a sales slip, receipt, or similar evidence of purchase, you shall continue to do so. Upon request from a purchaser, regardless of previous custom, you shall give the purchaser a receipt showing the date, your name and address, the name of each item sold, and the price received for it.

SEC. 14. *Power of Director.* The Director of the Hartford District Office of the Office of Price Stabilization may at any time disapprove and revise downward ceiling prices established under this regulation, so as to bring prices so established into line with the level of ceiling prices for such items otherwise prevailing in the area.

SEC. 15. *Prohibitions.* After the effective date of this regulation, regardless of any contract or other obligation, you shall not sell, and you shall not buy in the regular course of business or trade, any fluid milk product at a price in excess of the ceiling price established for it by this regulation. The term "sell" includes sell, supply, dispose, barter, exchange, transfer, deliver, and contracts and offers to do any of the foregoing. The term "buy" shall be construed accordingly.

SEC. 16. *Penalties.* (a) Persons violating any provisions of this regulation are subject to the criminal penalties, civil enforcement actions, and suits for damages provided for by the Defense Production Act of 1950, as amended.

(b) *Violations of reporting requirements.* If any person subject to this regulation fails to file the reports required by this regulation, or if any person required to do so by this regulation fails to establish a ceiling price, or apply to the Director of the Hartford District Office of the Office of Price Stabilization for the establishment of a ceiling price, then the Director may issue a Letter Order establishing ceiling prices for the fluid milk products such person sells. Any ceiling price established in this manner will be in line with ceiling prices established by this regulation. The order establishing the ceiling price may apply to all deliveries or transfers for which a ceiling price was not established in accordance with the provisions of this regulation, including deliveries or transfers completed prior to the date of issuance of the order. The issuance of such an order will not relieve the seller of his obligation to comply with the requirements of this regulation or of the various penalties for failure to do so.

SEC. 17. *Definitions*—(a) *Milk.* This term means standard milk; homogenized milk; vitamin and mineral fortified milk; high fat milks; milks of special curd tensions and other milks with special dietary qualities and properties; buttermilk; chocolate milk; skim milk, plain; skim milk, vitamin or mineral fortified; skim milk drinks such as chocolate milk; and any other milk or skim milk variation; regardless of whether such products are sold in glass, paper, or other type of containers, or in bulk.

(b) *Cream.* This term means cream of various percentages of butterfat, including soured cream, regardless of whether such products are sold in glass, paper, or other type of containers, or in bulk.

(c) *Fluid milk products.* This term means milk and cream.

(d) *Retail and wholesale sales.* This term means sales by a processor or distributor to a purchaser other than a distributor. Examples are sales to homes, stores, restaurants, and institutions.

(e) *Terms defined elsewhere.* All terms not defined in this regulation but defined in Supplementary Regulation 63 to the General Ceiling Price Regulation or in the General Ceiling Price Regulation shall be construed as therein defined unless otherwise clearly required by the context of this regulation.

Effective date. This area milk price regulation, pursuant to Supplementary Regulation 63 to the General Ceiling Price Regulation, is effective May 29, 1952.

NOTE: The record keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget, in accordance with the Federal Reports Act of 1942.

JAMES E. KELLEY,
Director of the Hartford District Office.

MAY 29, 1952.

[F. R. Doc. 52-6071; Filed, May 29, 1952; 4:00 p. m.]

[General Ceiling Price Regulation, Supplementary Regulation 99, Amdt. 1]

GCPR, SR 99—ADJUSTED CEILING PRICES FOR MANUFACTURERS OF CERTAIN GLASS CONTAINERS

CATSUP AND CHILI SAUCE BOTTLES FOR BOTTLING SEASON

Pursuant to the Defense Production Act of 1950, as amended (Pub. Law 774, 81st Cong., Pub. Law 96, 82d Cong.), Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency Gen-

eral Order No. 2 (16 F. R. 738), this Amendment 1 to Supplementary Regulation 99 to the General Ceiling Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment allows manufacturers of catsup and chili sauce bottles to increase their ceiling prices by 15 cents per gross for sales made for delivery during the 1952 and any subsequent bottling season.

Similar provisions was made by SR 35 to the GCPR, which was issued June 26, 1951, but covered sales for the 1951 bottling season only. At that time issuance of a tailored regulation for these manufacturers, which would contain a like provision, was under consideration. However, the immediate need for such a tailored regulation was not established.

This amendment, which on the basis of data obtained from the Department of Agriculture and from representative members of the industry, defines a bottling season as the period April 1 through October 31 of each year, will afford continuing relief of the identical nature provided by SR 35, which has, by its own terms, lapsed. For this reason, all the considerations involved in the issuance of SR 35, as contained in the statement of considerations accompanying that regulation, apply with equal force and effect to this amendment.

In view of the nature of this amendment, special circumstances have rendered formal consultation with industry representatives, including trade association representatives, impracticable. However, informal meetings with industry and trade association representatives were held, and consideration given to the views expressed.

Supplementary Regulation 99 to the General Ceiling Price Regulation is amended in the following respects:

AMENDATORY PROVISIONS

1. Paragraph (a) of section 3 is amended to read as follows:

SEC. 3. *Adjusted ceiling prices.*—(a) *How to compute.* Subject to the provisions of sections 4 and 4a of this regulation your ceiling price for the sale of any commodity covered by this supplementary regulation is your ceiling price in effect under the GCPR increased by 4 percent (i. e., 104 percent of your GCPR ceiling price).

2. A new section 4a is added to read as follows:

SEC. 4a. *Catsup and chili sauce bottles for bottling season.* If you manufacture glass containers for use in bottling catsup or chili sauce, your ceiling prices for such containers, delivered by you during the 1952 bottling season or any subsequent bottling season, are your ceiling prices as adjusted under section 3 of this regulation plus 15 cents per gross (i. e., 104 percent of your GCPR ceiling prices, plus 15 cents per gross). "Bottling season" means the period from April 1 through October 31 of 1952, and the period April 1 through October 31, of each subsequent year.

This section 4a applies only to your sales of such glass containers delivered during the bottling season. Your ceiling prices for similar glass containers delivered at any other time are those computed under section 3 of this regulation.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This Amendment 1 to Supplementary Regulation 99 to the General Ceiling Price Regulation shall become effective May 29, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6072; Filed, May 29, 1952; 4:00 p. m.]

[General Overriding Regulation 9, Amdt. 19]

GOR 9—EXEMPTIONS OF CERTAIN INDUSTRIAL MATERIALS AND MANUFACTURED GOODS

SUSPENSION OF APPLICATION OF CEILING PRICE REGULATION TO THE SALE OF USED AIRCRAFT AND TO THE LICENSING OF THE RIGHT TO MANUFACTURE AIRCRAFT AND AIRCRAFT PARTS, INCLUDING TECHNICAL AND PROFESSIONAL SERVICES RENDERED IN CONNECTION THEREWITH

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this Amendment 19 to General Overriding Regulation 9 is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment suspends from ceiling price regulation the sale of used aircraft and the granting or the licensing of the right to manufacture aircraft and aircraft parts, including technical or professional services performed by the licensor under the licensing agreement.

Amendment 12 to General Overriding Regulation 9, effective December 19, 1951, suspended from price control the sale of new aircraft by manufacturers. Amendment 26 to the General Ceiling Price Regulation exempted from the provisions of that regulation, sales of used aircraft which had not been acquired for resale. Aircraft manufacturers and dealers who came into possession of used aircraft either through trades or purchase were required to apply for the establishment of a ceiling price under the General Ceiling Price Regulation before they could sell that craft. For an aircraft to have utility, it must be airworthy, that is, it must be maintained in perfect mechanical condition. As a result, a used aircraft may be worth as much as a new craft. Ordinary techniques for establishing the value of a used commodity in which depreciation allowances are made, are therefore inapplicable to the aircraft industry. While the number of sales of used aircraft is relatively small, the issuance of an order for each sale has posed an administrative burden which was out of proportion to the benefits accomplished. Accordingly, this amendment suspends from ceiling price regulation the sale of used aircraft.

This amendment also expands the existing suspension from price control under which manufacturers of aircraft now operate to comprehend the sale of the right to manufacture aircraft or aircraft parts under a licensing agreement. Technical and professional services required in setting up production are usually rendered to the lessee under such agreements and these services are suspended from price control, as well. The multiplicity of arrangements under which licensing agreements are made and their subjective nature makes it impracticable to establish realistic ceiling prices for such transactions. While normally these agreements are relatively uncommon, in view of the national emergency and the desire to make the utmost use of all existing productive capacity, an increasing number of aircraft manufacturers are licensing other manufacturers to make all or parts of their aircraft under a royalty or other licensing agreement. This amendment eliminates possible delay in implementing such arrangements. The Statement of Considerations which accompanied Amendment 12 to GOR 9, outlining the general reasons for the suspension of price control over sales by manufacturers of new aircraft and aircraft parts is equally applicable here.

In view of the nature of this amendment, formal consultation with industry representatives has not been practicable. However, the views of various individuals in the industry were obtained and full consideration was given to their recommendations.

AMENDATORY PROVISIONS

General Overriding Regulation 9 is amended in the following respects:

Paragraph 6 of section 2 (b) is amended to read as follows:

(6) *Aircraft and aircraft parts.* Sales by the manufacturer of new and unused aircraft and aircraft parts; sales by the manufacturer of any license or right to manufacture aircraft or aircraft parts, including technical or professional services rendered in connection with such licenses, and sales of used aircraft. Aircraft means any structure designed for navigation in the air or simulated flight training purposes, except projectiles not containing their own propellant. Aircraft parts include all components, parts, subassemblies, adjuncts, and accessories of aircraft (except tires and tubes) which are designed for use exclusively as aircraft parts and which have been machined or fabricated so as to permit use only in the manufacture, modification, or maintenance of aircraft.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective June 3, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6054; Filed, May 29, 1952; 10:48 a. m.]

Chapter IV—Salary and Wage Stabilization, Economic Stabilization Agency

Subchapter C—Railroad and Airline Wage Board

[General Railroad and Airline Stabilization Regulation 1, Revised]

GRASR 1—Stabilization of Wages, Salaries, and Other Compensation of Employees Subject to the Provisions of the Railway Labor Act, as Amended

Pursuant to the Defense Production Act of 1950, as amended, (Pub. Law 774, 81st Cong., Pub. Law 96, 82d Cong.); Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 7—Revised, (16 F. R. 10010), this General Railroad and Airline Stabilization Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

General Railroad and Airline Stabilization Regulation 1, Rev., is issued by the Railroad and Airline Wage Board in discharge of its responsibilities under the provisions of the Defense Production Act of 1950, as amended, and pursuant to Economic Stabilization Agency General Order No. 7—Revised. It is designed to stabilize wages, salaries and other compensation of employees subject to the Railway Labor Act, as amended, and to effectuate the purposes and intent of said statute and order.

Since the issuance of General Railroad and Airline Stabilization Regulation 1 (16 F. R. 12196), the Railroad and Airline Wage Board has met and consulted with representatives of management and labor from the industries subject to its jurisdiction. After due consideration of the suggestions and recommendations of these representatives, the Board has decided to reaffirm the considerations set forth in General Railroad and Airline Stabilization Regulation 1 and to continue the policy of adopting and making applicable to persons subject to its jurisdiction such regulations, orders, and resolutions of the Wage Stabilization Board and Salary Stabilization Board as the Board considers appropriate and necessary for the stabilization of wages and salaries in the railroad and airline industries.

This revised regulation includes certain Wage Stabilization Board and Salary Stabilization Board regulations which have been issued by those boards since the issuance of General Railroad and Airline Stabilization Regulation 1, and deletes certain others which have been superseded since that time.

It is contemplated that from time to time this revised regulation may be modified, amended or superseded by the Railroad and Airline Wage Board as the Board continues to develop its stabilization policy.

REGULATORY PROVISIONS

Sec.
1. Definitions.
2. Scope of this regulation.
3. Applicable regulations.
4. Reports and petitions.
5. Application to prior orders, decisions, or rulings.
6. Prior adjustments in wages, salaries and other compensation.
7. Modifications and amendments.
8. Finding and certification.

AUTHORITY: Sections 1 to 8 issued under sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended; 50 U. S. C. App. Sup. 2101–2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR, 1950 Supp.

SECTION 1. *Definitions.* As used in this regulation:

(a) The word "employees" shall mean employees subject to the provisions of the Railway Labor Act, as amended.

(b) The words "wages, salaries, and other compensation" shall include all forms of remuneration to employees by their employers for personal services, including, but not limited to, vacation and holiday payments, night shift and other bonuses, incentive payments, year-end bonuses, employer contributions to or payments of insurance or welfare benefits, employer contributions to a pension fund or annuity, payments in kind, and premium overtime practices and rates.

(c) The word "Administrator" shall mean the Economic Stabilization Administrator.

(d) The word "Board" shall mean the Railroad and Airline Wage Board.

SEC. 2. *Scope of this regulation.* This regulation relates to all employees as defined in section 1 (a), but relates only to such employees.

SEC. 3. *Applicable regulations.* (a) The Railroad and Airline Wage Board hereby adopts the following regulations and orders, including all amendments and revisions thereto:

(1) As to employees who are employed in bona fide executive, administrative, professional or outside salesmen capacities as these terms are defined by regulations[1] under section 13 (a) (1) of the Fair Labor Standards Act, as amended, and who in their relationships with their employer are not represented by duly recognized or certified labor organizations, the following regulations and orders shall apply:

1. Economic Stabilization Agency Wage Adjustment Order No. 1 (16 F. R. 3559), as extended by Wage Stabilization Board Resolution No. 32.[2]
   Wage Increases for Nonoperating Railroad Employees.
2. General Salary Stabilization Regulation No. 1 (16 F. R. 6617, 17 F. R. 1465).
   Stabilization of Salaries and Other Compensation of Persons Employed in Bona Fide Executive, Administrative, Professional, or Outside Salesmen Capacities, Not Represented by Labor Organizations.
3. General Salary Stabilization Regulation No. 2 (16 F. R. 8342, 8586).
   Bonuses.
4. General Salary Stabilization Regulation No. 3 (16 F. R. 9564, 17 F. R. 1466).
   Increases or Adjustments for Individual Employees.
5. General Salary Stabilization Regulation No. 4 (Rev.) (17 F. R. 3824).
   Stock Option and Stock Purchase Plans.
6. General Salary Stabilization Regulation No. 6 (17 F. R. 3849).
   Pension Plans and Deferred Profit-sharing and Stock Bonus Plans.
7. General Salary Stabilization Regulation No. 8 (17 F. R. 4489).
   Health and Welfare Plans.
8. General Salary Order No. 1 (16 F. R. 8342).
   Cost-of-living Salary Plans.
9. General Salary Order No. 5 (16 F. R. 11602).
   Interplant Inequities.
10. General Salary Order No. 6 (16 F. R. 11961, 17 F. R. 1466, 2998).
    Maintenance of Compensation Relationships.
11. General Salary Order No. 9 (17 F. R. 656, 2762).
    Extension of Time for Filing Documents and Reports Under General Salary Stabilization Regulation 4.
12. General Salary Order No. 10 (17 F. R. 1759).
    Extended Workweek Compensation.
13. General Salary Order No. 12 (17 F. R. 3850).
    New Profit-sharing and Other Bonuses.
14. General Salary Order No. 13 (17 F. R. 4490).
    Death Benefits.

(2) As to all other employees the following orders and regulations shall apply:

1. Economic Stabilization Agency Wage Adjustment Order No. 1 (16 F. R. 3559), as extended by Wage Stabilization Board Resolution No. 32.[2]
   Wage Increases for Non-operating Railroad Employees.
2. Economic Stabilization Agency General Wage Stabilization Regulation No. 1 (16 F. R. 816).
   General Stabilization of Wages, Salaries and Other Compensation.
3. Wage Stabilization Board General Wage Regulation No. 1 (16 F. R. 1014).
   Definition of Wages, Salaries or Other Compensation.
4. Wage Stabilization Board General Wage Regulation No. 2 (16 F. R. 1014).
   Increases Agreed to or Determined and Communicated on or before January 25, 1951.
5. Wage Stabilization Board General Wage Regulation No. 3 (16 F. R. 1015).
   Compliance with Statutes and Orders Establishing Minimum Rates of Compensation.
6. Wage Stabilization Board General Wage Regulation No. 5 (Rev.) (16 F. R. 7697, 8547, 17 F. R. 4201).
   Adjustments for Individual Employees.
7. Wage Stabilization Board General Wage Regulation No. 6 (16 F. R. 1951, 12823).
   Permissible General Wage and Salary Increases.
8. Wage Stabilization Board General Wage Regulation No. 8 (Rev.) (16 F. R. 8740, 12823, 17 F. R. 1893, 4202).
   Cost-of-living Increases.
9. Wage Stabilization Board General Wage Regulation No. 9 (16 F. R. 2222, 4714).
   Wage Schedules for New Plants.
10. Wage Stabilization Board General Wage Regulation No. 10 (16 F. R. 5015).
    Tandem Wage Increases.
11. Wage Stabilization Board General Wage Regulation No. 13 (Rev.) (17 F. R. 4535, 4536).
    Fringe Benefits.
12. Wage Stabilization Board General Wage Regulation No. 14 (16 F. R. 7509, 7988, 12271, 17 F. R. 20).
    Bonuses.
13. Wage Stabilization Board General Wage Regulation No. 15 (16 F. R. 7701).
    Incentive Wage or Piece Rates.

[1] 14 F. R. 7705; 29 CFR, 1950 Supp., Part 541.

[2] Not filed with the Federal Register Division.

14. Wage Stabilization Board General Wage Regulation No. 17 (16 F. R. 11237). Interplant Inequities.
15. Wage Stabilization Board General Wage Regulation No. 18 (16 F. R. 12510). Intra-Plant Inequities.
16. Wage Stabilization Board General Wage Regulation No. 19 (17 F. R. 824, 3795). Health and Welfare Plans.
17. Wage Stabilization Board Resolution No. 78 (17 F. R. 826). Review Criteria To Be Used by the Staff in Processing Reports on Health and Welfare Plans.
18. Wage Stabilization Board General Wage Regulation No. 21 (17 F. R. 1895, 3795). Pension Plans and Profit-sharing Plans of a Deferred Compensation Type.

(b) All amendments and revisions to the regulations, orders, and resolutions enumerated above in paragraph (a) of this section which may in the future be issued by the Economic Stabilization Administrator, the Wage Stabilization Board or the Salary Stabilization Board are hereby adopted by the Railroad and Airline Wage Board as of the date of their publication in the FEDERAL REGISTER.

SEC. 4. *Reports and petitions.* All reports and petitions required to be filed under the regulations, orders, and resolutions enumerated in section 3 of this regulation shall be filed directly with the Railroad and Airline Wage Board, 101 Indiana Avenue, N. W., Washington 25, D. C.; to the extent that said regulations, orders, and resolutions provide otherwise, they are superseded for the purpose of this regulation.

SEC. 5. *Application to prior orders, decisions, or rulings.* Nothing in this regulation shall affect the validity of the orders, decisions or rulings issued in writing by the Wage Stabilization Board, the Office of Salary Stabilization, and the Wage and Hour and Public Contracts Divisions of the United States Department of Labor prior to August 1, 1951, or of the orders, decisions or rulings issued by the Temporary Emergency Railroad Wage Panel, under Amended General Order No. 7, issued by the Economic Stabilization Administrator, dated August 17, 1951.

SEC. 6. *Prior adjustments in wages, salaries and other compensation.* The Railroad and Airline Wage Board hereby approves all adjustments in wages, salaries and other compensation of employees subject to the Railway Labor Act, as amended, which were put into effect between August 1, 1951 and the date of issuance of General Railroad and Airline Stabilization Regulation 1: *Provided*, That such adjustments were permissible under and were effected in compliance with the then outstanding regulations or orders of the Economic Stabilization Administrator, the Wage Stabilization Board or the Salary Stabilization Board.

SEC. 7. *Modifications and amendments.* This regulation may be modified, amended or superseded by orders or regulations hereafter issued by the Railroad and Airline Wage Board. Any such order or regulation which permits adjustments in wages, salaries and other compensation without prior specific approval by the Board shall contain a finding and certification by the Board that all such adjustments are consistent with standards then in effect, established by or pursuant to law, for the purpose of controlling inflationary tendencies, and shall be subject to the approval of the Economic Stabilization Administrator.

SEC. 8. *Finding and certification.* The Board finds that all adjustments in wages, salaries and other compensation permitted by this regulation to be made without prior specific approval of the Board are consistent with standards now in effect, established by or pursuant to law, for the purpose of controlling inflationary tendencies, and so certifies.

NOTE: The record keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Signed: May 22, 1952.

NELSON M. BORTZ,
Chairman,
Railroad and Airline Wage Board.

Approved: May 23, 1952.

ROGER L. PUTNAM,
Administrator,
Economic Stabilization Agency.

[F. R. Doc. 52-6082; Filed, May 29, 1952; 12:00 m.]

RAILROAD AND AIRLINE PROCEDURAL REGULATION 1

Pursuant to the Defense Production Act of 1950, as amended (P. L. 774, 81st Cong., P. L. 96, 82d Cong.), Executive Order 10161 (15 F. R. 6105), Executive Order 10233 (16 F. R. 3503), and General Order No. 7-Rev., Economic Stabilization Administrator this procedural regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

The purpose of this regulation is to establish standard procedures by which interested parties may be guided in using the processes of the Railroad and Airline Wage Board.

General Order No. 7-Rev. of the Economic Stabilization Administrator established the Railroad and Airline Wage Board consisting of three members including a chairman. Under that Order the Board exercises policy making and advisory functions. The administration of the policies developed by the Board, including the processing of applications in specific cases, is assigned to the Chairman.

Parties under the jurisdiction of the Railroad and Airline Wage Board may submit two general kinds of applications dealing with proposed adjustments in compensation upon which the Chairman will take formal action:

(1) A request for a ruling as to whether proposed adjustments may be made under existing stabilization laws and regulations without specific approval by the Chairman.

(2) A petition for approval of proposed adjustments which cannot be made under existing laws and regulations without specific approval by the Chairman.

This regulation establishes the procedures through which actions by the Chairman on such applications may be obtained.

REGULATORY PROVISIONS

Sec.
1. Definitions.
2. Where to file requests for ruling petitions and reports.
3. Requests for ruling.
4. Petitions and reports.
5. Forms.
6. Petitions for reconsideration.

AUTHORITY: Sections 1 to 6 issued under sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended; 50 U. S. C. App. Sup. 2101-2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR, 1950 Supp.

SECTION 1. *Definitions.* As used in this procedural regulation, the term—

(a) "Act" means the Defense Production Act of 1950, as amended (P. L. 774, 81st Cong., P. L. 96, 82d Cong.).

(b) "Board" means the Railroad and Airline Wage Board.

(c) "Chairman" means the Chairman of the Railroad and Airline Wage Board.

(d) "Regulation" means any regulation or order issued or adopted by the Railroad and Airline Wage Board.

(e) "Union" means any bona fide labor organization recognized by the employer, or certified by the National Mediation Board, as the collective bargaining representative of any employees subject to the jurisdiction of this Board.

(f) "Ruling" means an interpretation as to the legal meaning or legal applicability of the act or of any regulation issued or adopted by the Board.

(g) "Petition" means any application, petition or other request for approval of a proposed adjustment in wages, salaries or other compensation.

(h) "Report" means any report required by any regulation.

SEC. 2. *Where to file requests for ruling, petitions and reports.* All requests for ruling, petitions and reports shall be filed directly with the Board at 101 Indiana Avenue, N. W., Washington 25, D. C.

SEC. 3. *Requests for ruling.* (a) A request for ruling may be filed by an employer, union or employee, or jointly by an employer and union. Where the employees affected by the proposed adjustment are represented by a union, it is preferable that a request for ruling be filed jointly by the employer and union.

(b) Where more than one party is involved in a request for ruling, and the request is not jointly filed, it shall be the policy of the Board to act upon the request and to send a copy of its action, together with a copy of the request, to the other party or parties involved.

SEC. 4. *Petitions and reports*—(a) *Filing.* (1) Where the employees affected by the proposed adjustment are represented by a union, the petition or report shall be jointly filed by the employer and the union. If the petition or report is filed only by the employer, or only by the union, and is not accompanied by a signed copy of a collective

bargaining agreement or arbitration award, or other document which satisfies the Board as to the validity of the petition or report, the Board shall notify the filing party that the petition is incomplete under the Board's rules; and that it cannot be processed until the Board receives a signed concurrence in the petition or report by the other party—employer or union, as the case may be.

(2) Where the employees affected by the proposed adjustment are not represented by a union, petitions and reports shall be filed by the employer alone.

(b) Where an "Application for Investigation of Representation Dispute" is pending with the National Mediation Board to determine the status of a union as the collective bargaining agent for any of the employees affected by a petition, the Chairman may, in his discretion, withhold action on the petition until the National Mediation Board has acted upon the "Application" before it. Thereafter, the petition shall be processed in accordance with paragraph (a) of this section.

SEC. 5. *Form of submission of requests for ruling, petitions and reports.* (a) The Board has not issued any forms for the submission of requests for ruling, petitions and reports.

(b) Except where other forms are specified by the regulations, submissions may be on WSB Forms 1 or 100 or OSS Form 300, as appropriate; or simply in letter form. If in letter form, the submission shall contain the following general information, in addition to the substance of and justification for the proposed adjustment:

(1) Name and address of employer.

(2) Name and address of certified collective bargaining agent.

(3) Total number of employees and number of employees affected by proposed adjustment.

(4) Is "Application for Investigation of Representation Dispute" involving employees affected by the proposed adjustment pending with National Mediation Board? If so, give details.

(5) Effective date of proposed adjustment.

(c) Where forms other than WSB Forms 1 and 100 or OSS Form 300 are required by the regulations, petitions shall be submitted on the appropriate specified form.

(d) An original and four copies of all petitions and an original and two copies of all requests for ruling and reports are required.

SEC. 6. *Petitions for reconsideration.* A petition for reconsideration of a ruling or an action upon a petition may be filed within 30 days after the date of such ruling or action, unless the time for ruling has been extended by the Chairman. Petitions for reconsideration shall be filed jointly by all parties where more than one party is involved.

An original and four copies of the petition for reconsideration and any supporting documents are required.

NOTE: The reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Signed: May 9, 1952.

NELSON M. BORTZ,
Chairman,
Railroad and Airline Wage Board.

Approved: May 23, 1952.

ROGER L. PUTNAM,
Administrator,
Economic Stabilization Agency.

[F. R. Doc. 52-6083; Filed, May 29, 1952; 12:00 m.]

Chapter VI—National Production Authority, Department of Commerce

[NPA Order M-105]

M-105—MAINTENANCE, REPAIR, OPERATING SUPPLIES, CAPITAL ADDITIONS, AND REPLACEMENTS FOR IRON AND STEEL PRODUCERS

This order is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this order, there has been consultation with industry representatives, including trade association representatives, and consideration has been given to their recommendations.

REGULATORY PROVISIONS

Sec.
1. What this order does.
2. Definitions.
3. How a producer obtains controlled materials.
4. How a producer obtains products and materials other than controlled materials.
5. Materials for which allotment symbol and DO rating may not be applied or extended.
6. Quotas and restrictions on receipts and inventories.
7. Charges against quota.
8. Certification.
9. Use of materials for another purpose.
10. Extraordinary maintenance and repair, major capital additions, major capital replacements, and certain minor capital replacements.
11. Requests for additional assistance, adjustment, or exception.
12. Relation to other NPA orders and regulations.
13. Records and reports.
14. Communications.
15. Violations.

AUTHORITY: Sections 1 to 15 issued under sec. 704, 64 Stat. 816, Pub. Law 96, 82d Cong.; 50 U. S. C. App. Sup. 2154. Interpret or apply sec. 101, 64 Stat. 799, Pub. Law 96, 82d Cong.; 50 U. S. C. App. Sup. 2071; sec. 101, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR, 1950 Supp.; sec. 2, E. O. 10200, Jan. 3, 1951, 16 F. R. 61; 3 CFR, 1951 Supp.; secs. 402, 405, E. O. 10281, Aug. 28, 1951, 16 F. R. 8789; 3 CFR, 1951 Supp.

SECTION 1. *What this order does.* This order provides a procedure for priorities assistance to producers in the iron and steel industry. Subject to the limitations herein contained, the procedure permits such producers to use the allotment symbol W-6 and the rating DO W-6 to obtain controlled materials and products and materials other than controlled materials for maintenance, repair, and operating supplies, and for minor capital additions and minor capital replacements. This order also provides a procedure for applying for priorities assistance to obtain materials for extraordinary maintenance and repair, and for major capital additions and major capital replacements.

SEC. 2. *Definitions.* As used in this order:

(a) "Person" means any individual, partnership, corporation, association, or any other organized group of persons, and includes any agency of the United States or of any other government. If, in the calendar year 1950, or in his last fiscal year ending prior to March 1, 1951, a person operated more than one plant, division, department, branch, or other unit, and maintained for any such unit separate records showing expenditures therefor for MRO, he may elect to treat any one or more of such units as a separate person for the purposes of this order, or to treat his and his subsidiaries' entire operation within the United States, its territories and possessions, as a single person. An election so made may not thereafter be changed without prior written approval of NPA.

(b) "Producer" means any person located within the geographical limits of the United States, its territories or possessions, who:

(1) Produces any one or more of the products listed in Part A of Table I of NPA Order M-1, pursuant to a production directive or an allocation directive issued by NPA in accordance with NPA Order M-1; or

(2) Produces any one or more of the products listed in Parts B, C, and D of Table I of NPA Order M-1, excluding malleable castings and gray iron castings; or

(3) Has a planned quarterly production of pure nickel, pure manganese, or any ferro-alloy containing one or more of the following elements: Boron, chromium, cobalt, columbium, manganese, molybdenum, nickel, silicon, tantalum, titanium, tungsten, vanadium, or zirconium, which equals in the aggregate, not less than 50 percent of his entire planned quarterly production of all products, computed by tonnage or dollar sales value.

NOTE: To the extent that any producer mentioned in subparagraph (1), (2), or (3) of this paragraph operates a coal mine, a coke plant, or a coal or a coke preparation or processing plant, the assistance provided by this order, to the extent provided in section 6 (f) of this order, shall likewise be applicable to such operations.

(c) "NPA" means the National Production Authority.

(d) "Maintenance" means the minimum upkeep necessary to continue in sound working condition any plant, facility, or equipment used by a producer; and "repair" means the restoration of any such plant, facility, or equipment to sound working condition when it has been rendered unsafe or unfit for service by wear and tear, damage, failure of parts, or the like. Neither "maintenance" nor "repair" includes the replacement of any plant, facility, or equipment; nor does it include the improve-

ment of any plant, facility, or equipment by replacing material which is still in sound working condition with material of a new or different kind, quality, or design.

(e) "Operating supplies" means any kind of material carried by a producer as operating supplies according to his established accounting practice. The term also may include any kind of material which a producer actually uses as operating supplies, such as tapping pots, tapping rods, stirring rods, refractory brick, and refractory cement, regardless of his established accounting practice. It also may include items, such as hand tools, purchased by a producer for sale to his employees solely for use in his operations, if such items would have constituted operating supplies had they been issued to employees without charge. Materials incorporated in a producer's product are operating supplies if, but only if, they were carried as operating supplies according to the established accounting practice of the producer.

(f) "Minor capital addition" means improvement or addition of machinery or equipment where the cost (excluding the producer's cost of labor) does not exceed $5,000 for any one complete addition, and "major capital addition" means improvement or addition of machinery or equipment where the cost (excluding the producer's cost of labor) exceeds $5,000 for any one complete addition. For the purpose of this order, in computing the cost of one complete capital addition, the cost of all materials obtained therefor shall be included whether or not acquired by use of an allotment symbol or rating, and whether or not ordered or delivered at different times and obtained from different suppliers.

(g) "Minor capital replacement" means replacement of machinery or equipment where the cost (excluding the producer's cost of labor) does not exceed $5,000 for any one replacement, and "major capital replacement" means replacement of machinery or equipment where the cost (excluding the producer's cost of labor) exceeds $5,000 for any one replacement. These terms apply only to replacement of machinery or equipment which is in such condition that it is unsuitable for further use, and such replacements may only be for the purpose of maintaining existing facilities at their rated capacity: *Provided, however,* That priorities assistance may be authorized, upon application filed pursuant to section 10 of this order, in a case where the machinery or equipment may still be usable but where further repairs would involve an excessive loss of production, an excessive expenditure of materials, or an excessive use of critical labor in relation to the results to be obtained. These terms do not include replacement of machinery or equipment which is not substantially in kind, or which would result in betterment or improvement beyond that normally expected from new equipment, or which would appreciably increase production or be an addition to present facilities. For the purpose of this order, in computing the cost of one replacement, the cost of all materials obtained therefor shall be included whether or not acquired by use of an allotment symbol or rating, and whether or not ordered or delivered at different times or obtained from different suppliers.

(h) "Extraordinary maintenance and repair" means the restoration of a facility to its rated productive capacity where wear and tear, damage, failure of parts, or the like, have made necessary a major overhaul of the facility for the purpose of restoring it to its rated productive capacity. The term applies only to projects where the cost of the materials (excluding the purchaser's cost of labor) exceeds $5,000. It includes such operations as the relining of blast furnaces, rebuilding of open hearth furnaces, soaking pits, heating furnaces, or other facilities. It contemplates major operations of a cyclical nature that have to be done infrequently but which, when foreseen, must be planned for and for which authority to proceed with the acquisition of the necessary products and materials should be obtained well in advance. The term does not include projects whose objective is to increase productive capacity or to expand a facility, nor projects involving redesign of a facility where such redesign would require extensive structural alterations to the facility.

(i) "MRO" means maintenance, repair, and operating supplies. It does not include the terms "minor capital addition," "major capital addition," "minor capital replacement," "major capital replacement," or "extraordinary maintenance and repair," which are specifically used whenever they are intended to be included within the provisions of this order. Materials produced or obtained for sale to other persons or for installation upon or attachment to the property of another person unless such property is under the exclusive control of and is being used by the producer, and materials required for the production of such materials, are not "MRO" materials as to the producer or supplier.

(j) "Materials" means any raw, in-process, or manufactured commodity, equipment, component, accessory, part, or product of any kind.

(k) "Controlled materials" means steel, copper, and aluminum in the forms and shapes indicated in Schedule I of CMP Regulation No. 1, as now or hereafter amended.

(l) "Established accounting practice" means, in the case of a producer in operation on or before December 31, 1950, the accounting practice in use by such producer on that date. In the case of a producer whose operation began after December 31, 1950, the term means the accounting practice established by him in such operation.

SEC. 3. *How a producer obtains controlled materials.* (a) Subject to the quantity restrictions contained in section 6 of this order, every producer shall have the right to use the allotment symbol W-6 on delivery orders for controlled materials for MRO and for minor capital additions and minor capital replacements. The assignment of the right to use the allotment symbol W-6 does not constitute the making of an allotment of controlled materials. The allotment symbol W-6 may be used to acquire only that amount of controlled materials actually needed for MRO and for minor capital additions and minor capital replacements.

(b) A delivery order bearing the allotment symbol W-6, together with the certification provided for in section 8 of this order, shall constitute an authorized controlled material order for the purposes of all CMP regulations.

SEC. 4. *How a producer obtains products and materials other than controlled materials.* (a) Subject to the quantity restrictions contained in section 6 of this order, every producer shall have the right to use the rating DO W-6 on delivery orders for products and materials other than controlled materials for MRO, and for minor capital additions and minor capital replacements. The rating DO W-6 may be used to acquire such products and materials only up to that portion of the amount specified in section 6 of this order which is actually needed for MRO and for minor capital additions and minor capital replacements.

(b) A delivery order bearing the rating DO W-6 together with the certification provided for in section 8 of this order, shall constitute a rated order for the purpose of all NPA regulations and orders.

SEC. 5. *Materials for which allotment symbol and DO rating may not be applied or extended.* The allotment symbol W-6 and the rating DO W-6 may not be applied or extended by a producer to obtain any of the materials or products listed in Schedule I of CMP Regulation No. 5, as from time to time amended, or in List A of NPA Reg. 2, as from time to time amended, nor to obtain any equipment pursuant to any lease: *Provided, however,* That this prohibition shall not apply to the materials and products listed in item 4 of Schedule I of CMP Regulation No. 5.

SEC. 6. *Quotas and restrictions on receipts and inventories*—(a) *Establishment of quotas.* Each producer who uses an allotment symbol or preference rating under this order shall establish his annual MRO quota, for each calendar or fiscal year, including the entire calendar or fiscal year in which this order first takes effect, which shall not exceed 120 percent of his aggregate expenditures for MRO during the calendar year 1950.

(b) *Prior adjustments and exceptions continued in effect.* Subject to the provisions of paragraphs (d) and (e) of this section, any adjustments or exceptions granted, prior to the effective date of this order, under the provisions of CMP Regulation No. 5, shall continue to apply under this order and shall be included in the producer's MRO quota under this section.

(c) *Restrictions on receipts and inventories.* In lieu of any specific inventory limitations, expressed in terms of periods of time, contained in any other order or regulation of NPA, no producer shall accept delivery of any materials subject to CMP Regulation No. 2, as from time to time amended, and NPA Reg. 1, as from time to time amended, for MRO purposes which would increase his inventory of such materials above a practicable

minimum working inventory (as defined in NPA Reg. 1) to sustain his currently scheduled method and rate of operation.

(d) *Future use of increased quotas.* If the MRO quota of a producer under the foregoing provisions of this section is increased by specific authorization of NPA pursuant to section 11 of this order, the increased quota becomes his MRO quota under this section unless the increase is granted on a temporary basis or is otherwise restricted by the terms of the authorization.

(e) *Increase not retroactive.* An increase in quota granted pursuant to section 11 of this order is not retroactive.

(f) *Coal mining and coke operations.* A producer who also operates a coal mine, coke plant, or coal or coke preparation or processing plant may elect to receive MRO and minor capital addition or replacement assistance under this order with respect to such operations if, under his established accounting practice, he maintains one general account that covers all of his requirements for MRO. An election to receive such assistance shall be made by notifying NPA and the Defense Solid Fuels Administration in writing within 30 days from the effective date of this order and may not be changed without obtaining specific authorization from NPA. Notwithstanding his election to receive MRO assistance under this order, any such producer shall apply only to the Defense Solid Fuels Administration pursuant to section 15 of NPA Order M-87 for priorities assistance to obtain controlled materials and products and materials other than controlled materials to be used for major capital additions or major capital replacements or extraordinary maintenance and repair for his coal mine, coke plant, or coal or coke preparation or processing plant.

SEC. 7. *Charges against quota*—(a) *When to charge against quota.* In charging his MRO quota established under section 6 of this order, a producer may elect to charge expenditures at the time when his purchase order specifies delivery is to be made (the delivery basis) or at the time when the materials are actually received (the receipt basis). Having elected to use one basis, he may not thereafter change to the other basis without the prior written approval of NPA.

(b) *What to charge against quota.* A producer who makes use of the procedure provided in this order to obtain, in any calendar or fiscal year, MRO in excess of 20 percent of his MRO quota, shall charge against his MRO quota:

(1) All expenditures for materials for MRO (except materials referred to in List A of NPA Reg. 2) ordered for delivery (or, if on the receipts basis, received) during the calendar or fiscal year, including the earlier portion, if any, of the calendar or fiscal year in which this order first takes effect, whether or not obtained by use of the allotment symbol W-6 or the rating DO W-6, and

(2) All expenditures for minor capital additions and minor capital replacements ordered for delivery (or, if on the receipts basis, received) during the calendar or fiscal year, including the earlier portion, if any, of the calendar or fiscal year in which this order first takes effect, if, but only if, obtained by the use of the allotment symbol W-6 or the rating DO W-6.

SEC. 8. *Certification.* A delivery order for MRO materials or materials for minor capital additions or minor capital replacements must contain a certification in addition to the allotment symbol W-6 or the rating DO W-6. Such certification shall be in the following words:

Certified under NPA Order M-105

and shall be signed as provided in NPA Reg. 2. This certification shall constitute a representation to the supplier and to NPA that the producer is authorized under the provisions of this order to use the allotment symbol or the rating and to obtain the materials covered by the delivery order.

SEC. 9. *Use of materials for another purpose.* If a producer has obtained materials for minor capital additions or minor capital replacements by applying the allotment symbol W-6 or the rating DO W-6, as the case may be, he may use such materials for a different purpose if, under an authorized production schedule or an authorized construction schedule, he could have applied any other allotment symbol or DO rating to acquire them for such purpose. If he does use them for such other purpose, however, he may not use the allotment symbol W-6 or the rating DO W-6 to replace such materials in inventory, but he may use only the allotment symbol or the DO rating under such authorized production or construction schedule which he might have applied to obtain such materials for the purpose for which he used them. If he uses such materials obtained by applying the allotment symbol W-6 or the rating DO W-6 for such purpose, his records must be adequate to show that his purchases of materials are substantially proportionate to his authorized uses.

SEC. 10. *Extraordinary maintenance and repair, major capital additions, major capital replacements, and certain minor capital replacements.* A producer may apply to NPA for priorities assistance to obtain controlled materials and products and materials other than controlled materials to be used for extraordinary maintenance and repair, major capital additions, or minor capital replacements for which priorities assistance is available only upon special application as provided in section 2 (g) of this order, or major capital replacements: *Provided, however,* That a producer who operates a coal mine, a coke plant, or a coal or a coke preparation or processing plant, shall apply only to the Defense Solid Fuels Administration pursuant to section 15 of NPA Order M-87 for priorities assistance to obtain controlled materials and products and materials other than controlled materials to be used for extraordinary maintenance and repair, major capital additions, or major capital replacements in connection with such operations. Applications pursuant to this order shall be made on Form NPAF-188, original and three copies, and shall be addressed to the National Production Authority, Washington 25, D. C. A producer may not obtain materials for extraordinary maintenance and repair, major capital additions, and major capital replacements through use of the allotment symbol W-6 or the rating DO W-6 unless such use is specifically authorized on Form NPAF-188 by NPA. Orders placed for such materials must be certified in accordance with section 8 of this order.

SEC. 11. *Requests for additional assistance, adjustment, or exception.* (a) If the sound working condition of a producer is adversely affected by inability to obtain material essential for MRO or for capital additions or capital replacements, he may apply by letter, in triplicate, to NPA for additional assistance giving the reasons why such assistance is essential. In case of breakdown, imminent breakdown, or other emergency, the application may be made in person or by telegraph or telephone, but must be confirmed in writing.

(b) Any person affected by any provision of this order may file a request for adjustment or exception upon the ground that his business operation was commenced during or after the base period, that any provision otherwise works an undue or exceptional hardship upon him not suffered generally by others in the same trade or industry, or that its enforcement against him would not be in the interest of the national defense or in the public interest. In examining requests for adjustment or exception claiming that the public interest is prejudiced by the application of any provision of this order, consideration will be given to the requirements of the public health and safety, civilian defense, and dislocation of labor and resulting unemployment that would impair the defense program. Each request shall be in writing, by letter in triplicate, and shall set forth all pertinent facts, the nature of the relief sought, and the justification therefor.

SEC. 12. *Relation to other NPA orders and regulations.* All provisions of any NPA regulation or order are superseded to the extent that they are inconsistent with this order, but in all other respects the provisions of such regulations and orders shall remain in full force and effect.

SEC. 13. *Records and reports.* (a) Each person participating in any transaction covered by this order shall make and preserve, for at least 3 years thereafter, accurate and complete records showing his quota under this order, the computation and factual justification for it and for corrections or revisions thereof, methods of computing charges against the quota, or other options exercised, and records of receipts, deliveries, inventories, production, and use of all materials for MRO or capital additions or capital replacements, whether or not by use of the allotment symbol or rating, in sufficient detail to permit the determination, after audit, whether each transaction complies with the provisions of this order. This order does not specify any particular accounting method and does not require alterations of the system of records customarily used, pro-

vided such records disclose the above data and supply an adequate basis for audit. Records may be retained in the form of microfilm or other photographic copies instead of the originals by those persons who, at the time such microfilm or other photographic records are made, maintain such copies of records in the regular and usual course of business.

(b) All records required by this order shall be made available for inspection and audit by duly authorized representatives of NPA, at the usual place of business where maintained.

(c) Persons subject to this order shall make such records and submit such reports to NPA as it shall require, subject to the terms of the Federal Reports Act of 1942 (5 U. S. C. 139–139F).

SEC. 14. *Communications.* All communications concerning this order shall be addressed to the National Production Authority, Washington 25, D. C., Ref: NPA Order M–105.

SEC. 15. *Violations.* Any person who wilfully violates any provision of this order or any other order or regulation of NPA, or who wilfully furnishes false information or conceals any material fact in the course of operation under this order, is guilty of a crime and upon conviction may be punished by fine or imprisonment or both. In addition, administrative action may be taken against any such person to suspend his privilege of making or receiving further deliveries of materials or using facilities under priority or allocation control and to deprive him of further priorities assistance.

NOTE: All reporting and record-keeping requirements of this order have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

This order shall take effect May 29, 1952.

NATIONAL PRODUCTION AUTHORITY,
By JOHN B. OLVERSON,
Recording Secretary.

[F. R. Doc. 52-6078; Filed, May 29, 1952; 11:17 a. m.]

Chapter IX—Petroleum Administration for Defense, Department of the Interior

[PAD Order No. 6 and Direction 1, Amdt. to Gen. Adjustment 2]

PAD 6—LIMITATIONS ON AVIATION GASOLINE

DIR. 1—LIMITATION OF INVENTORIES OF AVIATION GASOLINE

GEN. ADJ. 2—ADJUSTMENT WITH RESPECT TO GRADE 91/98 AVIATION GASOLINE IN WASHINGTON, OREGON, CALIFORNIA, ALASKA, AND HAWAII

Adjustment 2 to PAD Order No. 6 and Direction 1 thereto is hereby amended to read as follows:

Effective 3:01 a. m., e. s. t., May 27, 1952, an adjustment is granted permitting any carrier, foreign carrier, or non-carrier to accept delivery of, and any person to deliver grade 91/98 octane aviation gasoline in the States of Washington, Oregon, and California (Area 1), the Territory of Alaska (Area 2), and the Territory of Hawaii (Area 3) subject to the following conditions:

(1) Any such delivery may be made or accepted only upon certification as required by section 6 of PAD Order No. 6.

(2) Any gasoline so delivered may be used for undertaking flights only within Area 1, Area 2, or Area 3 or between such areas.

(3) The acceptance of delivery of any grades of aviation gasoline higher than 91/98 is limited during the allocation period commencing 3:01 a. m., e. s. t., May 6, 1952, set forth in Schedule D of PAD Order No. 6, as amended, to (a) an amount of such higher grades equivalent to the quantity (allocated quantity) set forth in Schedules A, B, and C of said order, as amended, used by a carrier or non-carrier or acquired in the United States by a foreign carrier during the period March 1, 1952 to March 31, 1952, inclusive; and (b) the percentage of the allocated quantity set forth in Schedule D during each consecutive seven-day period forming a part of the allocation period.

To the extent necessary to permit the acceptance of delivery of grade 91/98 octane aviation gasoline in conformity with the foregoing, the provisions of Direction 1 to PAD Order No. 6 are hereby adjusted.

OSCAR L. CHAPMAN,
Secretary of the Interior and Petroleum Administrator for Defense.

MAY 29, 1952.

[F. R. Doc. 52-6073; Filed, May 29, 1952; 10:59 a. m.]

Chapter XVII—Housing and Home Finance Agency

[CR 4]

CR 4—RESIDENTIAL CREDIT CONTROLS: POLICY AND PROCEDURE FOR SUSPENDING RESIDENTIAL CREDIT CONTROLS IN CERTAIN ISOLATED CRITICAL DEFENSE HOUSING AREAS

The following statement of policy and procedure is issued pursuant to sections 601 through 605 and section 704 of Public Law 774, 81st Cong. (64 Stat. 813, 814, 815, 816), as amended, sections 501, 502 and 902 of Executive Order 10161, September 9, 1950 (15 F. R. 6106), section 204 of the Housing and Rent Act of 1947, as amended, and the approval and authorization with respect to said policy and procedure by the Board of Governors of the Federal Reserve System.

SECTION 1. This regulation concerns small, isolated communities designated as critical defense housing areas under the authority of section 204 of the Housing and Rent Act of 1947, as amended, where, in the determination of the Housing and Home Finance Administrator, the programming of permanent dwelling units for in-migrant defense workers or military personnel in the manner provided under Regulation CR 3 of this Agency (16 F. R. 11731, November 20, 1951) would not assist in accomplishing the purposes of Title VI of Public Law 774, 81st Cong., as amended (64 Stat. 812) or the Defense Housing and Community Facilities and Services Act of 1951. The Administrator may announce the suspension with respect to all housing in any such isolated critical defense housing area of the real estate credit restrictions contained in Regulation X of the Board of Governors of the Federal Reserve System and in the related regulations of the Federal Housing Commissioner and the Administrator of Veterans' Affairs. Such suspension of residential real estate credit restrictions will become effective for each such area upon the publication of the area description in the Appendix to this regulation, as amended from time to time.

SEC. 2. An "isolated critical defense housing area" for the purposes of this regulation means an area designated as such by the Housing and Home Finance Administrator in the Appendix to this regulation. An isolated critical defense housing area will be designated as such by the Housing and Home Finance Administrator for purposes of this regulation only where such area has been certified by the Secretary of Defense and the Director of Defense Mobilization, acting jointly, to be a "critical defense housing area" within the meaning of the Housing and Rent Act of 1947, as amended. In certain instances such an area may be identical with an area which has been designated as a critical defense housing area in the appendix to Housing and Home Finance Agency Regulation CR 3 but for which no defense housing program has been announced under the authority of that regulation.

SEC. 3. As circumstances and changing conditions may warrant, the Housing and Home Finance Administrator may repeal, and remove from the Appendix to this Regulation CR 4, the designation of any area and upon such repeal, the residential credit restrictions contained in Regulation X and related regulations of the Federal Housing Commissioner and the Administrator of Veterans' Affairs shall thereafter be applicable to such area.

(Sec. 704, 64 Stat. 816, as amended, Pub. Law 139, 82d Cong.; 50 U. S. C. App. Sup. 2154. Interprets or applies Title VI, 64 Stat. 812, as amended, Pub. Law 139, 82d Cong., 50 U. S. C., App. Sup. 2131-2135. E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR 1950 Supp., E. O. 10296, Oct. 2, 1951; 16 F. R. 10103; 3 CFR 1951 Supp.

This regulation is effective as of the 3d day of June 1952.

Dated: May 28, 1952.

[SEAL] RAYMOND M. FOLEY,
Housing and Home Finance Administrator.

APPENDIX TO CR 4

ISOLATED CRITICAL DEFENSE HOUSING AREAS

Area, Including Geographical Description and Date Designated

1. Condon, Oregon, Area. (The election precincts of East Condon and West Condon,

including the Town of Condon, all in Gilliam County), June 3, 1952.

2. Curlew, Washington, Area. (Census County Divisions 2 and 3, including the unincorporated village of Curlew and the Town of Republic in Ferry County), June 3, 1952.

[F. R. Doc. 52-6047; Filed, May 29, 1952; 11:01 a. m.]

Chapter XXIII—Defense Materials Procurement Agency

Columbium-Tantalum Purchase Program

Sec.
1. Basis and purpose.
2. Definitions.
3. Duration of the program.
4. Participation under the program.
5. Specifications and price.
6. Purchase agents.
7. Deliveries and certification.
8. Weighing, sampling and analysis.

Authority: Sections 1 to 8 issued under sec. 704, 64 Stat. 816, as amended, Pub. Law 96, 82d Cong., 50 U. S. C. App. Sup. 2154. Interpret or apply sec. 303, 64 Stat. 801, as amended, Pub. Law 96, 82d Cong., 50 U. S. C. App. Sup. 2093; E. O. 10281, Aug. 28, 1951, 16 F. R. 8789, 3 CFR, 1951 Supp.

Section 1. *Basis and purpose.* The purpose of this regulation is to establish a guaranteed purchase program designed to encourage the expansion of the production of columbium-tantalum bearing ores and concentrates of both domestic and foreign origin. The program was authorized by the Defense Production Administration on January 1, 1952. Under the program the Government agrees to purchase a minimum of 15,000,000 pounds of contained combined pentoxide (Cb_2O_5 plus Ta_2O_5).

Sec. 2. *Definitions.* (a) "Administrator" means the Administrator of the Defense Materials Procurement Agency.

(b) "Program" means the terms and conditions under which the Administrator will purchase columbium-tantalum bearing ores and concentrates.

(c) "Lot" means shipments of columbium-tantalum bearing ores and concentrates of not less than 2,000 pounds, dry weight.

(d) "Seller" means any individual or firm having title to columbium-tantalum bearing ores and concentrates.

Sec. 3. *Duration of the program.* The program shall terminate and be of no further force or effect as of the close of business on December 31, 1956: *Provided, however,* That the Administrator may terminate the program as of the date when the Government has purchased 15,000,000 pounds of contained combined pentoxides (Cb_2O_5 plus Ta_2O_5).

Sec. 4. *Participation under the program.* Any seller may offer for sale to the Government columbium-tantalum bearing ores and concentrates of either domestic or foreign origin which meet the specifications provided in section 5 of this regulation by delivering and offering such material to the Government in accordance with the terms and conditions as set forth in this regulation, at any time prior to the termination of the program.

Sec. 5. *Specifications and price.* The Government shall pay the following price for columbium-tantalum bearing ores and concentrates meeting the following specifications, determined on a dry weight basis:

(a) For columbium ores and concentrates containing not less than 35 percent combined Cb_2O_5 and Ta_2O_5, and having a Cb_2O_5 and Ta_2O_5 ratio of not less than one to one; impurities not to exceed the following maximum limits:

	Percent
TiO_2	8
SnO_2	8
FeO	25
MnO	13

$1.40 per pound of combined contained pentoxide, plus 2 cents per pound for each additional full percent of combined contained pentoxide above 35 percent.

(b) For tantalum ores and concentrates containing not less than 25 percent Ta_2O_5 and less than 20 percent Cb_2O_5, and containing not in excess of the following maximum impurities:

	Percent
TiO_2	4
SnO_2	4

$3 per pound of contained Ta_2O_5 in ores and concentrates containing 30–40 percent Ta_2O_5, plus 3 cents per pound for each additional full percent of contained Ta_2O_5 above 40 percent, plus an additional 4 cents per pound for each full percent of contained Ta_2O_5 above 50 percent.

Penalty: For tantalum ores and concentrates containing between 25 and 30 percent of Ta_2O_5, 6.0 cents per pound will be deducted for each full percent of contained Ta_2O_5 under 30 percent.

(c) For columbium-tantalum ores and concentrates containing 25 percent or more of Ta_2O_5 and 20 percent or more of Cb_2O_5, and containing not in excess of the following maximum impurities:

	Percent
TiO_2	4
SnO_2	4

$1.60 per pound of combined contained pentoxide in ores or concentrates containing a minimum of 45 percent combined pentoxide, plus 2 cents per pound for each additional full percent of combined pentoxide above 45 percent.

(d) Columbium-tantalum bearing ores and concentrates failing to meet the specifications set forth in paragraphs (a), (b) and (c) of this section will be considered for purchase by the Government provided the seller bears the cost of upgrading to the minimum specifications.

(e) Bonus. For lots meeting the above specifications, an incentive bonus amounting to 100 percent of the price specified in paragraphs (a), (b) and (c) of this section will be paid on all accepted deliveries, except that no bonus shall be paid on any lot previously owned by the Government.

Sec. 6. *Purchase agents.* The Fansteel Metallurgical Corporation, North Chicago, Illinois, and such other firms as may from time to time be designated by the Administrator, shall act as purchase agents for and on behalf of the Government under this program. Offers of ores to the Government under this program shall be made to such agents.

Sec. 7. *Deliveries and certification.* Deliveries of all purchases made under this program shall be in lots of not less than 2,000 pounds, and shall be (a) in the case of materials of foreign origin, c. i. f. Atlantic ports, and (b) in the case of materials of domestic source, f. o. b. depot of purchasing agent. Each lot offered to the Government hereunder shall be accompanied by a certificate disclosing the identity of the actual producer. In the event the seller is not the actual producer of the ore, the seller shall receive payment only in the amount of the base purchase price and the bonus payment shall be paid by the Government direct to the actual producer.

Sec. 8. *Weighing, sampling and analysis.* All deliveries shall be subject to weight, sampling, moisture determination and analysis by the Government at its own expense prior to acceptance. The seller may, at his own expense, have a representative present at the weighing and sampling. Each shipment shall be sampled at the time of unloading at the receiving point by a sampler designated by the Administrator. Each sample shall be analyzed by a recognized commercial laboratory selected by the Administrator. All shipments found not to meet the specifications provided herein shall be rejected. The seller shall be accorded fifteen (15) days to remove the shipment from the unloading site. Upon failure to remove the shipment within fifteen (15) days of due notice, the Administrator may, at his discretion, remove such shipment and the costs of such removal shall be for the account of the seller; or the Administrator may, at his option, otherwise dispose of such shipment without liability therefor.

This regulation is effective as of the date hereof.

Dated: May 28, 1952.

Jess Larson,
Defense Materials Procurement Administrator.

[F. R. Doc. 52-6045; Filed, May 28, 1952; 4:49 p. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

Part 1—General Rules and Regulations

Part 20—Special Regulations

Miscellaneous Amendments

1. Paragraph (f) of § 1.40, entitled *Permits* is revoked.

2. Paragraph (e), entitled *Load and weight limitation for vehicles* of § 20.5, entitled *Mount Rainier National Park* is revoked.

(Sec. 3, 39 Stat. 535, as amended; 16 U. S. C. 3)

Issued this 23d day of May 1952.

Oscar L. Chapman,
Secretary of the Interior.

[F. R. Doc. 52-5946; Filed, May 29, 1952; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 834]

ARKANSAS

RESERVING PUBLIC LANDS FOR FOREST-MANAGEMENT PURPOSES

Whereas the purpose of the act of March 29, 1944, 58 Stat. 132 (16 U. S. C. 583, 583a–1), is, in part, to promote sustained-yield forest management in order thereby to stabilize communities, forest industries, employment, and taxable forest wealth, and the act provides for the sale of timber and other forest products on federally owned or administered forest lands in accordance with the provisions of sustained-yield management formulated or approved as provided therein; and

Whereas the act of July 31, 1947, 61 Stat. 681 (43 U. S. C. 1185–1187), provides, under the conditions therein stated, for the disposal of materials, including timber, on the public lands of the United States; and

Whereas the public lands in the townships described below, situated in Baxter, Cleburne, Conway, Fulton, Independence, Izard, Lawrence, Madison, Marion, Newton, Pope, Randolph, Searcy, Sharp, Stone, Van Buren, and Washington Counties, Arkansas, have been found to be chiefly valuable for timber production and other purposes mentioned in said acts; and

Whereas a district office of the Bureau of Land Management has been established at Russellville, Arkansas, to facilitate the sale of timber in accordance with the principles of sustained-yield forest management;

Now, therefore, by virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights and to the provisions of existing withdrawals, the public lands in the following-described areas are hereby withdrawn from all forms of appropriation under the public land laws, except the mining and mineral-leasing laws and the laws authorizing the disposal of timber and other materials, and reserved under the jurisdiction of the Secretary of the Interior in furtherance of the purposes and objectives of said acts of March 29, 1944, and July 31, 1947:

FIFTH PRINCIPAL MERIDIAN

Tps. 19 and 21 N., R. 1 W.
Tps. 19, 20 and 21 N., R. 2 W.
Tps. 17 to 21 N., R. 3 W.
Tps. 16 to 21 N., R. 4 W.
Tps. 11, 12, 14 to 21 N., R. 5 W.
Tps. 11 to 21 N., Rs. 6 to 8 W.
Tps. 10 to 21 N., R. 9 W.
Tps. 11 to 21 N., R. 10 W.
Tps. 11 to 15 and 18 to 21 N., R. 11 W.
Tps. 11 to 15, 19, 20, and 21 N., R. 12 W.
Tps. 9, 10, 12 to 16, 20 and 21 N., R. 13 W.
Tps. 10 to 16, 20 and 21 N., R. 14 W.
Tps. 9 to 14, 17, 18, 20 and 21 N., R. 15 W.
Tps. 10 to 14, 17, 20, and 21 N., R. 16 W.
Tps. 11 to 14, 16, 20, and 21 N., R. 17 W.
Tps. 15 and 16 N., R. 18 W.
T. 16 N., R. 19 W.
Tps. 15 and 16 N., Rs. 20 to 24 W.
Tps. 13, 14, and 15 N., R. 25 W.
Tps. 14, 15, and 16 N., R. 26 W.
Tps. 14 and 15 N., Rs. 27 to 29 W.
Tps. 13, 14, and 15 N., R. 30 W.
Tps. 13 and 14 N., Rs. 31 to 33 W.

The areas described contain approximately 112,000 acres of public lands.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 23, 1952.

[F. R. Doc. 52–5943; Filed, May 29, 1952; 8:46 a. m.]

[Public Land Order 835]

ALASKA

REVOCATION OF EXECUTIVE ORDER NO. 8480 OF JULY 12, 1940, AMENDMENT OF PUBLIC LAND ORDER NO. 571 OF MARCH 9, 1949, AND RESERVATION OF PORTIONS OF RELEASED LANDS FOR TOWN-SITE PURPOSES

By virtue of the authority vested in the President by the Act of March 12, 1914, 38 Stat. 305, 307 (48 U. S. C. 303), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

1. Executive Order No. 8480 of July 12, 1940, excluding a tract of public land in Alaska from the Chugach National Forest, and reserving it for town-site purposes in connection with the construction and operation of railroad lines, is hereby revoked: *Provided*, That such revocation shall not have the effect of returning any of such lands to a national forest status.

2. Public Land Order No. 571 of March 9, 1949, which (1) set aside for the use of the Alaska Railroad as a railroad reserve two parcels of land reserved by the said Executive Order No. 8480 for town-site purposes, and (2) modified that Executive Order to the extent necessary to permit the use of the lands as a railroad reserve, is hereby amended by withdrawing the lands described therein from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, without changing the status of such lands as a railroad reserve.

3. The tract of land identified as U. S. Survey No. 2882, Alaska, containing 21.120 acres, plat of survey accepted July 6, 1949, within the area reserved by said Executive Order No. 8480, is hereby withdrawn from all forms of appropriation under the public-land laws and reserved for railroad town-site purposes: *Provided*, That such reservation of Lots 1 to 6, inclusive, of Block 3, as shown on the said Survey No. 2882, shall be subject to the use of such lots by agencies of the Federal Government.

4. The following-described tracts of land within the area reserved by said Executive Order No. 8480 are hereby withdrawn from settlement, location, sale, or entry, and reserved for classification:

Tract No. 1. Beginning at the point of intersection of the south branch of the Portage River with the east boundary of Parcel 1, Alaska Railroad Reserve established by Public Land Order No. 571 of March 16, 1949, being located 1,320 feet on the east side of the center line of the present main line of the Alaska Railroad; thence east along the south bank of the south branch of the Portage River to its junction with the main stream of the Portage River; thence continue east along the south bank of the Portage River to its intersection with the easterly boundary of the Turnagain Arm Townsite Reserve, established by Executive Order 8480 of July 12, 1940; thence south along the easterly boundary of the Turnagain Arm Townsite Reserve to its intersection with an unnamed slough at a distance of approximately 3,200 feet; thence west along the north bank of this unnamed slough to its intersection with the east boundary of the above-mentioned Alaska Railroad Reserve; thence north along this boundary to the point of beginning. The area as described contains approximately 255 acres.

Tract No. 2. Beginning at Corner 1 of U. S. Survey No. 2882, located 50 feet west of the center line of the highway; thence south along the right-of-way of highway to its intersection with the south branch of the Portage River, a distance of approximately 4,585 feet; thence west along the north bank of the south branch of the Portage River to a point 660 feet from the highway right-of-way measured at a 90 degree angle to the right-of-way; thence north parallel to the 660 feet from the highway right-of-way for a distance of approximately 4,585 feet; thence east 660 feet to the point of beginning. The area described contains approximately 69.5 acres.

The remaining lands released from withdrawal by the revocation of Executive Order No. 8480, which lands are unsurveyed, shall, at 10:00 a. m. on the 35th day after the date of this order, subject to valid existing rights and the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934, 48 Stat. 809 (48 U. S. C. 461), only, and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with the appropriate laws and regulations.

Applications for these lands which shall be filed in the Land Office, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the home site or homestead laws shall be governed by the regulations contained in Parts 64 to 66, inclusive, of Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Anchorage Alaska.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 23, 1952.

[F. R. Doc. 52–5945; Filed, May 29, 1952; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[2d Rev. S. O. 856, Amdt. 3]

PART 95—CAR SERVICE

SATURDAYS TO BE INCLUDED IN COMPUTING DEMURRAGE ON ALL FREIGHT CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D. 1952.

Upon further consideration of Second Revised Service Order No. 856 (16 F. R. 3929, 10560; 17 F. R. 896, 3458), and good cause appearing therefor: It is ordered, that:

Section 95.856 *Saturdays to be included in computing demurrage on all freight cars* of Second Revised Service Order No. 856 be, and it is hereby amended by substituting the following paragraph (f) for paragraph (f) thereof:

(f) *Expiration date.* This section shall expire at 11:59 p. m., November 30, 1952, unless otherwise modified, changed, suspended or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., May 31, 1952.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5960; Filed, May 29, 1952; 8:48 a. m.]

[Rev. S. O. 866, Amdt. 4]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR FREIGHT CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 27th day of May A. D. 1952.

Upon further consideration of the provisions of Revised Service Order No. 866 (15 F. R. 6198, 6256, 6573; 16 F. R. 2894, 13102; 17 F. R. 2765, 3458), and good cause appearing therefor: It is ordered, that:

Section 95.866 *Railroad operating regulations for freight car movement* of Revised Service Order No. 866 be, and it is hereby, amended by substituting the following paragraph (b) (3) hereof for paragraph (b) (3) thereof:

(3) When computing the periods of time provided in this section, exclude Sundays and such holidays as are listed in Item No. 7, Agent L. C. Schuldt's Demurrage Tariff I. C. C. 4442 or reissues thereof, only when they occur within the said periods of time, but not after.

It is further ordered, that this amendment shall vacate Amendment No. 3 and shall become effective at 11:59 p. m., May 31, 1952; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5982; Filed, May 29, 1952 8:53 a. m.]

[Rev. S. O. 867, Amdt. 6]

PART 95—CAR SERVICE

RESTRICTIONS ON TRAP AND FERRY CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D. 1952.

Upon further consideration of Revised Service Order No. 867 (15 F. R. 6199, 6313, 6573; 16 F. R. 2895, 6184, 12096; 17 F. R. 1857), and good cause appearing therefor: It is ordered, that:

Section 95.867 *Restrictions on trap and ferry cars* of Revised Service Order No. 867 be, and it is hereby further amended by substituting the following paragraph (e) for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., August 31, 1952, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., May 31, 1952.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5964; Filed, May 29, 1952; 8:49 a. m.]

[Corr. S. O. 870, Amdt. 5]

PART 95—CAR SERVICE

FREE TIME ON FREIGHT CARS LOADED AT PORTS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D. 1952.

Upon further consideration of Service Order No. 870 (15 F. R. 8994, 9065; 16 F. R. 2895, 6843, 10995; 17 F. R. 1857), and good cause appearing therefor: It is ordered, that:

Section 95.870 *Free time on freight cars loaded at ports* of Service Order No. 870, be, and it is hereby further amended by substituting the following paragraph (f) for paragraph (f) thereof:

(f) *Expiration date.* This section shall expire at 11:59 p. m., August 31, 1952, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., May 31, 1952.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5965; Filed, May 29, 1952; 8:49 a. m.]

[Corr. S. O. 871, Amdt. 6]

PART 95—CAR SERVICE

FREE TIME ON UNLOADING BOX CARS AT PORTS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D. 1952.

Upon further consideration of Service Order No. 871 (15 F. R. 8995, 9066; 16 F. R. 2895, 6843, 10750, 10995; 17 F. R. 1858), and good cause appearing therefor: It is ordered, that:

Section 95.871 *Free time on unloading box cars at ports* of Service Order No. 871 be, and it is hereby further amended by substituting the following paragraph (g) for paragraph (g) thereof:

(g) *Expiration date.* This section shall expire at 11:59 p. m., August 31, 1952, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., May 31, 1952.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5962; Filed, May 29, 1952; 8:48 a. m.]

[Rev. S. O. 872, Amdt. 3]

PART 95—CAR SERVICE

MOVEMENT OF GRAIN TO TERMINAL ELEVATORS BY PERMIT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D. 1952.

Upon further consideration of the provisions of Revised Service Order No. 872 (16 F. R. 8185, 10560; 17 F. R. 896), and good cause appearing therefor: It is ordered, that:

Section 95.872 *Movement of grain to terminal elevators by permit* of Revised Service Order No. 872, be, and it is hereby, amended by substituting the following papagraph (e) hereof for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m. October 31, 1952, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., May 31, 1952; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5961; Filed, May 29, 1952; 8:48 a. m.]

[S. O. 878, Amdt. 2]

PART 95—CAR SERVICE

REQUIREMENTS FOR LOADING CANNED GOODS AND FOODSTUFFS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 26th day of May A. D., 1952.

Upon further consideration of the provisions of Service Order No. 878 (16 F. R. 5768, 6135, 12096), and good cause appearing therefor: It is ordered, that:

Section 95.878 *Requirements for loading canned goods and foodstuffs* of Service Order No. 878 be, and it is hereby amended by substituting the following paragraph (i) hereof for paragraph (i) thereof:

(i) *Expiration date.* This section shall expire at 11:59 p. m., November 30, 1952, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., May 31, 1952; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12; 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379 as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5963; Filed, May 29, 1952; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF JUSTICE

Immigration and Naturalization Service

[8 CFR Part 105]

HEAD TAX EXEMPTION OF CERTAIN ALIENS CONNECTED WITH INTERNATIONAL ORGANIZATIONS

NOTICE OF PROPOSED RULE MAKING

MAY 14, 1952.

Pursuant to section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1003), notice is hereby given of the proposed issuance by the Commissioner of Immigration and Naturalization, with the approval of the Attorney General, of the following rules relating to the head tax exemption of certain aliens connected with international organizations. In accordance with subsection (b) of said section 4, interested persons may submit to the Commissioner of Immigration and Naturalization, Room 1060, Temporary Federal Office Building X, 19th and East Capitol Street NE., Washington 25, D. C., written data, views, and arguments relative to the substantive provisions of the proposed amendment. Such representations may not be presented orally in any manner. All relevant material received within 20 days following the day of publication of this notice will be considered.

Paragraph (p) of § 105.3, Chapter I, Title 8 of the Code of Federal Regulations, is amended so that, when taken with the introductory sentence, it will read as follows:

§ 105.3 *Aliens not subject to head tax.* The head tax shall not be levied upon the following classes of aliens:

* * * * *

(p) *Aliens connected with certain international organizations.* (1) Representatives of foreign governments in or to international organizations designated by the President by Executive order as entitled to enjoy privileges, exemptions, and immunities as international organizations under the International Organizations Immunities Act (59 Stat. 672; 22 U. S. C. 288d), or officers or employees of such international organizations, and the families, attendants, servants, and employees of such representatives, officers, or employees.

(2) Representatives of foreign governments in or to, or officials of, specialized agencies as defined in Article 57, paragraph 2, of the United Nations Charter (59 Stat. 1031), proceeding to the headquarters district of the United Nations, or the families of such representatives or officials, proceeding to the headquarters district.

(3) Aliens proceeding to the headquarters district of the United Nations who have any of the following relationships to the United Nations or to a specialized agency as defined in Article 57, paragraph 2, of the United Nations Charter:

(i) Experts performing missions for the United Nations or for such specialized agency;

(ii) Representatives of the press, or of radio, film, or other information agencies, who have been accredited by the

United Nations or by such specialized agency;

(iii) Other persons invited to the headquarters district by the United Nations or by such specialized agency on official business.

(4) Representatives of nongovernmental organizations recognized by the United Nations for the purpose of consultation under Article 71 of the United Nations Charter.

(Sec. 23, 39 Stat. 892, sec. 24, 43 Stat. 166, sec. 37 (a), 54 Stat. 675; 8 U. S. C. 102, 222, 458 (a))

ARGYLE R. MACKEY,
Commissioner,
Immigration and Naturalization.

Approved: May 21, 1952.

PHILIP B. PERLMAN,
Acting Attorney General.

[F. R. Doc. 52-5981; Filed, May 29, 1952; 8:52 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 905]

HANDLING OF MILK IN THE OKLAHOMA CITY, OKLA., MARKETING AREA

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS THERETO WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND PROPOSED ORDER AMENDING ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of this recommended decision of the Assistant Administrator, Production and Marketing Administration, United States Department of Agriculture, with respect to a proposed marketing agreement and a proposed order amending the order, as amended, regulating the handling of milk in the Oklahoma City, Oklahoma, marketing area.

Interested parties may file written exceptions to this recommended decision with the Hearing Clerk, Room 1353, South Building, United States Department of Agriculture, Washington 25, D. C., not later than the close of business on the 10th day after the publication of this recommended decision in the FEDERAL REGISTER. Exceptions should be filed in quadruplicate.

Preliminary statement. The hearing, on the record of which the proposed amendment to the tentative marketing agreement and to the order, as amended, was formulated, was conducted at Oklahoma City, Oklahoma, on March 3-4, 1952, pursuant to notice thereof which was issued on February 26, 1952 (17 F. R. 1689).

The material issues presented on the record of hearing, and on which findings and conclusions are herein set forth, are concerned with:

1. The differential for Class I milk over the basic formula and the automatic adjustment of the Class I price in response to changes in the relationship between market supply and market demand;

2. The pricing of Class II milk; and

3. The pricing of milk distributed to school lunch programs. Evidence introduced at the hearing and the record thereof indicated the need for emergency action with respect to the level of Class I and Class II prices for April, May and June 1952 and a minor change in the allocation of Class I milk. Emergency action was taken in the form of a final decision issued March 18, 1952 (17 F. R. 2440) and subsequent amendment to the order effective April 1, 1952.

Findings and conclusions. The following findings and conclusions which are supplementary to the findings and conclusions made with respect to the aforesaid decision are based upon the evidence introduced at the hearing and the record thereof.

1. The price for Class I milk should be the basic formula price of the order plus $1.70 for the months of April, May and June, and plus $1.90 for all other months; such price should be automatically adjusted in response to changes in the relationship between market supply and demand for milk.

The continuing provisions of the Oklahoma City order now provide that the price for Class I milk shall be the basic formula price of the order plus $1.45 for the months of April, May and June, and plus $1.85 for other months. For the months of November 1951 through February 1952 a temporary amendment established the Class I price as the basic formula price plus $2.30. On the basis of the record of this hearing action has been taken to establish the price for April 1952 as the basic formula price plus $1.85 and for May and June 1952 as such price plus $1.65.

Producers proposed that beginning in July 1952 the Class I price should be the basic formula price plus $2.05 for all months, with provision for a "supply-demand" adjustment.

In support of this proposal producers point out that the Oklahoma City market has lost production and producers despite the temporary price increases effective during the past winter, and that increased milk sales require additional producer supplies. They indicate the belief that competition from other markets will attract additional producers from the Oklahoma City market after July 1 of this year.

Local supplies of milk have not been adequate for the needs of the Oklahoma City market in the short season since the order became effective. Shortages were more acute during the past short season than they were a year earlier. For the months of September 1951 through January 1952 over 3 million pounds of other source milk was classified as Class I milk as compared with slightly less than 1 million pounds in the same months a year earlier. Comparable figures (adjusted to exclude the effects of the change in marketing area effective November 1, 1951) show a reduction of 1.6 percent in receipts of producer milk, and an increase of 5.3 percent in sales for the same periods. Compared with a year earlier there were 35 less producers in September and 103 less in January. Producer numbers declined 77 from September to January.

Production conditions in the past fall and winter were adversely affected by drought conditions. While the drought was not so severe in the Oklahoma City area as in nearby areas to the south and west, the conditions in such areas brought extremely high hay prices to the Oklahoma City area and resulted in other markets attempting to attract Oklahoma City producers by higher milk prices. Without the temporary increase in the Class I price of the Oklahoma City market for the months of November through February, milk supplies would probably have been much lower than they were. While this temporary increase in prices did not attract any number of new producers, nor prevent some further loss in producer numbers, it apparently did enable the producers on the market to maintain their production per farm at a level somewhat above that of a year earlier.

The Oklahoma City market has little opportunity to expand the area from which it draws its milk supplies. Rainfall in areas to the west is not sufficient to be favorable to dairy production. The North Texas market is now drawing milk supplies in competition with Oklahoma City to the south. Smaller unregulated markets whose producer prices are influenced by the prices of the North Texas market also compete for production in this area. There is little dairy production in the area to the east which separates the Oklahoma City milkshed from those of the Tulsa and Muskogee markets.

Within the present milkshed the volume of milk produced for manufacturing purposes is decreasing and there are no substantial number of dairymen whose production can be allotted to the fluid market. Producers feel that increased production per farm without substantial increase in producer numbers appears the most likely source from which improvement in the level of market supplies may be secured.

The present Class I price differentials of the Oklahoma City order have been effective only for the period from April 1951 through October 1951. For the months of April through June producers are paid on a base plan which gives producers with established bases prior claim to Class I sales so that new producers are not normally attracted to the market at this time nor is there incentive for old producers to increase their deliveries. The rapid decline in production that occurred in 1951 from July through October indicates that the conditions which required temporary pricing were operating prior to the time such pricing was made effective. Under these circumstances it is difficult to determine the effectiveness of the present pricing formula in supplying the market under conditions that would be considered normal.

The basic formula price of the order reflects the national market for dairy products, and thus should reflect changes in production costs and market demands that follow national trends. This deci-

sion provides for a "supply-demand" adjustment of prices that should reflect the results of changes in these factors in the Oklahoma City market that differ from national trends. The "supply-demand" adjustment reflects changes in the supply picture resulting from competition from other markets. In view of the limited experience under the pricing formula containing the present differentials it is concluded that changes in the differentials, which are the fixed portion of the Class I pricing formula, should be limited at this time to those which will best align Oklahoma City differentials with those of neighboring Federal order markets with which there is competition for production and for sales. These are the North Texas, Tulsa and Muskogee markets.

The North Texas market is presently competing with the Oklahoma City market for production to a greater extent than do the Tulsa and Muskogee markets. North Texas handlers are extending their routes into the southern portion of the Oklahoma City milkshed, in which there is a substantial volume of production, and in which there is opportunity for increased Grade A milk production. North Texas handlers paid substantial premiums over order prices during the past winter, which increased the attractiveness of that market more than may be expected under normal conditions.

Competition for production between Oklahoma City and Tulsa is confined to two counties from which each market draws only a little milk. Competition with the Muskogee market is confined to one such county.

Competion for sales of fluid milk is, however, almost entirely with the Tulsa and Muskogee markets. The area of competition for sales with these markets is now somewhat larger than formerly, due to the distribution of a handler affected by the recent change in the Oklahoma City marketing area. In addition to this competition for sales, there is movement of milk between the Tulsa and Oklahoma City markets at certain seasons of the year. Differences in the seasonal patterns of production of the two markets are such that there are seasons of the year when each market is short of milk while the other has some excess. A handler who operated plants in both Tulsa and Oklahoma City has recently started supplying his trade in both markets from his Tulsa plant.

Official notice is taken that a recent amendment to the North Texas order establishes Class I price differentials for that market at $2.00 for the months of April through June, and at $2.20 for all other months. The record indicates that a 30-cent difference between Oklahoma City prices and North Texas prices is fairly representative of the historical relationship between the markets. The Class I price differentials of the Tulsa and Muskogee markets are presently the same as those regularly contained in the Oklahoma City order.

Differentials of $1.70 for the months of April through June and $1.90 for all other months would represent an annual average increase of 10 cents over the present differentials. Such differentials would also provide a 30-cent difference between the Oklahoma City and North Texas markets during all months of the year, subject of course, to adjustments provided by the supply-demand provisions of the respective orders. They would result in the Oklahoma City Class I differential exceeding Tulsa and Muskogee prices by an annual average of 10 cents. It is concluded that these differences represent reasonable relationships between these markets under current conditions and that such differentials should be adopted for the Oklahoma City market.

Further provision should be made for automatically adjusting Class I price in response to changes in the relationship between market supply and demand. Although the proposed differentials should result in an appropriate Class I price, conditions have arisen in the past which necessitated hearings to amend such differentials in order to keep supply in proper alignment with demand. Such a procedure is time consuming and it is expected that this segment of the proposed amendment will tend toward the need for fewer hearings because of more prompt and timely automatic adjustments in the Class I price.

It is difficult to predict accurately what level of prices will be necessary to assure that the market will be adequately supplied with milk in the forthcoming months. If the market is adequately supplied, this proposal will have little or no effect on the Class I price, but if the supply is short this proposal will increase the Class I price and be an incentive for a larger supply. Assurance to producers that prices will be changed promptly in response to any change in the relationship between market supply and demand for milk should encourage them to continue to supply milk to the market.

It is concluded that the measure of the current relationship between market supply and market demand should be based on the ratio of total producer receipts to gross Class I sales in the most recent two-month period, the first and second months preceding the month for which a price is being computed. This ratio is hereinafter referred to as the "Class I utilization percentage". Many factors affect market supply and demand, but total producer receipts and gross Class I sales reflect the net effect of all these factors. Extension of recent changes appears to be the most accurate means of estimating current and prospective supply and demand conditions.

Use of a two-month period is desirable in order to reflect quickly any changes in supply and demand. However, an adjustment based on a short period of this kind may to some extent reflect random changes in utilization which are not indicative of actual trends. It is necessary, therefore, to provide for some method of stabilizing this adjustment and of limiting it as to total magnitude. This had been accomplished by deducting 2 percentage points from the "net utilization percentage" and setting limits on the amount of the adjustment. (Net utilization percentages are computed by algebraically subtracting the standard utilization percentage from the Class I utilization percentage.) The maximum adjustment provided for is 50 cents per hundredweight. Any conditions which develop that might warrant price adjustments beyond this limit should be considered at a hearing.

It was suggested that bulk sales of Class I milk outside the market area be excluded from the "supply-demand adjustment". Historically these sales have been small, so that their inclusion or exclusion would have had little effect in adjusting prices. The adjustment should, however, reflect the total demand for producer milk for Class I uses. Therefore bulk sales of Class I milk outside the marketing area should be included in computation of the "supply-demand" adjustment. Class I sales in the marketing area by a handler subject to another marketing order should, however, not be included since the receipts of such handlers are not included in the volume of market supplies used in the computation.

It is doubtful if the lag occasioned by using the first and second months preceding the month for which a price is being computed to measure change in the market supply-demand relationship will be great enough to disrupt the effectiveness of the automatic price adjustments sought. Use of the first and second preceding months will permit announcement each month of the effect on the Class I price of this provision not later than the 10th day of the month to which it applies. Although this would result in having the Class I price announcement made 5 days later than is now provided for in the order, the advantage of having the most current month reflected in the supply-demand adjustment factor outweighs the disadvantage of a few days' delay in the price announcement.

The provisions for adjusting the Class I price should be constructed in such a manner that no price adjustment results when market supply and demand are in proper balance, in other words, when the market is adequately supplied. Lack of historical data for an extended period of time necessitates construction of a representative ratio to serve as a normal or standard relationship between supply and demand. Testimony was presented recognizing this lack of historical data and the necessity of constructing such a ratio adhering to certain principles as contained in the record. Representatives of producers testified that the largest reserve on record for the Oklahoma City market was 27 percent (or producer receipts were 137 percent of sales) in May 1951. A desire was expressed that this large a reserve was not desirable and that a representative ratio be constructed accordingly. Considerable testimony was directed toward the feasibility of attempting to obtain 110 percent utilization in the short month, October. The concurrence of opinion was that a more healthy market situation would exist if this goal were somewhat modified as it would be economically unsound to attempt immediately that adequate a supply for the Oklahoma City market in the short month because of the possibility of burdensome increases in the amount of reserve milk in the flush period. It is concluded that standard utilization percentages for each

two-month period during a year should be as follows:

Month for which price applies	Months used in computation	Standard utilization percentage
January	November-December	110
February	December-January	114
March	January-February	118
April	February-March	120
May	March-April	124
June	April-May	127
July	May-June	132
August	June-July	131
September	July-August	127
October	August-September	116
November	September-October	108
December	October-November	107

If the current Class I utilization percentage for the first and second months preceding the month for which prices are being computed varies from the standard utilization percentages shown above, the Class I price should be adjusted upward if the standard utilization percentage exceeds the current Class I utilization percentage, and downward if the reverse is true. For each percentage point of variation in excess of 2, the Class I price should change as follows: 2 cents upward and 4 cents downward during each of the months of April, May and June; 3 cents during each of the months of July, August, January, February and March; and 4 cents upward and 2 cents downward during each of the months of September through December. Such adjustments recognize that shortages indicated for fall months and excess supplies indicated for spring months require greater adjustment in prices than do the reverse relationships.

2. No further change should be made at this time in the method of determining the price for Class II milk.

In a prior decision issued on the basis of the record of this hearing it was concluded that the paying prices of the four manufacturing plants now named in the Tulsa order provided an appropriate means of determining Class II prices under the Oklahoma City order for the period required for a more complete analysis of the evidence with respect to such prices.

Evidence in this record does not justify any change in the conclusion that the paying prices of the four plants which determined Class II prices under the Oklahoma City order prior to November 1951 do not represent the true value of milk for manufacturing purposes in the area. Analysis of the data in the record indicates that on an annual average there is little difference between the prices resulting from the provisions effective for the past months of November through March, and the average paying prices of the four plants now named in the order, which are those also named in the Tulsa order. The range of fluctuation has, however, been less for the four-plant price than for the butter-powder price and price movements of the four-plant price have paralleled more closely those of the plants which handlers proposed for use in the Class II price formula.

Two of the four plants now named in the order are located in Oklahoma, and the other two are located so close to the Oklahoma border that they buy milk from numbers of Oklahoma dairymen. While three of these plants are not so located as to be outlets to which Class II milk may readily be diverted by Oklahoma City plants, they are located in the area from which Oklahoma City handlers purchase supplemental ingredients for the manufacture of ice cream, and with which such handlers compete for sales of such ingredients to other markets.

It is concluded that no further change should be made in the Class II pricing provisions on the basis of the record of this hearing.

3. Provision should not be included in the order to provide a special price for milk distributed through school lunch programs.

A representative of the Oklahoma State Board of Education proposed that a ten percent reduction be effective in the price of all milk to schools.

The record indicates that the proposal was made in the belief that the order controlled resale prices of milk. The proposal was not supported by any handler and there is no indication in the record that any reduction in the Class I price would affect the cost of milk to the school lunch programs in the interest of which the proposal was presented. The present supply situation does not warrant any decrease in the Class I prices decided herein.

General findings. (a) The proposed marketing agreement and the order, as amended, and as hereby proposed to be further amended, and all of the terms and conditions thereof will tend to effectuate the declared policy of the act;

(b) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds and other economic conditions which affect market supply of and demand for milk, in the marketing area and the minimum prices specified in the proposed marketing agreement and the order, as amended, and as hereby proposed to be further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The proposed order, as amended, and as hereby proposed to be further amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity specified in a marketing agreement upon which a hearing has been held.

Rulings on proposed findings and conclusions. Briefs were filed on behalf of the Central Oklahoma Milk Producers Association and handlers subject to the order.

The briefs contained statements of fact, proposed findings and conclusions, and arguments with respect to the provisions of the proposed amendments. Every point covered in the briefs was carefully considered along with the evidence in the record in making the findings and reaching the conclusions hereinbefore set forth. To the extent that the findings and conclusions proposed in the briefs are inconsistent with the findings and conclusions contained herein, the request to make such findings or to reach such conclusions is denied on the basis of the facts found and stated in connection with the conclusions in this recommended decision.

Recommended marketing agreement and amendments to the order. The following amendments to the order are recommended as the detailed and appropriate means by which the foregoing conclusions may be carried out. The recommended marketing agreement is not included in this decision because the regulatory provisions thereof would be identical with those contained in the order as hereby proposed to be amended.

1. Delete § 905.51 (a) and substitute therefor the following:

(a) *Class I milk.* The basic formula price plus $1.70 during the months of April, May, and June and plus $1.90 during all other months: *Provided*, That for each of the months of September, October, November and December, such price shall not be less than that for the preceding month, and that for each of the months of April, May, and June such price shall be not more than that for the preceding month. To this price add or subtract a "supply-demand adjustment" computed as follows:

(1) Divide the total receipts of producer milk in the first and second months preceding by the total gross volume of Class I milk (excluding interhandler transfers and sales by producer-handlers and handlers partially exempt from this order pursuant to § 905.61) for the same months, multiply the result by 100, and round to the nearest whole number. The result shall be known as the Class I utilization percentage;

(2) Compute a "net utilization percentage" by algebraically subtracting from the Class I utilization percentage computed pursuant to subparagraph (1) of this paragraph, the standard utilization percentage shown below:

Month for which price applies	Months used in computation	Standard utilization percentage
January	November-December	110
February	December-January	114
March	January-February	118
April	February-March	120
May	March-April	124
June	April-May	127
July	May-June	132
August	June-July	131
September	July-August	127
October	August-September	116
November	September-October	108
December	October-November	107

(3) For each minus percentage point in excess of 2 in the "net utilization percentage" the Class I price shall be increased 3 cents in January, February, March, July and August; 2 cents in April, May and June; 4 cents in September, October, November and December; and for each plus percentage point in excess of 2 in the "net utilization percentage" the Class I price shall be decreased 3 cents in January, February, March, July and August; 4 cents in April, May and June; and 2 cents in September, October, November and December: *Provided*, That in no event shall an adjustment made pursuant to this subparagraph exceed 50 cents per hundredweight.

2. Amend § 905.22 (j) (1) to read as follows:

(1) On or before the 10th day of each month the minimum price for Class I milk computed pursuant to § 905.51 (a) and the Class I butterfat differential computed pursuant to § 905.52 (a) both for the current month; and on or before the 5th day of each month the minimum price for Class II milk pursuant to § 905.51 (b) and the Class II butterfat differential computed pursuant to § 905.52 (b), both for the previous month; and

Filed at Washington, D. C., this 27th day of May 1952.

[SEAL] ROY W. LENNARTSON,
Assistant Administrator.

[F. R. Doc. 52-5998; Filed, May 29, 1952; 8:54 a. m.]

[7 CFR Part 961]

[Docket No. AO-160-A-13]

HANDLING OF MILK IN PHILADELPHIA, PA., MARKETING AREA

DECISION WITH RESPECT TO A PROPOSED AMENDMENT TO TENTATIVE MARKETING AGREEMENT AND PROPOSED ORDER AMENDING ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted at Philadelphia, Pennsylvania, on February 25–28, 1952, pursuant to a notice thereof which was issued on February 14, 1952 (17 F. R. 1567).

Upon the basis of the evidence introduced at the hearing and the record thereof, the Acting Assistant Administrator, Production and Marketing Administration, on May 7, 1952, filed with the Hearing Clerk, United States Department of Agriculture, a recommended decision in this proceeding. The notice of filing such recommended decision and opportunity to file written exceptions thereto was published in the FEDERAL REGISTER on May 10, 1952 (17 F. R. 4300, F. R. Doc. 52-5254). That recommended decision dealt with the issues of record which had not been dealt with in a decision by the Secretary dated April 10, 1952 (17 F. R. 3355) and amending order effective April 17, 1952 (17 F. R. 3447). The issue of regulation of Philadelphia producer milk plants disposing of milk for fluid purposes in the New York metropolitan marketing area was considered in the decision of April 10, but action was taken only for the months of April through August, 1952. For periods after August, 1952 action on this matter is reserved for a further decision on the record of this hearing.

The material issues, findings (including general findings) and conclusions of the recommended decision dated May 10, 1952 (17 F. R. 4300) are hereby approved and adopted as the issues, findings and conclusions of this decision as if set forth in full herein, subject to the following modifications:

1. Delete the third, fourth, and fifth paragraphs, column 2, 17 F. R. 4301, and insert the following:

Abbotts Dairies, Inc., objected to the proposal that the Ambler, Pennsylvania, plant be listed in the order as a producer milk plant. This plant, which was recently purchased from Meyers Dairies, is now operating as a pasteurizing and bottling plant from which milk is disposed of in the marketing area. Ordinarily there has been no reason for including such a plant in the list, since normally it would be a producer plant continuously pursuant to § 961.1 (a) (6) (ii). The witness for the handler testified there were no plans for removing the plant from the market in the forseeable future. It is concluded there is no need at this time for listing this plant.

The following plants have ceased operations and have been dismantled and accordingly are deleted from the list:

Plant and Location

Bedminster Dairymen's Association, Bedminster, Pa.
Gardenville Dairymen's Association, Gardenville, Pa.
Greentree Creamery Association, Obelisk, Pa.
A. R. Hansell, Mainland, Pa.
Montg.-Berk Dairy Co., Inc., Boyertown, Pa.
Philadelphia Dairy Products Co., Bigler-ville, Pa.
Philadelphia Dairy Products Co., New Holland, Pa.
Supplee-Wills-Jones Milk Co., Mount Pleasant, Del.

2. Insert after the fourth paragraph, column 1, 17 F. R. 4302, the following: "Handlers excepted to the classification and pricing of frozen concentrated milk for export in the same manner as other milk used for fluid consumption. Sales to the export trade are one kind of sale outside the marketing area, and for the reasons set forth in the discussion of issue No. 7, no change in the present order provisions should be made with respect to such sales."

Ruling on exceptions. In arriving at the findings and conclusions included in this decision each of the exceptions received was carefully and fully considered in conjunction with the record evidence pertaining thereto. To the extent that the findings and conclusions herein are at variance with the exceptions, such exceptions are overruled.

Determination of representative period. The month of February 1952 is hereby determined to be the representative period for the purpose of ascertaining whether the issuance of an order amending the order, as amended, regulating the handling of milk in the Philadelphia, Pennsylvania, marketing area in the manner set forth in the attached amending order is approved or favored by producers who during such period were engaged in the production of milk for sale in the marketing area specified in such order, as amended.

Marketing agreement and order. Annexed hereto and made a part hereof are two documents entitled, respectively, "Marketing Agreement Regulating the Handling of Milk in the Philadelphia, Pennsylvania, Marketing Area," and "Order Amending the Order, as Amended, Regulating the Handling of Milk in the Philadelphia, Pennsylvania, Marketing Area," which have been decided upon as the detailed and appropriate means of effectuating the foregoing conclusions. These documents shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and order have been met.

It is hereby ordered, That all of this decision, except the attached marketing agreement, be published in the FEDERAL REGISTER. The regulatory provisions of said marketing agreement are identical with those contained in the order, as amended, and as hereby proposed to be further amended by the attached order which will be published with this decision.

This decision filed at Washington, D. C., this 27th day of May 1952.

[SEAL] C. J. MCCORMICK,
Acting Secretary of Agriculture.

Order[1] Amending the Order, as Amended, Regulating the Handling of Milk in the Philadelphia, Pennsylvania, Marketing Area

§ 961.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon certain proposed amendments to the tentative marketing agreement and to the order, as amended, regulating the handling of milk in the Philadelphia, Pennsylvania, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds and other economic conditions which affect

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

market supply and demand for milk in the said marketing area and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity specified in a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered, that on and after the effective date hereof the handling of milk in the Philadelphia, Pennsylvania, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order, as amended, is hereby further amended as follows:

1. In § 961.1 (a) (6) (i) delete "Abbotts Dairies, Inc., Goshen, Pa.", "Bedminster Dairymen's Association, Bedminster, Pa.", "Gardenville Dairymen's Association, Gardenville, Pa.", "Greentree Creamery Association, Obelisk, Pa", "Hansell, A. R., Mainland, Pa.", "Mont.-Berk Dairy Co., Inc., Boyertown, Pa.", "Philadelphia Dairy Products Co., Inc., Biglerville, Pa.", "Philadelphia Dairy Products Co., Inc., Fairdale, Pa.", "Philadelphia Dairy Products Co., Inc., New Holland, Pa.", "Supplee-Wills-Jones Milk Co., Mount Pleasant Del.", and insert "Philadelphia Dairy Products Co., Inc., Benton, Pa."

2. Delete § 961.3 (b) (1) (i) and substitute:

(i) Sold, distributed, or disposed of as or in milk, skim milk and flavored milk drinks for fluid consumption containing less than 18 percent butterfat, including concentrated milk not sterilized and not in hermetically sealed cans, and including all milk or skim milk disposed of from a handler's plant to retail establishments which dispose of milk for both fluid and other uses, and

3. In § 961.4 (a) (1) (i) delete the figure "0.8028" and substitute the figure "0.5108."

4. Delete § 961.10 and substitute:

§ 961.10 *Price or index.* If for any reason a price or index specified by this order for use in computing class prices or other purposes is not reported or published in the manner described in this order, the market administrator shall use a price or index determined by the Secretary to be equivalent to or comparable with the factor which is specified.

[F. R. Doc. 52-5999; Filed, May 29, 1952; 8:54 a. m.]

DEPARTMENT OF LABOR

Division of Public Contracts

[41 CFR Part 201]

NOTICE OF POSTPONEMENT OF HEARING ON PUBLIC CONTRACTS ACT REGULATIONS

On April 4, 1952, the Secretary of Labor published in the FEDERAL REGISTER a notice of a hearing to be held on June 10, 1952 for the purpose of receiving evidence and testimony with respect to a proposed revision of the Public Contracts Act Regulations as published in the FEDERAL REGISTER of March 8, 1952.

Notice is hereby given that the hearing on the Public Contracts Act Regulations scheduled for June 10, 1952, is postponed. In view of the fact that it is not possible at this time to announce a specific date for the rescheduled hearing, appropriate notice will be published in the FEDERAL REGISTER at the time such date has been selected.

Signed at Washington, D. C., this 27th day of May 1952.

MAURICE J. TOBIN,
Secretary of Labor.

[F. R. Doc. 52-5948; Filed, May 29, 1952; 8:56 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Parts 21, 43]

AIRLINE TRANSPORT PILOT RATING; GENERAL OPERATION RULES

DURATION; OPERATION RULES; RATING REQUIREMENTS

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau will propose to the Board amendments to Parts 21 and 43 of the Civil Air Regulations.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by June 27, 1952. Copies of such communications will be available after July 1, 1952, for examination by interested persons at the Docket Section of the Board, Room 5412, Commerce Building, Washington, D. C.

The proposed rules together with explanatory statements are set forth below.

These amendments are proposed under authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposals may be changed in the light of comments received in response to this notice of proposed rule making.

(Sec. 205 (a), 52 Stat. 984; 49 U. S. C. 425 (a). Interpret or apply secs. 601-610, 52 Stat. 1007-1012; 49 U. S. C. 551-560; 62 Stat. 1216)

Dated: May 22, 1952, at Washington, D. C.

By the Bureau of Safety Regulation.

[SEAL] JOHN M. CHAMBERLAIN,
Director.

AIRLINE TRANSPORT PILOT RATING; DURATION

Prior to May 1, 1949, airline transport pilots were issued horsepower ratings which specified the power range of aircraft for which the holder was rated. Effective May 1, 1949, Part 21 of the Civil Air Regulations was amended to require in lieu of horsepower ratings the issuance of type ratings for each type of civil aircraft having a maximum certificated takeoff weight exceeding 12,500 pounds. The amendment also permitted the holder of an airline transport pilot rating to continue until May 1, 1953, to pilot those aircraft that were covered by his horsepower ratings without holding a type rating. In addition, May 1, 1953, is the designated date upon which the United States is obligated to bring its outstanding pilot certificates into conformity with Annex 1 to the Convention on International Civil Aviation or to place an endorsement upon each certificate specifying wherein the holder has not met the ICAO standards if, in fact, any such standards have not been met. The proposed amendment is designed for two purposes: (1) It provides a means whereby horsepower ratings can be deleted from airline transport pilot ratings, (2) until May 1, 1953, it enables airline transport pilots who hold appropriate horsepower ratings to obtain type ratings for aircraft exceeding 12,500 pounds maximum certificated take-off weight without further demonstration of competency.

This amendment is also made necessary since under present regulations horsepower ratings will not be valid after May 1, 1953. Accordingly, it is proposed to amend Part 21 of the Civil Air Regulations so that all certificates with airline transport pilot ratings having a horsepower rating, that is, all certificates, whether originally issued prior to May 1, 1949, or reissued after that date which have horsepower ratings, shall expire May 1, 1953; and to provide that upon application prior to May 1, 1953, such certificates will be reissued with category, class, and appropriate type ratings for each aircraft, without further demonstration of competency, to applicants who can produce evidence that they either have passed an official rating test in the type aircraft, or have served 10 hours since May 1, 1949, within these ratings as pilot in command and sole manipulator of the controls of the type aircraft. Presently effective certificates having horsepower ratings will not be valid after May 1, 1953.

It is hoped that each pilot affected by this proposed amendment will make application for the exchange of his certificate as soon as possible, because it is anticipated that the Civil Aeronautics Administration will require the better part of 12 months in order to effect the reissuance of all affected certificates.

It is therefore proposed to amend Part 21 of the Civil Air Regulations by adding a new paragraph (e) to § 21.24 to read as follows:

§ 21.24 *Duration.* * * *

(e) All airman certificates with airline transport pilot ratings showing horsepower ratings shall expire May 1, 1953. Upon application to the Administrator prior to May 1, 1953, such valid certificates may be exchanged, without further showing of competency, for new certificates with ratings coinciding with those held; except that in lieu of horsepower ratings, type ratings for aircraft exceeding 12,500 pounds maximum cer-

tificated take-off weight shall be issued upon presentation of reliable evidence that the certificate holder has either passed an official rating test in that type aircraft, or served as pilot in command and sole manipulator of the controls of that type aircraft for at least 10 hours since May 1, 1949, and such aircraft was within his category, class, and horsepower ratings.

GENERAL OPERATION RULES, RATING REQUIREMENTS

Prior to May 1, 1949, aircraft category and class ratings issued to private or commercial pilots did not include provisions for differentiating between large and small aircraft. A rating, such as airplane multiengine land, applied equally to a twin-engine Cessna or a four-engine Constellation. Effective May 1, 1949, Part 43 of the Civil Air Regulations was amended to require the holding of a type rating to pilot an aircraft exceeding 12,500 pounds maximum certificated take-off weight when carrying passengers. However, the amendment permitted the holder of a certificate issued prior to May 1, 1949, to continue until May 1, 1953, to pilot all types of aircraft within his category and class rating without weight limitation. Thus, after May 1, 1953, the present regulations will prohibit the holder of a pilot certificate with class and category ratings but without a type rating from serving as pilot in command in aircraft exceeding 12,500 pounds maximum certificated take-off weight while carrying passengers.

One of the purposes of this proposed amendment is to provide a means whereby the holder of appropriate category and class ratings can obtain, without further demonstration of competency, a type rating for those aircraft exceeding 12,500 pounds maximum certificated take-off weight in which he either has had at least 10 hours of flying time since May 1, 1949, as pilot in command and sole manipulator of the controls or at any time has passed an official rating test.

In addition, the proposed amendment modifies present rating requirements by prescribing that the pilot in command shall hold an appropriate aircraft type rating not only for the carriage of passengers, but also when cargo is carried for hire in an aircraft. This change is necessitated by the requirements of the International Civil Aviation Organization and is one of the provisions with which the United States must comply according to the terms of the Chicago Convention. It does not affect the privileges of a pilot to fly in command of aircraft of 12,500 pounds or less maximum certificated take-off weight, nor does it affect his present copilot privileges.

It is hoped that each private or commercial pilot who is eligible to obtain a type rating by reason of the provisions of this proposed amendment will make application as soon as possible to the nearest CAA office for the issuance of appropriate type rating, because it is anticipated that the CAA will require the better part of 12 months in order to accomplish this change-over.

It is therefore proposed to amend Part 43 of the Civil Air Regulations by deleting footnotes 1 and 2 to § 43.63 and by amending § 43.63 to read as follows:

§ 43.63 *Rating requirements.* A private or commercial pilot shall not serve as pilot in command of an aircraft carrying passengers or operated for remuneration other than in aircraft of the category and class for which he is rated. After May 1, 1953, a private or commercial pilot shall not serve as pilot in command of aircraft exceeding 12,500 pounds maximum certificated take-off weight when carrying passengers or operating for remuneration unless, in addition to proper category and class ratings, he also holds an appropriate type rating. Upon application to the Administrator prior to May 1, 1953, by the holder of a valid private or commercial pilot certificate, type ratings for each aircraft exceeding 12,500 pounds maximum certificated take-off weight will be issued to such holder, without further showing of competency, upon presentation of reliable evidence that the certificate holder has either passed an official rating test in that type aircraft, or served as pilot in command and sole manipulator of the controls for at least 10 hours since May 1, 1949, and such aircraft was within his category and class ratings. A private or commercial pilot may serve as pilot in command of aircraft for which he does not have a type rating when it is being flown without passengers and not for remuneration, unless other limitations placed on his certificate prohibit him from doing so.

[F. R. Doc. 52-6000; Filed, May 29, 1952; 8:55 a. m.]

[14 CFR Parts 41, 42, 61]

FIRE EXTINGUISHER SYSTEMS ON AIRPLANES USED IN AIR CARRIER PASSENGER SERVICE

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau has under consideration proposed amendments to Parts 41, 42, and 61 of the Civil Air Regulations as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by June 27, 1952. Copies of such communications will be available after July 1, 1952, for examination by interested persons at the Docket Section of the Board, Room 5412, Commerce Building, Washington, D. C.

At the present time, Parts 41, 42, and 61 of the Civil Air Regulations do not require that all large aircraft used in passenger-carrying operations be equipped with a "two-shot" fire extinguisher system, that is, a fire extinguisher system providing two adequate discharges which may be directed to any main engine installation and, in some cases, to fuselage compartments and heater installations as well. However, Part 4b, since its original adoption in 1945, has required that airplanes certificated in accordance with that part be provided with a "two-shot" fire extinguisher system. Recent accidents and operational experience have highlighted the fact that present fire extinguishing provisions on certain large passenger airplanes currently in operation are not completely satisfactory. As a result, the Bureau has under consideration a proposal to amend the Civil Air Regulations so as to require "two-shot" fire extinguisher systems on all large airplanes used in passenger-carrying service.

Parts 40, 41, and 42 at present provide that all aircraft used in air carrier passenger service after December 31, 1953, must then comply with the transport category requirements of Part 4a or Part 4b. For airplanes not previously certificated in accordance with Part 4a or Part 4b, this would necessitate, among other things, compliance with the "two-shot" fire extinguisher system requirements of those parts. Thus the DC-3, Lockheed 18, and C-46, which do not currently meet all of these requirements, would have to be modified accordingly by December 31, 1953, or be grounded.

It has become apparent that because of the expense involved, the practical effect of the above mandatory transport category certification requirement will be to force the retirement of even those aircraft whose safety record has been demonstrably good. The Bureau has recently proposed that the mandatory certification provisions of Parts 40, 41, and 42 be rescinded. However, it now appears that such rescission should not necessarily serve to relieve operators of nontransport category aircraft from compliance with certain of the more important transport category provisions, in particular the requirement for a "two-shot" fire extinguisher system.

The Bureau also proposes that, for all aircraft which are used in passenger-carrying service, the fire extinguisher system be fully charged prior to each take-off to ensure that a fully effective fire extinguisher system is available in case of fire in flight. The Bureau considers that a take-off with one of these "shots" unavailable does not provide an adequate level of safety, particularly in those airplanes currently in operation which have several fire zones all of which are served by the main "two-shot" system.

It is therefore proposed to require all airplanes operated in passenger-carrying service, possessing an engine or engines rated at more than 600 h. p. each, to be equipped with a fire extinguisher system which will provide at least two adequate discharges, considering the design of the system, the quantity of

extinguishing agent, and the rate of discharge of the extinguishing agent. It must be possible to direct both discharges to any main engine installation; however, individual "one-shot" systems shall be acceptable in the case of auxiliary power units, fuel-burning heaters, and other combustion equipment. Consideration is being given to requiring compliance with the terms of these amendments not later than December 31, 1953, the date on which it was planned to require compliance with transport category requirements. However, the Bureau is also considering compliance by January 1, 1953, and comment is invited concerning both dates.

It is further proposed that on and after August 1, 1952, no airplane equipped with a "two-shot" fire extinguisher system, whether provided at the time of certification or later installed, may be operated in air carrier passenger service unless such fire extinguisher system is fully charged at the time of each take-off.

These amendments are proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposals may be changed in the light of comments received in response to this notice of proposed rule making.

(Sec. 205 (a), 52 Stat. 984; 49 U. S. C. 425 (a). Interpret or apply secs. 601–610, 52 Stat. 1007–1012; 49 U. S. C. 551–560; 62 Stat. 1216)

Dated: May 22, 1952, at Washington, D. C.

By the Bureau of Safety Regulation.

[SEAL] JOHN M. CHAMBERLAIN,
Director.

[F. R. Doc. 52-6001; Filed, May 29, 1952; 8:56 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Reclamation

EKLUTNA PROJECT, ALASKA

WITHDRAWAL OF PUBLIC LANDS

APRIL 4, 1952.

Recent project investigations have disclosed that the land described below is required for substation purposes in connection with the Eklutna Project. In view thereof it is recommended that, subject to valid existing rights and to existing withdrawals, the following described land be withdrawn from all forms of appropriation under the public land laws, including the mining and mineral leasing laws, as authorized by section 3 of the act of July 31, 1950 (Public Law 628, 81st Congress, 2d Session), and reserved for the Eklutna Project, Alaska.

SEWARD MERIDIAN, ALASKA

T. 13 N., R. 3 W.,
Sec. 27, NE¼NE¼NW¼.

The above area aggregates 10 acres.

G. W. LINEWEAVER,
Acting Commissioner.

I concur: April 18, 1952.

WILLIAM ZIMMERMAN, Jr.,
Associate Director,
Bureau of Land Management.

Approved and land above described withdrawn as recommended: May 1, 1952.

OSCAR L. CHAPMAN,
Secretary of the Interior.

Notice for Filing Objections to Order Withdrawing Public Lands for the Eklutna Project, Alaska

Notice is hereby given that for a period of 30 days from the date of publication of this notice, persons having cause to object to the terms of the above order withdrawing certain public lands in the Territory of Alaska, for use in connection with the Anchorage substation of the Eklutna Project may present their objections to the Secretary of the Interior. Such objections should be in writing, should be addressed to the Secretary of the Interior, and should be filed in duplicate in the Department of the Interior, Washington 25, D. C.

In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where the proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, notice of the determination by the Secretary as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 21, 1952.

[F. R. Doc. 52-5947; Filed, May 29, 1952; 8:46 a. m.]

Office of the Secretary

ARKANSAS

NOTICE OF FILING OBJECTIONS TO ORDER WITHDRAWING PUBLIC LANDS FOR FOREST-MANAGEMENT PURPOSES [1]

1. For a period of 30 days from the date of publication of the above-entitled order, persons having cause to object to the terms thereof may present their objections to the Secretary of the Interior. Such objections should be in writing, should be addressed to the Secretary of the Interior, and should be filed in duplicate in the Department of the Interior, Washington 25, D. C. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where the proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination by the Secretary as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

2. Any application for entry or disposal of the public lands not authorized by said order presented at or mailed to the district office of the Bureau of Land Management, Department of the Interior, at Russellville, Arkansas, or any other office of that Bureau, will be marked "Application refused and returned because land has been withdrawn from all forms of appropriation under the public-land laws, except the mining and mineral-leasing laws, and laws authorizing the disposal of timber and other materials," and the application and any money tendered therewith will be returned to the applicant, if present, or to the post-office address given in his application.

Any application for lease of such lands under the mineral-leasing laws shall be filed with the Bureau of Land Management, Washington 25, D. C. Any application for the acquisition of timber or other materials on such lands may be filed with the District Office, Bureau of Land Management, Russellville, Arkansas.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 23, 1952.

[F. R. Doc. 52-5944; Filed, May 29, 1952; 8:46 a. m.]

[Order 2690]

UNDER SECRETARY

TRANSFER OF SECRETARIAL FUNCTIONS RELATING TO PUBLIC LAND MANAGEMENT

MAY 23, 1952.

SECTION 1. Effective at once, the Under Secretary, in addition to his other duties, is authorized to discharge the duties and perform the functions assigned to the assistant Secretary for Public Land Management by Order No. 2600, December 1, 1950.

SEC. 2. Order No. 2687 is hereby revoked.

(Reorganization Plan No. 3 of 1950, 15 F. R. 3174)

OSCAR L. CHAPMAN,
Secretary of the Interior.

[F. R. Doc. 52-5949; Filed, May 29, 1952; 8:46 a. m.]

[1] See Title 43, Chapter I, App., PLO 834, *supra.*

DEPARTMENT OF AGRICULTURE

Office of the Secretary

SALE OF MINERAL INTERESTS: REVISED AREA DESIGNATIONS

ARKANSAS

Schedule A, entitled Fair Market Value Areas, and Schedule B, entitled One Dollar Areas, accompanying the Secretary's orders dated June 25, 1951, and April 21, 1952 (16 F. R. 6318, 17 F. R. 3689), are amended as follows:

In Schedule A, under Arkansas, in alphabetical order, add the counties "Cross" and "St. Francis."

In Schedule B, under Arkansas, delete the counties "Cross" and "St. Francis."

(Sec. 3, Pub. Law 760, 81st Cong.)

Done at Washington, D. C., this 27th day of May 1952.

[SEAL] C. J. McCORMICK,
Acting Secretary of Agriculture.

[F. R. Doc. 52-6027; Filed, May 28, 1952; 4:05 p. m.]

DEPARTMENT OF COMMERCE

Federal Maritime Board

[No. S-34]

BLOOMFIELD STEAMSHIP CO.

NOTICE OF PREHEARING CONFERENCE

Bloomfield Steamship Company; application for operating-differential subsidy (Trade Route No. 13, Service 1, and Trade Route No. 21, Service 5) under Title VI, Merchant Marine Act, 1936.

Notice is hereby given that a prehearing conference will be held in Room 4823, Department of Commerce Building, Washington, D. C., on June 10, 1952, at 10 o'clock a. m., e. d. s. t., before Examiner F. J. Horan, upon an application dated April 16, 1952, of Bloomfield Steamship Company, under Title VI of the Merchant Marine Act, 1936, as amended, for financial aid in the operation of vessels in the foreign commerce of the United States on Trade Route No. 13, Service 1 (U. S. South Atlantic and Gulf ports-Mediterranean Sea, Black Sea, Atlantic Spain, Portugal, Atlantic Morocco), and Trade Route No. 21, Service 5 (U. S. Gulf ports-United Kingdom, Continental Europe, Scandinavian and Baltic ports), as described in the United States Maritime Commission's report on Essential Foreign Trade Routes of the American Merchant Marine, issued May 1949.

The prehearing conference will be conducted under § 201.59 of the Board's rules of procedure, for the purpose of considering:

(1) Simplification of the issues;

(2) The necessity or desirability of amendments to the pleadings;

(3) The possibility of obtaining admission of fact and of documents which will avoid unnecessary proof;

(4) Limitations on the number of witnesses;

(5) The procedure at the hearing;

(6) The distribution to the parties prior to the hearing of written testimony and exhibits;

(7) Consolidation of the examination of witnesses by counsel; and

(8) Such other matters as may aid in the disposition of the proceeding.

Also at the prehearing conference a date will be set for the hearing to receive evidence relative to determinations which the Board is required, after hearing, to make pursuant to the provisions of section 605 (c) of the Merchant Marine Act, 1936, as amended. The hearing to receive such evidence will be conducted in conformity with the Board's rules of procedure (12 F. R. 6076), and a recommended decision will be made by the examiner.

All persons (including individuals, corporations, associations, firms, partnerships, and public bodies) desiring to participate in the prehearing conference and in the proceeding should notify the Board on or before June 9, 1952, and should file petitions promptly for leave to intervene in accordance with § 201.81 of the Board's rules of procedure.

Dated: May 28, 1952.

By order of the Federal Maritime Board.

[SEAL] A. J. WILLIAMS,
Secretary.

[F. R. Doc. 52-6041; Filed, May 29, 1952; 8:56 a. m.]

National Production Authority

[Suspension Order 11, Docket No. 11]

MEBA ZIPPER MANUFACTURING CO.

SUSPENSION ORDER

In the matter of Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, respondent.

A hearing having been held in the above entitled matter on the 8th day of May 1952, before George E. Brower, a Hearing Commissioner of the National Production Authority, on a statement of charges made by the General Counsel, National Production Authority, in accordance with the National Production Authority General Administrative Order 16-06 (16 F. R. 8628) dated July 21, 1951, and Implementation 1 to National Production Authority General Administrative Order 16-06 (16 F. R. 8799); and

The respondent, Irving A. Mehler, proprietor and manager of the Meba Zipper Manufacturing Company, having been duly apprised of the specific violations charged and the administrative action which may be taken, and having been fully informed of the rules and procedures which cover these proceedings; and

The National Production Authority being represented by Herbert L. Saunders, Assistant Regional Counsel, and the respondent being represented by William Joachim and Jacob S. Spiro, Attorneys at Law; and

The respondent having filed an answer denying the allegations contained in each and every charge in said statement of charges and alleging separate and distinct defenses thereto; and

The respondent at the hearing aforesaid having admitted to the use of 15,000 pounds of aluminum in excess of a quantity permitted during the period from December 1, 1950, to June 30, 1951, and 40,000 pounds of brass mill products in excess of the quantity permitted during the period from January 1, 1951, to June 30, 1951, but denying wilfulness in the commission of the aforementioned acts, it is hereby determined:

Findings of fact: 1. The respondent, Irving A. Mehler, is the proprietor and manager of the Meba Zipper Manufacturing Company with offices and manufacturing facilities located at 257 West 17th Street, Borough of Manhattan, City and State of New York.

2. The respondent, Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, uses and has used aluminum and brass mill products in the manufacture of zipper chain.

3. The respondent, Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, during the months of December 1950, January, February, March, 1951, and during the second calendar quarter of 1951 used in the manufacture of zipper chain 15,000 pounds of aluminum more than was authorized or permitted by the provisions of National Production Authority Order M-7 dated November 13, 1950, as amended.

4. The respondent, Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, during the months of January, February, March, April, May, and June, 1951, used in the manufacture of zipper chain 40,000 pounds of brass mill products more than was authorized or permitted by the provisions of National Production Authority Order M-12 dated November 29, 1950, as amended.

5. There is no evidence establishing wilfulness in the commission of the aforementioned violations.

Conclusion: During the period beginning December 1, 1950, and ending June 30, 1951, the respondent, Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, violated the provisions of the National Production Authority regulations, orders, and directives as hereinabove cited by using 15,000 pounds of aluminum and 40,000 pounds of brass mill products more than was authorized or permitted by the said provisions. There is no evidence establishing that the violations of the National Production Authority regulations, orders, and directives were committed wilfully, and it is concluded and there were no wilful acts.

In order to correct the unauthorized use of aluminum and brass mill products occasioned by the violations found herein, and in order to prevent future violations of the National Production Authority regulations, orders, and directives by the respondent,

It is accordingly ordered:

1. That commencing July 1, 1952, the acquisition and use of aluminum which may be hereinafter authorized to Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, his successors and assigns, by allotments, allocations, or orders issued by the National Production Authority, be and the same are hereby reduced by 50 percent until such time as the allotments and allocations of

aluminum so withdrawn and withheld shall total 15,000 pounds.

2. That commencing July 1, 1952, the acquisition and use of brass mill products which may then hereinafter be authorized to Irving A. Mehler, doing business as Meba Zipper Manufacturing Company, his successors and assigns, by allotments, allocations, or orders issued by the National Production Authority be, and the same are hereby reduced by 50 percent until such time as the allotments and allocations of brass mill products so withdrawn and withheld shall total 40,000 pounds.

Issued this 16th day of May 1952.

THE NATIONAL PRODUCTION AUTHORITY,
By GEORGE E. BROWER,
Hearing Commissioner.

[F. R. Doc. 52-6079; Filed, May 29, 1952; 11:18 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 2539, et al.]

NORTHWEST AIRLINES, INC.; TEMPORARY MAIL RATE FOR TRANS-PACIFIC OPERATIONS

NOTICE OF HEARING

In the matter of the compensation from the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, of Northwest Airlines, Inc., in its Trans-Pacific operations, for the period beginning January 1, 1952.

Notice is hereby given, pursuant to the provisions of the Civil Aeronautics Act of 1938, as amended, that hearing on the Order To Show Cause, E-6077, in the above-entitled proceeding is assigned to be held on June 9, 1952, at 10:00 a. m., e. d. t., in Room E-210, Temporary Building No. 5, Sixteenth Street and Constitution Avenue NW., Washington, D. C., before Examiner Walter W. Bryan.

Dated at Washington, D. C., May 27, 1952.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 52-6002; Filed, May 29, 1952; 8:56 a. m.]

ECONOMIC STABILIZATION AGENCY

Office of Price Stabilization

[Region III, Redelegation of Authority No. 29, Revision 1]

DIRECTORS OF DISTRICT OFFICES, PHILADELPHIA, REGION III

REDELEGATION OF AUTHORITY TO PROCESS REPORTS AND APPLICATIONS FOR CEILING PRICES IN CONFORMITY WITH THE COMMODITY CREDIT CORPORATION PRICE SUPPORT PROGRAM UNDER GOR 26

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. III, pursuant to Delegation of Authority No. 58, Revision 1 (17 F. R. 4192), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to each of the District Directors of the Office of Price Stabilization in Region III:

(a) To process reports filed pursuant to section 4 of GOR 26 and to approve or disapprove such reports including the ceiling prices stated therein or request further information pertaining thereto, and

(b) To process applications for ceiling prices submitted by applicants whose main places of business are located within his district pursuant to section 3 (b) (3) of GOR 26, and to approve or disapprove the proposed ceiling prices, establish different ceiling prices, or request further information concerning the applications.

This Revision 1 to Redelegation of Authority No. 29, shall take effect as of May 14, 1952.

JOSEPH J. MCBRYAN,
Director of Regional Office No. III

MAY 27, 1952.

[F. R. Doc. 52-5985; Filed, May 27, 1952; 4:43 p. m.]

[Region IV, Redelegation of Authority No. 4, Revision 1]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO ACT ON APPLICATIONS FOR ADJUSTMENT OF PRICES RELATING TO ICE

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 14, Revision 1 (17 F. R. 3471), this Revision 1 to Region IV Redelegation of Authority No. 4 (16 F. R. 12446) is hereby issued.

1. *Authority to act under sections 1-5 inclusive of GCPR, SR 45, Revision 1.* Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to act on all applications for adjustment under the provisions of sections 1-5 inclusive of GCPR, SR 45, Revision 1, as amended.

This Revision 1 to Redelegation of Authority No. 4 shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5986; Filed, May 27, 1952; 4:43 p. m.]

[Region-IV, Redelegation of Authority No. 13, Revision 1]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO PROCESS REPORTS OF PROPOSED PRICE-DETERMINING METHODS UNDER SECTION 5, AS AMENDED, AND TO ACT UNDER SECTION 17 (b) OF CPR 100

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 37, Revision 1 (17 F. R. 3563), this Revision 1 to Region IV Redelegation of Authority No. 13 (17 F. R. 1198) is hereby issued.

1. *Authority to act under section 5, as amended, of CPR 100.* Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to approve, pursuant to section 5, as amended, of CPR 100, a price-determining method for sales of new complete farm equipment, or new farm equipment repair parts proposed by a seller under CPR 100, disapprove such a proposed price-determining method, establish a different price-determining method, or request further information concerning such a price-determining method.

2. *Authority to act under section 17 (b) of CPR 100.* Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to issue orders, pursuant to section 17 (b) of CPR 100, fixing ceiling prices for any person subject to this Regulation who fails to keep the records, file the reports and establish ceiling prices as required therein, or who fails to apply to the Office of Price Stabilization for the establishment of a ceiling price, if he is required to do so.

This Revision 1 to Redelegation of Authority No. 13 shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5987; Filed, May 27, 1952; 4:43 p. m.]

[Region IV, Redelegation of Authority No. 30, Revision 1]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO PROCESS REPORTS AND APPLICATIONS FOR CEILING PRICES IN CONFORMITY WITH THE COMMODITY CREDIT CORPORATION PRICE SUPPORT PROGRAM UNDER GOR 26

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 58, Revision 1 (17 F. R. 4192), this Revision 1 to Region IV Redelegation of Authority No. 30 (17 F. R. 3756) is hereby issued.

1. Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV:

(a) To process reports filed pursuant to section 4 of GOR 26 and to approve or disapprove such reports including the ceiling prices stated therein or request further information pertaining thereto, and

(b) To process applications for ceiling prices submitted by applicants whose main places of business are located within his region pursuant to section 3 (b) (3) of GOR 26, and to approve or disapprove the proposed ceiling prices, establish different ceiling prices, or request further information concerning the applications.

This Revision 1 to Redelegation of Authority No. 30 shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5988; Filed, May 27, 1952; 4:43 p. m.]

[Region IV, Redelegation of Authority No. 32]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO ACT UNDER CPR 135—BAKERS, WHOLESALE AND RETAIL DISTRIBUTORS OF FROZEN AND PERISHABLE BAKERY ITEMS

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 60 (17 F. R. 3220), this Redelegation of Authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV:

(a) To fix ceiling prices upon application under sections 2.4 and 3.3 of Ceiling Price Regulation 135.

(b) To adjust ceiling prices under section 2.12 of Ceiling Price Regulation 135.

(c) To request, under section 4.3, further information concerning any ceiling price reported pursuant to the provisions of Ceiling Price Regulation 135, or concerning any application for a ceiling price made pursuant to the provisions of Ceiling Price Regulation 135.

(d) To disapprove or reduce at any time, under section 4.3, ceiling prices determined, reported or proposed under Ceiling Price Regulation 135.

This Redelegation of Authority shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5989; Filed, May 27, 1952; 4:44 p. m.]

[Region IV, Redelegation of Authority No. 33]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO ACT ON FINAL PRICING METHOD AND ADJUSTMENT PROVISIONS OF CPR 13

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 62 (17 F. R. 3258), this Redelegation of Authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV.

(a) To request of any seller of petroleum products who is covered by Ceiling Price Regulation 13 further information regarding such seller's filing of a price under the provisions of sections 13 and 18 of Ceiling Price Regulation 13, or regarding his application for adjustment under the provisions of sections 16 and 17 of Ceiling Price Regulation 13;

(b) To grant, revise or deny applications for adjustment made under the provisions of sections 16 and 17 of Ceiling Price Regulation 13;

(c) To approve, disapprove or revise ceiling prices determined under the provisions of sections 13 and 18 of Ceiling Price Regulation 13.

This redelegation of authority shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5990; Filed, May 27, 1952; 4:44 p. m.]

[Region IV, Redelegation of Authority No. 34]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO MAKE EXEMPT PURCHASES OF LIVE CATTLE UNDER SECTION 6 OF CPR 23

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 63 (17 F. R. 3471), this Redelegation of Authority is hereby issued.

1. *Authority to act under section 6 of CPR 23.* Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to take appropriate action under section 6 of CPR 23. All actions taken by field offices under section 6 of CPR 23, previous to this authority, are hereby confirmed and validated.

This redelegation of authority shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5991; Filed, May 27, 1952; 4:44 p. m.]

[Region IV, Redelegation of Authority No. 35]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO ISSUE ORDERS ESTABLISHING PRICE FACTORS, EXCHANGE ALLOWANCES, PRICE DIFFERENTIALS, PRICE DETERMINING METHODS, UNDER CPR 139

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 64 (17 F. R. 3617), this Redelegation of Authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to issue orders establishing price factors, exchange allowances, and price differentials under section 27, exchange allowances under section 26 (c), price determining methods under section 34, and price factors and price differentials under section 46 of Ceiling Price Regulation 139.

This redelegation of authority shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 29, 1952.

[F. R. Doc. 52-5992; Filed, May 27, 1952; 4:44 p. m.]

[Region IV, Redelegation of Authority No. 36]

DIRECTORS OF DISTRICT OFFICES, RICHMOND, REGION IV

REDELEGATION OF AUTHORITY TO ACT UNDER SECTION 6 OF CPR 31

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. IV, pursuant to Delegation of Authority No. 66 (17 F. R. 4193), this Redelegation of Authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IV, to receive and examine reports filed under the provisions of section 6 of Ceiling Price Regulation 31; to ascertain whether such reports conform to requirements of Ceiling Price Regulation 31; and to take all steps necessary to assure that such reports are corrected in accordance with the provisions of section 6 of Ceiling Price Regulation 31.

This redelegation of authority shall take effect on June 9, 1952.

W. F. BAILEY,
Director of Regional Office No. IV.

MAY 27, 1952.

[F. R. Doc. 52-5993; Filed, May 27, 1952; 4:44 p. m.]

[Region V, Redelegation of Authority No. 33]

DIRECTORS OF DISTRICT OFFICES, ATLANTA, REGION V

REDELEGATION OF AUTHORITY TO ACT UNDER SECTION 6 OF CPR 31

By virtue of the authority vested in me as Director of the Regional Office of the Office of Price Stabilization, Region V, pursuant to Delegation of Authority 66 (17 F. R. 4193), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to the District Directors, Office of Price Stabilization, Region V, to receive and examine reports filed under the provisions of section 6 of Ceiling Price Regulation 31; to ascertain whether such reports conform to requirements of Ceiling Price Regulation 31; and to take all steps necessary to assure that such reports are corrected in accordance with the provisions of section 6 of Ceiling Price Regulation 31.

This redelegation of authority shall take effect as of May 16, 1952.

GEORGE D. PATTERSON, Jr.,
Director of Regional Office V.

MAY 27, 1952.

[F. R. Doc. 52-5994; Filed, May 27, 1952; 4:45 p. m.]

[Region V, Redelegation of Authority No. 34]

DIRECTORS OF DISTRICT OFFICES, ATLANTA, REGION V

REDELEGATION OF AUTHORITY TO PROCESS REPORTS AND APPLICATIONS FOR CEILING PRICES IN CONFORMITY WITH THE COMMODITY CREDIT CORPORATION PRICE SUPPORT PROGRAM UNDER GOR 26

By virtue of the authority vested in me as Director of the Regional Office of the Office of Price Stabilization, Region V, pursuant to Delegation of Authority 58, Revision 1 (17 F. R. 4192), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to the District Directors, Office of Price Stabilization, Region V, as follows:

(a) To process reports filed pursuant to section 4 of GOR 26 and to approve or disapprove such reports including the ceiling prices stated therein or request further information pertaining thereto, and

(b) To process applications for ceiling prices submitted by applicants whose main places of business are located within their respective districts pursuant to section 3 (b) (3) of GOR 26, and to approve or disapprove the proposed ceiling prices, establish different ceiling prices, or request further information concerning the applications.

This redelegation of authority shall take effect as of May 16, 1952.

GEORGE D. PATTERSON, Jr.,
Director of Regional Office V.

MAY 27, 1952.

[F. R. Doc. 52-5995; Filed, May 27, 1952; 4:45 p. m.]

[Region XI, Redelegation of Authority No. 42]

DIRECTORS OF ALL DISTRICT OFFICES, DENVER, REGION XI

REDELEGATION OF AUTHORITY TO ACT ON APPLICATIONS FOR ADJUSTMENT OF PRICES RELATING TO ICE

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region XI, pursuant to Delegation of Authority 14, Revision 1 (17 F. R. 3471), this redelegation of authority is hereby issued.

1. *Authority to act under sections 1–5 inclusive of GCPR, SR 45, Revision 1.* Authority is hereby redelegated to each of the Directors of the District Offices of the Office of Price Stabilization in Region XI to act on all applications for adjustment under the provisions of sections 1–5 inclusive of GCPR, SR 45, Revision 1, as amended.

2. This redelegation of authority supersedes Redelegations of Authority Nos. 4, 8, and 12.

This redelegation of authority shall take effect as of January 30, 1952.

GEORGE F. ROCK,
Regional Director, Region XI.

MAY 27, 1952.

[F. R. Doc. 52-5996; Filed, May 27, 1952; 4:45 p. m.]

[Delegation of Authority 5, Amdt. 1 to Revision 1]

DIRECTORS OF THE REGIONAL OFFICES

DELEGATION OF AUTHORITY TO ACT UNDER SECTIONS 39A AND 39C OF CPR 7, AS AMENDED

By virtue of the authority vested in me as Director of Price Stabilization pursuant to the Defense Production Act of 1950, as amended (64 Stat. 798; 65 Stat. 131), Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2, as amended (16 F. R. 738, 11626), this amendment to Delegation of Authority 5, Revision 1 (17 F. R. 98) is hereby issued.

Paragraph 1 of Delegation of Authority 5, Revision 1, is amended to read as follows:

1. Authority is hereby delegated to the Directors of the Regional Offices of the Office of Price Stabilization to act under sections 39a, 39b, 39c, 39d, 39e, 39f and 39g of Ceiling Price Regulation 7, as amended.

This amendment shall take effect on June 3, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6056; Filed, May 29, 1952; 10:49 a. m.]

[Delegation of Authority No. 68]

DIRECTORS OF THE REGIONAL OFFICES

DELEGATION OF AUTHORITY TO ACT UNDER CPR 24, AS AMENDED

By virtue of the authority vested in me as Director of the Office of Price Stabilization, pursuant to the Defense Production Act of 1950, as amended (64 Stat. 798, 803; 65 Stat. 131), Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2, as amended (16 F. R. 738, 11626) this delegation of authority is hereby issued.

1. Authority is hereby delegated to the Directors of the Regional Offices, Office of Price Stabilization, to act under sections 15, 21 (a), 21 (b), 42 (a), 42 (b), 46 (c), 49A (b), 49A (c), 49B (a), 49B (b), and 50 (u) of CPR 24, as amended.

2. The authority hereby delegated may be redelegated to the Directors of District Offices, Office of Price Stabilization.

This delegation of authority shall take effect on May 31, 1952.

ELLIS ARNALL,
Director of Price Stabilization.

MAY 29, 1952.

[F. R. Doc. 52-6057; Filed, May 29, 1952; 10:49 a. m.]

DEFENSE MATERIALS PROCUREMENT AGENCY

[Delegation No. 12]

REGIONAL DIRECTOR, REGION 1

DELEGATION OF AUTHORITY TO PERFORM VARIOUS OPERATING FUNCTIONS

Pursuant to the authority vested in me as Defense Materials Procurement Administrator by Executive Order 10281 of August 28, 1951 (16 F. R. 8789) and the Defense Production Act of 1950, as amended (Pub. Law 774, 81st Cong., and Pub. Laws 69 and 96, 82d Cong.) and other applicable law, I hereby delegate to the Regional Director, Defense Materials Procurement Agency, Region 1, Washington, D. C., authority to perform operating functions as set forth below. The authority delegated herein shall be exercised in accordance with such applicable laws and regulations, and such administrative policies, procedures and controls as are effective on the date of exercise of the authority: *Provided, however,* That failure to comply with administrative procedures and controls shall not impair legal authority exercised thereunder.

1. *General provisions*—a. *Redelegation.* Except where precluded by law, any officer or employee delegated authority hereunder may redelegate, and authorize the successive redelegation of, any such authority: *Provided, however,* That such redelegation shall conform to the existing administrative procedures and directives of the Defense Materials Procurement Agency.

b. *Exercise of authority during absence or incapacity.* Any officer or employee empowered to act for an officer or employee delegated authority hereunder may exercise such authority during the latter's absence or incapacity.

c. *Execution and delivery of instruments and acceptance of security.* Any authority delegated herein shall include the authority to take any action incidental to the exercise of such authority, such as but not limited to the following:

(1) To execute, acknowledge, and deliver appropriate written documents or instruments, including contracts and receipts.

(2) To perform any other acts necessary to effectuate the transfer of title to property.

2. *Procurement.* To negotiate purchases and contracts in accordance with section 303 of the Defense Production Act of 1950, as amended by the Defense Production Act Amendment of 1951, (Pub. Law 774, 81st Cong.; Pub. Law 96, 82d Cong.).

3. *Development.* a. To allocate authorized commodity program requirements within the region.

b. To make preliminary approval or disapproval of project applications and if favorably considered, to investigate and examine such projects.

c. To negotiate and execute the contracts on all projects within the region upon clearance from the Defense Materials Procurement Administrator, Washington.

d. To carry out any follow-up, checks, or investigations relating to executed contracts.

This delegation shall be effective as of April 16, 1952.

Dated: May 23, 1952.

JESS LARSON,
Defense Materials Procurement Administrator.

[F. R. Doc. 52-5978; Filed, May 29, 1952; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-1115]

COLORADO INTERSTATE GAS CO.

ORDER OMITTING INTERMEDIATE DECISION PROCEDURE AND FIXING DATE FOR ORAL ARGUMENT

MAY 23, 1952.

On April 9, 1952, Staff Counsel filed a motion, pursuant to § 1.30 of the Commission's rules of practice and procedure, that the intermediate decision procedure be omitted in this proceeding, or, in the alternative, the Commission issue a tentative decision.

On April 17, 1952, counsel for Colorado Interstate Gas Company (Colorado Interstate) filed its answer opposing said motion of Staff Counsel.

The record shows that this proceeding was initiated pursuant to the authority of the Natural Gas Act on the Commission's own motion, by order of September 2, 1948, instituting an investigation of the rates of Colorado Interstate [1] for the reason that it appeared to the Commission on "the basis of data available to the Commission, the rates, charges, services or classification or sale of natural gas subject to the jurisdiction of the Commission by Canadian River and Colorado Interstate may be unjust, unreasonable, unduly discriminatory or preferential." Staff studies based on Colorado Interstate's and Canadian River's Annual Reports to the Commission (FPC Form No. 2) showed excess revenues above a fair rate of return of $2,000,000 for the two companies.

Subsequent to the institution of the rate proceeding and after the Staff had completed its studies of the records and operations of Colorado Interstate and Canadian River in preparation for a hearing, Colorado Interstate and Canadian River filed on February 13, 1950, at Docket No. G-1326, a joint application, as amended, on April 4, 1950, for a certificate of public convenience and necessity authorizing (1) Colorado Interstate to acquire by merger the properties of Canadian River and to merge Canadian River into Colorado Interstate and (2) to construct and operate certain natural-gas pipeline facilities. By order of July 20, 1950, the Commission authorized the construction and operation of the natural-gas pipeline facilities referred to above, but reopened the hearing for purpose of determining certain aspects of the proposed merger. By opinion and order of February 28, 1951, a certificate was issued authorizing the merger.

In the meantime hearing on the instant rate proceeding was deferred pending the disposition of the merger proceedings at Docket No. G-1326. The Commission, therefore, in its opinion of March 16, 1951, authorizing the merger stated (Opinion No. 209 (mimeographed), page 23):

> Now that the acquisition by Colorado of the Canadian properties has been authorized and the future pattern of operation settled, it is appropriate that our rate investigation be brought to a speedy conclusion.

Accordingly, by order of March 16, 1951, the Commission fixed August 1, 1951, as the date of hearing in this proceeding.

On July 12, 1951, Colorado Interstate and Canadian River filed a motion to continue the hearing from August 1, 1951, to February 1, 1952. By order of July 25, 1951, the Commission granted Colorado Interstate and Canadian River a continuance of the hearing in this proceeding from August 1, 1951, to October 1, 1951.

Hearing in this matter commenced on October 1, 1951, with Staff's presentation of its evidence. At the conclusion of the Staff's evidence on October 3, 1951, counsel for Colorado Interstate and Canadian River requested and received a continuance until November 6, 1951, to prepare for cross-examination. On November 2, 1951, Colorado Interstate and Canadian River filed (1) a motion for a finding that Staff has failed to meet the burden of proof and (2) a motion for continuance of the hearings to November 14, 1951. After the Staff had introduced further testimony on November 8, 1951, the Presiding Examiner fixed November 27, 1951, for the reconvening of the hearing to enable Colorado Interstate and Canadian River to cross-examine the Staff's witnesses and to introduce its own case-in-chief. Colorado Interstate and Canadian River, however, on November 15, 1951, filed a second motion for a finding that the Staff had failed to sustain the burden of proof. By notice dated November 21, 1951, the Presiding Examiner continued the hearing to a date to be fixed by further order of the Commission because of the pendency of the second motion filed by the companies. On November 30, 1951, the Commission reserved decision on the second motion pending conclusion of the hearing and finding that "it would be in the public interest to conclude the hearing in this matter with all reasonable dispatch," ordered the hearing to reconvene on December 10, 1951. On December 6, 1951, Counsel for the companies filed a motion to continue the hearing scheduled for December 10, 1951, to a date to be fixed by further order of the Commission. By notice dated December 6, 1951, this motion for continuance was denied.

Beginning on December 10, 1951, and concluding on December 17, 1951, the companies cross-examined Staff's witnesses and introduced their own case-in-chief. The hearing was then continued to February 1, 1952, extended to February 6, 1952, to enable Staff to cross-examine the companies' witnesses and to introduce its rebuttal. Thereafter, to enable Colorado Interstate to prepare for cross-examination of Staff rebuttal, the hearing was recessed to March 25, 1952, on order on Staff appeal taken from the ruling of the Presiding Examiner. After cross-examination of Staff introduction of further testimony by Colorado Interstate and cross-examination thereof by Staff, the hearing concluded on April 4, 1952.

This proceeding has been in progress for a regrettably long period of time, responsibility for which fact is not attributable to any one particular party. In view of the fact that this Commission has no power of reparation with respect to past rates, which may or may not prove to be excessive, it appears that the record in this proceeding presents the kind of situation requiring the omission of the intermediate decision procedure as provided in the Administrative Procedure Act.

The Commission finds: Based on the foregoing facts taken together, due and timely execution of its functions imperatively and unavoidably requires the Commission to omit the intermediate decision procedure in this proceeding.

The Commission orders:

(A) The intermediate decision procedure be and the same is hereby omitted in this proceeding, and the Presiding Examiner is hereby directed to certify the record to the Commission.

(B) Main briefs and reply briefs shall be filed on the dates heretofore fixed by the Presiding Examiner.

(C) Oral argument be had before the Commission on June 9, 1952, at 10:00 a. m., e. d. s. t., in the Hearing Room, Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters and issues involved in this proceeding.

(D) Parties in this proceeding who intend to participate in the oral argument shall so notify the Secretary of the Commission on or before June 2, 1952, and of the time requested for presentation of their argument.

Date of issuance: May 26, 1952.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-5958; Filed, May 29, 1952; 8:48 a. m.]

[Docket No. G-1935]

MORGANFIELD NATURAL GAS CO.

NOTICE OF APPLICATION

MAY 26, 1952.

Take notice that on April 10, 1952, Morganfield Natural Gas Company (Applicant), a Kentucky corporation with its principal place of business at Morganfield, Kentucky, filed an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act authorizing the construction and operation of certain natural-gas transmission pipeline facilities hereinafter described.

Applicant proposes to construct approximately 31 miles of 6-inch and 4-inch transmission pipeline extending from a point of interconnection with a proposed 26-inch loop line of Texas Gas Transmission Corporation (Texas Gas) near Providence, Kentucky, northwardly through the cities of Providence and Sturgis to the City of Morganfield, all located in Kentucky, together with appurtenant facilities.

By means of such facilities, Applicant proposes to transport gas to be obtained

[1] The order of September 2, 1948 included the investigation of the rates of Canadian River Gas Company, which since January 1, 1952, has been merged with Colorado Interstate.

from Texas Gas for delivery and sale at wholesale to the cities of Providence and Sturgis, and for delivery and sale at retail in the City of Morganfield and the Kentucky communities of Clay, Diamond, Wheatcroft, and Sullivan as well as to rural consumers along the transmission line. Applicant has intervened in the proceeding upon the application of Texas Gas at Docket No. G–1847 requesting an allocation of natural gas.

Applicant estimates that its annual requirements will increase from 165,100 Mcf in the first year to 374,400 Mcf in the fifth year of operation. Correspondingly, it estimates peak-day requirements of 1,567 Mcf in the first year and 3,636 Mcf in the fifth year.

The estimated total over-all capital cost of the proposed lateral transmission pipeline is approximately $580,000, and the estimated total over-all capital cost of all the proposed facilities is approximately $1,075,000. Applicant proposes to finance such construction by the issuance and sale of bonds and preferred and common stock.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before the 13th day of June 1952. The application is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 52-5957; Filed, May 29, 1952; 8:47 a. m.]

GENERAL SERVICES ADMINISTRATION

SECRETARY OF DEFENSE

DELEGATION OF AUTHORITY WITH RESPECT TO APPLICATION OF UTAH POWER & LIGHT COMPANY FOR APPROVAL OF INCREASED ELECTRIC SERVICE RATES; UTAH PSC, CASE NO. 3780

1. Pursuant to the provisions of sections 201 (a) (4) and 205 (d) and (e) of the Federal Property and Administrative Services Act of 1949, 63 Stat. 377, as amended, authority to represent the interests of the executive agencies of the Federal Government in the matter of Application of Utah Power & Light Company for Approval of Increased Electric Service Rates, before the Public Service Commission of Utah, Case No. 3780, is hereby delegated to the Secretary of Defense.

2. The Secretary of Defense is hereby authorized to redelegate any of the authority contained herein to any officer, official or employee of the Department of Defense.

3. The authority conferred herein shall be exercised in accordance with the policies, procedures and controls prescribed by the General Services Administration and shall further be exercised in cooperation with the responsible officers, officials and employees of such Administration.

4. This delegation of authority shall be effective as of May 13, 1952.

Dated: May 23, 1952.

JESS LARSON,
Administrator.

[F. R. Doc. 52-5976; Filed, May 29, 1952; 8:51 a. m.]

SECRETARY OF THE INTERIOR

DELEGATION OF AUTHORITY WITH RESPECT TO NEGOTIATING CONTRACT FOR ENGINEERING SERVICES

1. Pursuant to the Federal Property and Administrative Services Act of 1949, as amended, herein called the act, authority is hereby delegated to the Secretary of the Interior to negotiate, without advertising, under section 302 (c) (2) and (4) of the act, a contract in an amount not to exceed $5,000 for an engineering study and report on existing power contracts between Southwestern Power Administration and users of electric power in the area served by that Administration.

2. The authority delegated herein may be redelegated to any officer or employee of the Department of the Interior.

Dated: May 23, 1952.

JESS LARSON,
Administrator.

[F. R. Doc. 52-5977; Filed, May 29, 1952; 8:51 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File Nos. 54–139, 59–12]

ELECTRIC POWER & LIGHT CORP. ET AL.

SUPPLEMENTAL ORDER CONCERNING FEES AND EXPENSES

MAY 23, 1952.

In the matter of Electric Power & Light Corporation, File No. 54–139; Electric Bond and Share Company, and Electric Power & Light Corporation, et al., respondents, File No. 59–12.

The Commission, on April 21, 1952, having issued its findings and opinion and order concerning payments of fees and expenses in the above matter; and

It appearing to the Commission that Robert I. Herzog and C. Perry King, members of the $7 and $6 Preferred Stock Committee, had previously made application for compensation for services in that capacity in the aggregate amount of $5,000; and

Said order having authorized payment to C. Perry King for all his services in the amount of $2,000; and

The Commission, upon examination of the record herein, being of the view that $1,000 would be appropriate compensation to Robert I. Herzog for his services in the matter:

It is ordered, That payment by Electric Power & Light Corporation to Robert I. Herzog in the amount of $1,000 be, and hereby is, approved, and Electric Power & Light Corporation be, and hereby is, directed to make payment of such amount.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 52-5950; Filed, May 29, 1952; 8:46 a. m.]

[File No. 70-2436]

ELECTRIC BOND AND SHARE CO.

ORDER GRANTING RECITALS

MAY 26, 1952.

The Commission, on August 24, 1950, having approved the acquisition by Electric Bond and Share Company ("Bond and Share"), a registered holding company, of shares of the common stock of The Southern Company in exchange for Bond and Share's holdings of the common stock of Birmingham Electric Company, subject to the condition that Bond and Share should within one year from the date of such acquisition divest itself of the stock of The Southern Company so acquired; and

Bond and Share having notified the Commission, pursuant to Rule U-44 (c) of the rules and regulations promulgated under the act, of declaration of a dividend on the common stock of Bond and Share payable June 25, 1952 to stockholders of record May 22, 1952, in shares of the common stock of The Southern Company at the rate of 4 shares of The Southern Company stock for each 100 shares of Bond and Share common stock held, requiring an aggregate of 210,014 shares of the common stock of The Southern Company for this purpose; and

The Commission having notified Bond and Share that no declaration need be filed with respect to this matter; and

Bond and Share having requested that the Commission enter an order containing the recitals required by section 1808 (f) and Supplement R of the Internal Revenue Code, and the Commission deeming it appropriate that such request be granted:

It is ordered and recited, That the payment by Bond and Share as a dividend to its stockholders of 210,014 shares of common stock of The Southern Company is necessary or appropriate to the integration or simplification of the holding company system of which Bond and Share is a member and is necessary or appropriate to effectuate the provisions of section 11 (b) of the Public Utility Holding Company Act of 1935, all in accordance with the meaning and requirements of the Internal Revenue Code and section 1808 (f) and Supplement R thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 52-5952; Filed, May 29, 1952; 8:47 a. m.]

[File No. 70-2852]

UNITED GAS CORP.

ORDER CONCERNING ACQUISITION OF GAS UTILITY COMPANY

MAY 26, 1952.

United Gas Corporation ("United"), a gas utility subsidiary of Electric Bond and Share Company, a registered holding company, having filed an application and an amendment thereto, pursuant to the Public Utility Holding Company Act of 1935, particularly sections 9 (a) (1) and 10 thereof, with respect to the following proposed transactions:

United proposes to acquire all of the outstanding capital stock of Beaumont Natural Gas Company ("Beaumont Natural"), a nonaffiliated corporation, and all of the assets (except cash and cash items) of Beaumont Natural used in the business of distribution of natural gas for a base purchase price of $450,000 subject to closing adjustments. The proposed purchase price will be deposited with the First National Bank of Beaumont pursuant to an escrow agreement and will be used to the extent necessary to pay all the liabilities of Beaumont Natural.

United sells natural gas at retail in the States of Louisiana, Texas and Mississippi. Among the more important cities served by United is Beaumont, Texas, which has a population of approximately 94,000 and in which United has approximately 25,000 customers.

Beaumont Natural owns a natural gas distribution system in the City of Beaumont where it operates in competition with United and sells natural gas to approximately 2,000 customers. Beaumont Natural's outstanding capital stock consists of 5,000 shares of which 3332⅓ shares are owned by Glenn H. McCarthy, 1666⅔ by George B. Morgan and 1 share by Katherine Conley.

The application states that within ten days after the acquisition of the stock of Beaumont Natural by United, United will surrender such stock to Beaumont Natural in consideration of the transfer by that Company of its properties to United and the dissolution of Beaumont Natural. Accordingly, it is requested that the temporary holding by United of the securities of Beaumont Natural should not cause United to be a holding company as defined in the Holding Company Act.

The application indicates that Beaumont Natural has been obtaining natural gas from a nearby field for 5 cents per mcf. However, due to depletion of this field, the President of Beaumont Natural has stated that that Company will be required to pay a city rate price ranging from 16 cents per mcf for industrial gas to 19 cents per mcf for residential gas and that it would be necessary for either the Company to dispose of its properties or make application for a substantial increase in rates.

The base purchase price of $450,000 proposed to be paid by United exceeds the net fixed assets of Beaumont Natural by approximately $234,000 and is approximately $133,000 in excess of such net fixed assets and intangible assets.

The application further states that a thorough review of the entries on the books of Beaumont Natural is necessary and accordingly requests sufficient time after the consummation of the transaction proposed to complete such review. United will reflect the purchase price in Account 391 of the NARUC Uniform System of Accounts for Gas Utilities and will submit to this Commission proposed journal entries to clear from this account the cost of the properties acquired.

Pursuant to the provisions of Texas law (Article 1268 of Ch. 20, Title 28, of the Civil Statutes of Texas) the proposed acquisition of the stock of Beaumont Natural by United was authorized by vote of the qualified voters of the City of Beaumont pursuant to an ordinance of the City Council of the City of Beaumont at an election held on May 6, 1952.

The application having been filed on April 21, 1952, an amendment thereto having been filed on May 19, 1952, notice of said filing having been given in the form and manner required by Rule U-23 promulgated pursuant to said act, the Commission not having received a request for hearing within the time specified in said notice, or otherwise, and the Commission not having ordered a hearing thereon; and

The Commission finding that the proposed transactions are in accordance with the applicable standards of the act, and that no adverse findings are necessary thereunder, the Commission observing that the proposed acquisition has received the affirmative vote of the voters of the City of Beaumont, Texas at an election duly held for that purpose, and the Commission deeming it appropriate that said application, as amended, be granted:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of said act, and subject to the terms and conditions contained in Rule U-24, that said application, as amended, be and the same hereby is, granted, effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52-5951; Filed, May 29, 1952; 8:46 a. m.]

[File No. 70-2862]

WISCONSIN PUBLIC SERVICE CORP.

ORDER PERMITTING ISSUANCE OF FIVE AND ONE-HALF MONTH BANK LOAN NOTES

MAY 26, 1952.

Wisconsin Public Service Corporation ("Wisconsin"), a public utility subsidiary of Standard Power and Light Corporation and Standard Gas and Electric Company, both registered holding companies, has filed a declaration pursuant to sections 6 (a) and 7 of the act with respect to certain proposed transactions which are summarized as follows:

Wisconsin presently has outstanding $5,500,000 of 2½ percent 9-month bank loan notes maturing June 10, 1952. Wisconsin proposes, on or prior to June 10, 1952, to issue $6,500,000 of new 3 percent 5½-month bank loan notes ("new notes") to several banks and simultaneously to retire the presently outstanding bank loan notes. Wisconsin will have the privilege of prepaying the new notes without premium.

The declaration states that the net proceeds to be derived from the proposed transactions will be used to finance a portion of Wisconsin's proposed construction expenditures. Wisconsin also states that it may undertake permanent financing, in a manner not yet determined, prior to the due date of the new notes and use a portion of the proceeds of such permanent financing for the payment of the new notes.

It is represented that no State Commission or any other Federal Commission has jurisdiction over the proposed transactions, and that the expenses in connection with the proposed transactions will not exceed $500. The declarant requests that the Commission's order herein become effective upon issuance.

Due notice having been given of the filing of the declaration, and a hearing not having been requested of or ordered by the Commission; and the Commission finding that the applicable provisions of the act and the rules promulgated thereunder are satisfied and that no adverse findings are necessary, and deeming it appropriate in the public interest and the interest of investors and consumers that said declaration be permitted to become effective forthwith:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act, that said declaration be, and hereby is, permitted to become effective forthwith, subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52-5953; Filed, May 29, 1952; 8:47 a. m.]

[File No. 70-2877]

NIAGARA MOHAWK POWER CORP. AND OSWEGO CANAL CO.

NOTICE REGARDING PROPOSED MERGER OF NON-UTILITY SUBSIDIARY INTO PARENT COMPANY

MAY 26, 1952.

Notice is hereby given that a joint application-declaration, has been filed with this Commission, pursuant to sections 9, 10, and 12 of the Public Utility Holding Company Act of 1935 ("act"), by Niagara Mohawk Power Corporation ("Niagara Mohawk"), a public utility company and an exempt holding company, and its wholly-owned subsidiary Oswego Canal Company ("Oswego"). As of May 12, 1952, The United Corporation owned 9.58 per cent of the outstanding voting securities of Niagara Mohawk.

Notice is further given that any interested person may, not later than June 6, 1952, at 5:30 p. m., e. d. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request and the issues, if any, of

fact or law raised by said application-declaration proposed to be controverted, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after June 6, 1952, said application-declaration, as filed or as amended, may be granted and permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transaction as provided in Rules U-20 (a) and U-100 thereof.

All interested persons are referred to said application-declaration which is on file in the office of this Commission for a statement of the transaction therein proposed, which is summarized as follows:

It is proposed to merge Oswego into Niagara Mohawk. Oswego owns certain rights to the use for hydraulic development of the surplus water available on the east bank of the Oswego River in New York State on a point now designated as Dam No. 7 of the State Barge Canal System. Such water rights are presently leased to Niagara Mohawk which uses the water at its Varick hydroelectric plant located on the river at Dam No. 7.

Applicants-declarants have filed a petition with the Public Service Commission of the State of New York with respect to the proposed merger and the order of said Commission will be supplied by amendment.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52-5954; Filed, May 29, 1952; 8:47 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 27083]

AGRICULTURAL IMPLEMENTS FROM MEMPHIS, TENN., TO NEW ORLEANS, LA.

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratsmeir, Agent, for the Chicago, Rock Island and Pacific Railroad Company and other carriers, pursuant to fourth-section order No. 16101.

Commodities involved: Agricultural implements and parts, carloads.

From: Memphis, Tenn.

To: New Orleans, La.

Grounds for relief: Competition with rail carriers, circuitous routes, and operation through higher-rated territory.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5966; Filed, May 29, 1952; 8:49 a. m.]

[4th Sec. Application 27084]

CRANKCASE DRAININGS FROM GULFPORT, MISS., TO OKLAHOMA CITY, OKLA.

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to his tariff I. C. C. No. 3880.

Commodities involved: Crankcase drainings (suitable only for reprocessing), in tank-car loads.

From: Gulfport, Miss.

To: Oklahoma City, Okla.

Grounds for relief: Circuitous routes and to apply over short tariff routes rates constructed on the basis of the short line distance formula.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3880, Supp. 24.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5967; Filed, May 29, 1952; 8:49 a. m.]

[4th Sec. Application 27086]

UNGLAZED DOORS FROM LOUISVILLE, KY., TO POINTS IN THE SOUTHWESTERN TERRITORY

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent C. A. Spaninger's tariff I. C. C. No. 1269.

Commodities involved: Doors, unglazed, native wood, other than walnut, carloads.

From: Louisville, Ky.

To: Points in southwestern territory.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1269, Supp. 6.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5969; Filed, May 29, 1952; 8:50 a. m.]

[4th Sec. Application 27087]

STOVES AND RELATED ARTICLES FROM POINTS IN TENNESSEE TO WESTERN TRUNK LINE TERRITORY

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent C. A. Spaninger's tariff I. C. C. No. 1171.

Commodities involved: Stoves, house-heating furnaces, and related articles, carloads.

From: Athens, Cleveland, Knoxville and Sweetwater, Tenn.

To: Points in western trunk-line territory.

Grounds for relief: Competition with rail carriers, circuitous routes, and to maintain grouping.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1171, Supp. 25.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5970; Filed, May 29, 1952; 8:50 a. m.]

[4th Sec. Application 27088]

CARPENTERS' MOULDING FROM MEMPHIS, TENN., AND JUNCTION CITY, KY., TO CENTRAL AND ILLINOIS TERRITORIES

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent C. A. Spaninger's tariff I. C. C. No. 708.

Commodities involved: Carpenters' moulding made from mahogany lumber or Philippine woods, carloads.

From: Memphis, Tenn., and Junction City, Ky.

To: Points in central and Illinois territories.

Grounds for relief: Competition with rail carriers, circuitous routes, and to maintain grouping.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 708, Supp. 177.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5971; Filed, May 29, 1952; 8:50 a. m.]

[4th Sec. Application 27089]

MINERAL MIXTURES, ANIMAL OR POULTRY FEEDING FROM WINONA, MINN., TO MEMPHIS, TENN.

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: L. E. Kipp, Agent, for the Chicago and North Western Railway Company and other carriers.

Commodities involved: Mineral mixtures, animal or poultry feeding, carloads.

From: Winona, Minn.

To: Memphis, Tenn.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: L. E. Kipp, Agent, I. C. C. No. A-3383, Supp. 29.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5972; Filed, May 29, 1952; 8:50 a. m.]

SECTION OF LAW AND ENFORCEMENT, BUREAU OF MOTOR CARRIERS

TRANSFER TO BUREAU OF LAW

MAY 27, 1952.

The Interstate Commerce Commission announces the following change in its Bureau Organization, effective June 1, 1952:

The Section of Law and Enforcement, now a section of the Bureau of Motor Carriers, including the field attorneys, is transferred to the Bureau of Law. The duties of this section are to provide general legal services to the Commission and its staff in the regulation of transportation by motor carriers in interstate and foreign commerce.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5983; Filed, May 29, 1952; 8:53 a. m.]

[4th Sec. Application 27091]

FRESH MEATS AND PACKING HOUSE PRODUCTS FROM DAVENPORT AND DUBUQUE, IOWA, TO BATON ROUGE, NEW ORLEANS, AND RESERVE, LA.

APPLICATION FOR RELIEF

MAY 27, 1952.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. G. Raasch, Agent, for carriers parties to his tariff I. C. C. No. 754 and Agent C. A. Spaninger's tariff I. C. C. No. 1285.

Commodities involved: Fresh meats and packing house products, carloads.

From: Davenport and Dubuque, Iowa.

To: Baton Rouge, New Orleans, and Reserve, La.

Grounds for relief: Circuitous routes.

Schedules filed containing proposed rates: R. G. Raasch, Agent, I. C. C. No. 754, Supp. 4; C. A. Spaninger, Agent, I. C. C. No. 1285, Supp. 4.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 52-5974; Filed, May 29, 1952; 8:50 a. m.]